

SOLICITATION, OFFER AND AWARD			1. This Contract Is A Rated Order Under DPAS (15 CFR 700) ➡		Rating DOA4	Page 1	of 139	Pages
2. Contract Number		3. Solicitation Number W912CH-25-R-0182		4. Type of Solicitation ☐ Sealed Bid (IFB) ☒ Negotiated (RFP)		5. Date Issued		6. Requisition/Purchase Number SEE SCHEDULE
7. Issued By ACC-DTA CCTA-AMB-B 6501 E. 11 MILE RD. DETROIT ARSENAL, MI 48397-5000			Code W912CH	8. Address Offer To (If Other Than Item 7)				

NOTE: In sealed bid solicitations 'offer' and 'offeror' mean 'bid' and 'bidder'.

SOLICITATION

9. Sealed offers in original and _____ copies for furnishing the supplies or services in the Schedule will be received at the place specified in item 8, or if handcarried, in the depository located in _____ until _____ (hour) local time _____ (Date).

Caution - Late Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. For Information Call: ➡		A. Name DARLA LASKY		B. Telephone (No Collect Calls) Area Code (571) Number 588-9271 Ext.			C. E-mail Address DARLAMA.E.D.LASKY.CIV@ARMY.MIL
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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. Discount For Prompt Payment (See Section I, Clause No. 52.232-8) ➡	10 Calendar Days (%)	20 Calendar Days (%)	30 Calendar Days (%)	Calendar Days (%)
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14. Acknowledgment of Amendments (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):		Amendment No.	Date	Amendment No.	Date

15A. Name and Address of Offeror		Code	Facility	16. Name and Title of Person Authorized to Sign Offer (Type or Print)	
15B. Telephone Number		15C. Check if Remittance Address is ☐ Different From Above - Enter such Address In Schedule		17. Signature	
Area Code	Number			18. Offer Date	

AWARD (To be completed by Government)

19. Accepted As To Items Numbered		20. Amount	21. Accounting And Appropriation	
22. Authority For Using Other Than Full And Open Competition: ☐ 10 U.S.C. 2304(c)() ☐ 41 U.S.C. 253(c)()			23. Submit Invoices To Address Shown In (4 copies unless otherwise specified) ➡	
			Item 25	
24. Administered By (If other than Item 7) Code			25. Payment Will Be Made By Code	
26. Name of Contracting Officer (Type or Print)			27. United States Of America (Signature of Contracting Officer)	
			28. Award Date	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

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SECTION A - SUPPLEMENTAL INFORMATION

Buyer Name: DARLA LASKY
Buyer Office Symbol/Telephone Number: CCTA-AMB-B/(571)588-9271
Type of Contract 1: Cost Plus Fixed Fee
Kind of Contract: Service Contracts

*** End of Narrative A0000 ***

A.1 General Overview

Solicitation W56HZV-25-R-0182 requests a proposal for a new five-year, single award, Indefinite Delivery Indefinite Quantity (IDIQ) contract on a Cost-Plus-Fixed-Fee (CPFF) basis with five priced, one-year ordering periods (OP) for Logistic Fielding Support Services for Project Manager Mounted Armored Vehicles (PM MAV) Family of Vehicles (FoV) Armored Multi-Purpose Vehicle (AMPV) FoV and M113 FoV, Combat Recovery Systems (CRS) M88 FoV, and Bradley Fighting Vehicle (BFV) FoV and derivative Multiple Launch Rocket System (MLRS).

This requirement is subject to Full and Open Competition. A single contract award is anticipated to the responsible offeror whose proposal represents the best value to the Government. Proposals will be evaluated using a best value trade off process described in Sections L and M.

A.1.1 Notice Regarding Fill-Ins

Please note that this solicitation contains several clauses and provisions which require offerors to complete a fill-in or representation. With the exception of fill-ins for Section B (See Section L for further information), if fill-ins are not complete in this RFP, your offer may be determined ineligible for award. Be careful to read and complete each such clause and provision.

A.1.2 Questions and Resolutions

Any requests for clarification regarding this Request for Proposal (RFP) shall be emailed to the Contract Specialist and Contracting Officer 10 business days prior to the solicitation closing date.

All requests for clarification shall identify the applicable RFP number in the subject line. In the body of the message, references shall identify the RFP section and paragraph number for each numbered question. If attachments are used, the document shall be in Microsoft (MS) Word format.

A.1.3 Accessing Controlled Attachments

This solicitation contains attachments in Section J marked with Controlled Unclassified Information (CUI) and Export-Controlled distribution restrictions. These attachments will be restricted. Only eligible vendors will be able to gain access to these attachments.

Attachments are managed by two categories: "Public" and "Controlled". Each attachment is labeled within the search results under the column header "access".

"Public": Does not require your company to be pre-certified by the Joint Certification Program. However, your account must be associated to your company DUNS/CAGE Code and you must be logged in to your account.

"Controlled" and your company is certified by the Joint Certification Program: Your account must be associated to your company DUNS/CAGE Code and you must be logged in to your account. You will not immediately be permitted to view the document. Your company's Data Custodian (block 3A of the DD Form 2345) is the only authorized individual to gain access. Your company is responsible to manage the documents in accordance with prescribed directives.

"Controlled" and your company is NOT certified by the Joint Certification Program: In order to gain access your company must first be approved by the Joint Certification Program. The JCP approval process can be a lengthy process and requires additional documentation. After the certification is issued your account must be associated to your company DUNS/CAGE Code and you must be logged in to your account. You will not immediately be permitted to view the document. Your company's Data Custodian (block 3A of the DD Form 2345) is the only authorized individual to gain access. Your company is responsible to manage the documents in accordance with prescribed directives.

The Joint Certification Program web site: <https://www.dla.mil/HQ/LogisticsOperations/Services/JCP/>

A.2 Electronic Contracting

(a) All Army Contracting Command Detroit Arsenal solicitations will be publicized on the System for Award Management (SAM) website (<https://www.sam.gov>). Any additional attachments, including Technical Data Packages (TDPs) when available electronically, are embedded in the solicitation as separate attachments or links.

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(b) This solicitation requires any proposal, modification or revision/amendment submission via the Procurement Integrated Enterprise Environment (PIEE) - Solicitation module. (See Section L for further information.)

PIEE Log in Page: <https://piee.eb.mil>.

This will require offerors to be registered in PIEE and have the appropriate access/user role for the Solicitation module within PIEE. This may also require action on the part of offerors to request and obtain the appropriate access/user role for the Solicitation module in order to upload and submit any proposal, modification or revision/amendment. Offerors are required to review their PIEE module access immediately and initiate any necessary request(s) for the Solicitation module, which should be done as soon as possible, and well in advance of the solicitation closing date/time.

See the below for information regarding PIEE and the Solicitation Module:

Getting Started with PIEE:
<https://piee.eb.mil/xhtml/unauth/web/homepage/vendorGettingStartedHelp.xhtml>
<https://pieetraining.eb.mil/wbt/xhtml/wbt/portal/overview/vendorRegister.xhtml>
https://pieetraining.eb.mil/wbt/portal/portal/Vendor_Registration.pdf
PIEE Solicitation Module Information and Web Training:
<https://pieetraining.eb.mil/wbt/xhtml/wbt/sol/index.xhtml> https://pieetraining.eb.mil/wbt/sol/Solicitation_Registration.pdf
<https://pieetraining.eb.mil/wbt/xhtml/wbt/sol/solicitation/proposals.xhtml>

Other helpful Info:

https://www.acq.osd.mil/asda/dpc/ce/cap/docs/piee/PIEE_Solicitation_Module_Vendor_Access_Instructions.pdf

(c) Please pay close attention to the Issued By block location on the cover page of the solicitation closing date/time. The solicitation closing date/time is based on the local time of the location of the Issued By office. In accordance with FAR 15.208(a), offerors are responsible for submitting any proposal, modification or revision/amendment, so as to be received by the Government office designated in the solicitation by the time specified.

(d) It is the responsibility of the offeror to ensure any proposal, modification, or revision/amendment is received by the date and time specified on the cover page of this solicitation. In accordance with FAR 15.208(b), if any proposal, modification, or revision/amendment was not received at the initial point of entry to the Government infrastructure by the exact date and time specified on the cover page of this solicitation, it will be determined late. Proposal, modification, or revision/amendment is defined to mean ALL volumes or parts required in the solicitation and included in the electronic submission.

Note: Any proposal, modification, or revision/amendment size and content may impact the time it takes for submission. Therefore, offerors are strongly cautioned that adequate time should be allowed when submitting any proposal, modification, or revision/amendment.

(e) Solicitations may remain posted on www.SAM.gov after the solicitation closing date. If the response deadline has passed for the solicitation, offerors will no longer be able to submit electronic responses.

(f) Any award issued as a result of this solicitation will be distributed electronically. In the event of a Freedom of Information Act (FOIA) (5 USC 552) request for a copy of any award issued as a result of this solicitation, or any subsequent modifications to the contract, the contract and modifications will be released. In addition, in accordance with Executive Order 12600 (June 23, 1987), please be advised it is the Government's intention to also release the unit price(s) in response to any request under FOIA. Unit price is defined as the contract price per unit, or item purchased as it appears in Section B of the contract. Unit price does NOT refer to, nor does it include Cost or Pricing data or information. If an offeror objects to the release of the unit price(s) in the contract or contract modifications in the event of a FOIA request, the offeror must notify the Contracting Officer in writing prior to the closing date identified in this solicitation and include the rationale for the objection, consistent with the provisions of FOIA. A release determination will be made in accordance with FOIA based on the rationale provided.

(g) Questions pertaining to this solicitation should be directed to the Contract Specialist identified on the cover page of this solicitation. For technical assistance in doing business with the Government, and doing business electronically, please visit the APEX (formerly Procurement Technical Assistance Center (PTAC)) website at <http://www.miapex.org/> to locate a regional center.

A.3 Acknowledgement of Amendments

Acknowledge all the amendments received from the Government by identifying the amendment number and its issue date below:

Amendment Number: Date:

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A.4 Army Contracting Command Detroit Arsenal (DTA) Ombudsperson

Information regarding the Ombudsperson for this contract is located at the following website: <https://tacom.army.mil/ombudsperson>.
(Best viewed using Google Chrome or Microsoft Edge).

A.5 All or None

Offers in response to this solicitation must be submitted for the total quantity of the items identified in the solicitation.

- (1) ONLY ONE AWARD WILL BE MADE AS A RESULT OF THIS SOLICITATION.
- (2) OFFERS SUBMITTED FOR LESS THAN THE TOTAL QUANTITIES OF ALL THE ITEMS IN THIS SOLICITATION WILL BE DEEMED NONRESPONSIVE.

*** END OF NARRATIVE A0001 ***

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS				
1000	<u>OP1 - PROGRAM MANAGEMENT AMPV/M113; M88; BRADLEY/MLRS</u> SERVICE REQUESTED: OP1 - PROGRAM MANAGEMENT CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
1100	<u>OP 1 - AMPV/M113 LOGISTIC FIELDING SUPPORT SERVICES</u> SERVICE REQUESTED: OP 1 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
1200	<u>OP 1 - BRADLEY/MLRS LOGISTIC FIELDING SUPPORT SERVICES</u> SERVICE REQUESTED: OP 1 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
1300	<u>OP 1 - M88 LOGISTIC FIELDING SUPPORT SERVICES</u> SERVICE REQUESTED: OP 1 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1400	<u>OP 1 TRAVEL/ODCS/MATERIAL</u> SERVICE REQUESTED: OP 1 TRAVEL/ODCS/MATERIAL CLIN CONTRACT TYPE: Cost No Fee <u>Deliveries or Performance</u>				\$ _____
2000	<u>OP 2 - PROGRAM MANAGEMENT AMPV/M113; M88; BRADLEY/MLRS</u> SERVICE REQUESTED: OP 2 - PROGRAM MANAGEMENT CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
2100	<u>OP 2 - AMPV/M113 LOGISTIC FIELDING SUPPORT SERVICES</u> SERVICE REQUESTED: OP 2 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
2200	<u>OP 2 - BRADLEY/MLRS LOGISTIC FIELDING SUPPORT SERVICES</u> SERVICE REQUESTED: OP 2 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2300	<u>OP 2 - M88 LOGISTIC FIELDING SUPPORT SERVICES</u> SERVICE REQUESTED: OP 2 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
2400	<u>OP 2 TRAVEL/ODCS/MATERIAL</u> SERVICE REQUESTED: OP 2 TRAVEL/ODCS/MATERIAL CLIN CONTRACT TYPE: Cost No Fee <u>Deliveries or Performance</u>				\$ _____
3000	<u>OP 3 - PROGRAM MANAGEMENT AMPV/M113; M88; BRADLEY/MLRS</u> SERVICE REQUESTED: OP 3 - PROGRAM MANAGEMENT CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
3100	<u>OP 3- AMPV/M113 LOGISTIC FIELDING SUPPORT SERVICES</u> SERVICE REQUESTED: OP 3 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3200	OP 3 - BRADLEY/MLRS LOGISTIC FIELDING SUPPORT SERVICES SERVICE REQUESTED: OP 3 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
3300	OP 3 - M88 LOGISTIC FIELDING SUPPORT SERVICES SERVICE REQUESTED: OP 3 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
3400	OP 3 TRAVEL/ODCS/MATERIAL SERVICE REQUESTED: OP 3 TRAVEL/ODCS/MATERIAL CLIN CONTRACT TYPE: Cost No Fee <u>Deliveries or Performance</u>				\$ _____
4000	OP 4 - PROGRAM MANAGEMENT AMPV/M113; M88; BRADLEY/MLRS SERVICE REQUESTED: OP 4 - PROGRAM MANAGEMENT CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4100	OP 4 - AMPV/M113 LOGISTIC FIELDING SUPPORT SERVICES SERVICE REQUESTED: OP 4 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
4200	OP 4 - BRADLEY/MLRS LOGISTIC FIELDING SUPPORT SERVICES SERVICE REQUESTED: OP 4- LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
4300	OP 4 - M88 LOGISTIC FIELDING SUPPORT SERVICES SERVICE REQUESTED: OP 4 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
4400	OP41 TRAVEL/ODCS/MATERIAL SERVICE REQUESTED: OP 4 TRAVEL/ODCS/MATERIAL CLIN CONTRACT TYPE: Cost No Fee <u>Deliveries or Performance</u>				\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
5000	<u>OP 5 - PROGRAM MANAGEMENT AMPV/M113; M88; BRADLEY/MLRS</u> SERVICE REQUESTED: OP 5 - PROGRAM MANAGEMENT CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
5100	<u>OP 5 - AMPV/M113 LOGISTIC FIELDING SUPPORT SERVICES</u> SERVICE REQUESTED: OP 5 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
5200	<u>OP 5 - BRADLEY/MLRS LOGISTIC FIELDING SUPPORT SERVICES</u> SERVICE REQUESTED: OP 5- LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____
5300	<u>OP 5 - M88 LOGISTIC FIELDING SUPPORT SERVICES</u> SERVICE REQUESTED: OP 5 - LFSS CLIN CONTRACT TYPE: Cost Plus Fixed Fee <u>Deliveries or Performance</u>				\$ _____

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ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
5400	<u>OP 5 TRAVEL/ODCS/MATERIAL</u> SERVICE REQUESTED: OP 5 TRAVEL/ODCS/MATERIAL CLIN CONTRACT TYPE: Cost No Fee <u>Deliveries or Performance</u>				\$
7000	<u>CONTRACT DATA REQUIREMENTS LIST</u> SERVICE REQUESTED: CDRLS Reference Section J-1 for full list of required CDRLs (A001-A044). (End of narrative B001)				\$ ** NSP **
8000	<u>SERVICE CONTRACT REPORTING</u> SERVICE REQUESTED: SERVICE CONTRACT REPORTING CLIN CONTRACT TYPE: Cost Plus Fixed Fee The contractor shall report ALL contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract in accordance with DFARS 252.204-7023, Reporting Requirements for Contracted Services. (End of narrative B001)				\$ ** NSP **

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B.1 Ordering

This contract is an Indefinite Delivery, Indefinite Quantity (IDIQ) as defined by FAR 16.504. In Accordance With (IAW) FAR 52.216-18, Ordering, the Government may issue orders pursuant to the following terms and conditions:

B 1.1 Work Directives (WD)

The Government will issue Work Directives that specify applicable Section C scope, description of work, labor hours authorized, cost (labor, material, and travel), Period of Performance (PoP), and any required deliverables authorized by the Procuring Contracting Officer (PCO). Efforts performed shall be IAW the scope set forth on the base contract.

B.2 IDIQ Ordering Periods (OPs)

OP 1: Date of contract award through 365 days
OP 2: 366 days through 730 days after contract award
OP 3: 731 days through 1,095 days after contract award
OP 4: 1,096 days through 1,460 days after contract award
OP 5: 1,461 days through 1,825 days after contract award

B.3 Contract Line-Item Number (CLIN) Structure. In the four-digit CLINS that follow, the numbering system that is used is as follows:

B.3.1 The first digit signifies the ordering period:

1XXX represents ordering period one
2XXX represents ordering period two
3XXX represents ordering period three
4XXX represents ordering period four
5XXX represents ordering period five

B.3.2 The second digit signifies platform:

X0XX represents Program Management
X1XX represents AMPV FoV/M113 FoV
X2XX represents Bradley FoV/MLRS FoV
X3XX represents M88 FoV

B.4 Order Pricing

B.4.1 Established Hourly Rates by Ordering Period

WDs will be awarded IAW the estimated composite labor rates and fixed fee per service, as outlined in Attachment 0047. Labor rates will be based on the OP in which the WD is awarded and not the date of delivery or completion. Composite labor rates will be provided for the following services for each ordering period:

CONUS
Program Management
Field Service Representative
Deprocessing
New Equipment Training/Displaced Equipment Training
Total Package Fielding
Modified Work Order Installation

OCONUS
Field Service Representative
Deprocessing
New Equipment Training/Displaced Equipment Training
Total Package Fielding
Modified Work Order Installation

The amounts shown on each order constitute individual cost estimates IAW FAR 52.232-20, Limitation of Cost.

B.5 IDIQ Contract Minimum/Maximum Order

IAW FAR 52.216-22 Indefinite Quantity:

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B.5.1 Minimum quantity: 16,297 labor hours
B.5.2 Maximum quantity: 2,009,216 labor hours

B.6 FIXED FEE

B.6.1 The contractor will be paid fixed fee for the scope of work IAW Sections B.6.2 and B.6.3 below.

B.6.1.1 Types of Work Directives

B.6.2 Completion Work Directives

B.6.2.1 The contractor shall be paid the total fixed fee stated in Section B CLIN for the performance of work IAW the contract clause entitled FIXED FEE, FAR 52.216-8. The fixed fee together with the reimbursement of cost shall constitute full and complete consideration for the contractor services in connection with the work required and performed under this contract. IAW FAR 16.306(d)(1), the total fixed fee is payable at the end of performance upon satisfactory delivery of the specified end product within the estimated cost. The total fixed fee payment shall be subject to the withholding provisions.

B.6.2.2 Pursuant to FAR 52.232-20 Limitation of Cost and FAR 16.306(d) Cost-Plus-Fixed-Fee Contracts, in the event the contractor cannot complete the scope within the estimated cost, the Government may require more effort without increase in fixed fee, provided the Government increases the estimated cost.

B.6.3 Term Work Directives

B.6.3.1 The payable fixed fee amount is directly tied to the actual Term hours expended. Each time the contractor invoices for fee, it shall calculate a cumulative billable fee amount by identifying the amount of hours performed for each labor category multiplied by the proposed composite fixed fee dollar per hour for each respective labor category. Accordingly, the contractor shall only invoice the hourly fixed fee dollar per hour for each hour performed. The fixed fee dollar per hour does not change in the event that the contractor's invoiced Fully Burdened Labor Rate (FBLR), less fee, changes. Fixed fee payment(s) shall be subject to the withholding provisions.

B.6.3.2 Fixed Fee CLIN Value. The "Fixed Fee" indicated on each CPFF CLIN indicates the maximum allowable fee, and the contractor shall perform 100% of the specified Term hours for the stated PoP in order to be entitled to that full amount. Facilities Capital Cost of Money (FCCM) is not factored into fee calculations.

B.6.3.3 Fixed Fee Example. The below examples include generic scenarios to illustrate the authorized fixed fee calculations. These scenarios do not pertain to the actual costs or labor requirements of this contract and are for demonstration purposes only.

Scenario 1: 100% of Hours Performed

Position 1: The Proposed FBLR (less fee) was \$50.00, but the Actual FBLR (less fee) is \$50.75. The required hours on the WD were 1920, and the Actual Hours Performed are 1920. The Proposed Composite Fixed Fee is \$2.50. The Invoiced Labor would equal \$97,440.00 (\$50.75 * 1920) or (Actual FBLR * Actual Hours Performed). The Invoiced Fee would equal \$4,800.00 (\$2.50 * 1920) or (Proposed Composite Fixed Fee \$ Per Hour * Actual Hours). The invoice total would be \$102,240.

Scenario 2: 95% of Hours Performed

Position 1: The Proposed FBLR (less fee) was \$50.00, but the Actual FBLR (less fee) is \$50.75. The required hours on the WD were 1920, but the Actual Hours Performed are 1824. The Proposed Composite Fixed Fee is \$2.50. The Invoiced Labor would equal \$92,568.00 (\$50.75 * 1824) or (Actual FBLR * Actual Hours Performed). The Invoiced Fee would equal \$4,560.00 (\$2.50 * 1824) or (Proposed Composite Fixed Fee \$ Per Hour * Actual Hours). The invoice total would be \$97,128.

Note: Fixed fee is a dollar amount per hour based on the proposed composite fee percentage applied to the initial proposed FBLRs. The fixed fee amount per hour is fixed and does not fluctuate with actual costs (i.e. fixed fee is NOT the proposed fee percentage applied to actual costs). Fixed fee is the proposed dollar amount per hour multiplied by the actual hours performed as shown in the scenarios above.

B.6.3.4 The payable fixed fee amount on each invoice is based upon the fixed fee dollar amounts per hour(s) multiplied by the actual hours worked for the associated labor categories, while satisfactorily completing the specified Term hours for the stated PoP. In the event the Government wants to increase the specified Term hours, the additional hours are subject to more estimated cost and fixed fee. The contractor is not authorized to incur effort in excess of the specified Term hours. Any costs incurred for excess effort are unallowable.

B.6.3.5 Pursuant to FAR 52.232-20 Limitation of Cost, in the event the contractor cannot perform Term hour(s) within the estimated cost set forth in the CLIN, the Government may increase the estimated cost of the hour(s) but will not increase the fixed fee for the hour(s).

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B.6.3.6 If overtime is authorized during WD performance, the applicable fixed fee composite rates per hour, as identified in Section B.4 will apply.

*** END OF NARRATIVE B0001 ***

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Name of Offeror or Contractor:

SECTION C - DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

C.1 General

C.1.1

The contractor, as an independent contractor and not as an agent of the United States (US) Government (Government or USG), shall provide Logistic Fielding Support Services (LFSS) on a Term or Completion basis, as specified by Work Directive (WD), for Project Manager Mounted Armored Vehicles (PM MAV) Vehicle Portfolio that includes the Bradley Fighting Vehicle (BFV) Family of Vehicles (FoVs), Armored Multi-Purpose Vehicle (AMPV) FoV and M113 FoV, Multiple Launch Rocket Systems (MLRS), and Combat Recovery Systems M88 FoV, and Foreign Military Sales (FMS) Countries. All work performed under this contract shall be accomplished under Task Order(s) (TO) and the Statement of Work (SOW) will be further defined by WDs incorporated into the contract via contract modification. The contractor shall receive, respond to, and track Government requests for information and requests for proposals as specified in Section H of this contract. The contractor shall not perform an effort unless authorized by a contract modification.

C.1.2 Statement of Work

This SOW describes contractor-required services related to maintenance, repair and overhaul, equipment modification, installation of equipment and technical representative services to keep machines, systems, and vehicles functioning and in working order. Services that shall be provided under this contract include Materiel Fielding and De-processing, Field Service Representative (FSR), Maintenance Teams, Modification Work Order (MWO), Total Package Fielding (TPF), and New Equipment training (NET) in support of the PM MAV vehicle portfolio, to include FMS. These services shall be provided at locations in the Continental US (CONUS), as well as locations Outside the Continental US (OCONUS). The contractor's responsibilities shall include maintaining control of subcontractor's efforts to ensure Government requirements are met.

As used herein, the phrase "contractor personnel" includes both prime and subcontractor personnel. The contractor shall ensure that these requirements are included in all subcontracts.

C.1.3 General Requirements

C.1.3.1 Work Authorization

All work awarded hereunder shall be performed to the extent authorized and individually funded under specific WD(s), which will be incorporated into the contract via a TO or modification to a TO.

C.1.3.2 Limitations

Contractor personnel shall not perform inherently Governmental services under this contract, nor shall any work described herein be considered inherently Governmental services.

C.1.3.3 Contractor Personnel

Contractor personnel providing services hereunder are employees of the contractor and subcontractor(s) and are under their sole administrative control and supervision. The contractor shall select, assign, and provide directions to its employees performing services under all TOs and WDs awarded hereunder. The Government will not exercise any supervision or control over the contractor's employees in their performance of services.

C.1.3.3.1 Replacement Personnel

In the event that the contractor determines that a contractor employee is deemed not capable of supporting the effort or incurs disciplinary action while supporting an effort, the contractor or subcontractor shall remove that person at the contractor's expense from the support location. Upon learning that a contractor employee needs to leave the location, the contractor shall notify the PCO or COR, via email, within 48 hours. Notifications shall include a summary of the reason why the employee is leaving, the support location, as well as the time when a replacement will be on site to continue support. At the time of this written notification, the Government will determine, within five business days, if a replacement is still required to meet the mission. This determination will be provided to the contractor by the PCO or COR via email. If a replacement is required, the contractor shall have a replacement on site no later than eight business days after the USG's determination notification for CONUS; and no more than 30 business days for OCONUS locations.

C.1.3.4 Contractor Personnel Qualifications

Contractor employees shall meet the minimum qualifications called out in Section H and as specified at the TO and WD level, to include the proper licenses and ability to operate the required machinery or equipment in fulfillment of the mission. If there are concerns regarding the qualifications of a contractor employee, the final determination will be made by the Government.

C.1.3.5 PoP

Each individual TO and WD awarded hereunder will specify a PoP. Specific schedules will be outlined in the associated WD.

C.1.3.6 Performance Locations

Services performed under this contract may be performed at any USG base or installation within the CONUS or OCONUS. Each individual WD awarded hereunder will specify the specific location(s) for the performance of the service(s). The contractor shall comply with the work and holiday schedules at each location.

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C.1.3.7 Travel

Individual WDS awarded hereunder may require contractor personnel to travel to CONUS and/or OCONUS locations and provide support IAW the schedules and manning levels outlined in the applicable WD. OCONUS travel locations are defined as any location outside the continental US. Specific locations will be called out in the WD.

The contractor shall be responsible for all travel arrangements for personnel supporting a WD that requires travel. The contractor shall notify the COR of early departures or late arrivals. The contractor will be authorized to make travel arrangements prior to the commencement of work.

C.1.3.8 Deploying Personnel

WDS requiring contractors to deploy to OCONUS locations will include pertinent details and requirements for contractors to deploy. Deployable personnel shall meet the requirements specified in Army Regulation (AR) 715-9. Depending on the Status of Forces Agreement (SOFA) or other international agreements, contractor employees may be subject to the customs, processing procedures, laws, agreements, duties of the country in which they are deploying to and the procedures, laws, and duties of the US upon re-entry. The contractor shall verify and comply with all requirements.

Upon arrival in the host country, contractor personnel may be required to obtain locally required identification cards.

C.1.3.8.1 Documentation of Deploying Personnel

In support of OCONUS deployment of contractor personnel, the contractor shall identify to the Government all documentation requirements needed No Later Than (NLT) 90 calendar days prior to deployment. If the contractor receives notification less than 90 calendar days prior to OCONUS deployment, it shall identify documentation requirements to the COR within 3 business days of receipt of notification. The contractor is responsible and authorized for obtaining (i) all passports, visas, and other documents necessary for contractor personnel to transverse through and within the Area of Operation and (ii) the customs, immigration, or similar liabilities of its contractor personnel. The contractor shall be responsible for completing the Synchronized Pre-deployment and Operational Tracker-Enterprise Suite (SPOT-ES) documentation required for deployment and shall request assistance from the Government at least 10 business days in advance, if required.

C.1.3.9 COR

Work Directives will be incorporated as attachments into their respective task orders. Each TO will have an appointed COR. The contractor shall direct communications on WD technical matters to the appointed COR.

C.1.3.10 Contractor Management Focal Point

The contractor shall establish a single management focal point and maintain a supporting program management system tailored to accomplish the administrative, management, security, quality control, technical, and financial requirements associated with individual TOs awarded hereunder. These efforts shall be performed IAW Program Management TOs and WDs awarded under this contract.

C.1.3.11 Quality Assurance Program

The contractor shall establish and maintain a Quality Assurance program governing performance of all TOs and WDs awarded hereunder for identifying and correcting deficiencies in the quality of services. The contractor shall have an auditable quality assurance process commensurate with the scope and content of the requirements of each WD. The contractor shall be required to establish a certified quality management system (ISO 9000 or ISO 9001:2015) to the extent the system applies.

Product Quality Deficiency Report (PQDR). The contractor shall investigate and provide failure analysis and corrective action for all PQDRs (Standard Form 368) generated against supplies produced and/or services performed under this contract. The Government will provide the contractor with reasonable access to solve problems where exhibits are found to be non-conforming or fail to operate. Should an exhibit of the item in question be required, the contractor shall submit an exhibit request electronically to the Government PQDR Action Officer. All corrective actions taken by the contractor shall be at no additional cost to the Government. PQDR corrective actions which require a configuration change must be approved by the Government PCO. All PQDR investigation reports and associated corrective actions shall be approved by the PQDR Action Officer before the Government considers a PQDR closed. PQDRs will not be closed in Product Data Reporting and Evaluation Program (PDREP) until the corrective action(s) delivered by the contractor or its suppliers are officially approved by the Government IAW CDRL A020, Supply Discrepancy Report.

Inspection and Test Equipment. The contractor shall be responsible for all measuring, monitoring, inspection, and test equipment necessary to conform to contract requirements. The contractor shall notify the Government if any inspection and test equipment used, or suspected of being used, is found to be out of calibration or if any changes are made to the inspection and test equipment. The contractor shall ensure inspection equipment is available to the Government during Government in-processing or end item inspection. The Government reserves the right to review inspection records and process documents upon request.

C.1.3.12 Non-Disclosure Agreements (NDA)

Contractor employees may be required to sign NDAs on a per-Task Order basis, at the Government's discretion.

C.1.4 Contract Data Requirement List (CDRL) Deliverables

CDRL requirements will be established in individual WDs and incorporated into their respective TOs. CDRLs shall be uploaded by the

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contractor via the Government CDRL tool. If the file size exceeds CDRL Tool limitations, the contractor shall upload a notification of delivery, and shall notify COR to seek alternative submission methods.

Within 10 calendar days after contract award, the contractor shall provide the PCO, Contract Specialist, and COR with a list of personnel requiring access to the CDRL tool. Personnel will be required to have either a Government issued Common Access Card (CAC) or Government-approved External Certificate Authority in order to gain access to the CDRL Tool. CDRL Tool user instructions and training will be provided at the Start of Work Meeting (SOWM). The contractor shall deliver CDRLs without any security protection features that would prevent the Government from opening, editing, sorting, merging, or otherwise manipulating the data for Government purposes.

C.2 Meetings

C.2.1 The contractor shall participate in joint Government-contractor meetings to monitor the status of integrated logistics services. Meetings shall provide a means for coordination, monitoring schedules and contract performance, and ensuring Government and contractor compliance with established regulatory guidance and contractual requirements. Joint meetings shall be held at the contractor's facility or via teleconference, web conference, or video conference, as determined by the Government. Requirements for CDRL deliverables for CDRLs A001, Meeting Minutes and A002, Briefing Material, if applicable, will be outlined in the WD.

C.2.2 Meeting Attendance

Any contractor attending meetings with Government employees shall, at the beginning of the meeting, announce that they are a contractor employee. The contractor employee shall state the contractor's name and state the name of all other companies or persons that currently employ them, or that they currently represent.

C.2.3 Audio and Network Accessibility for Briefings

The contractor shall provide audio and network meeting capabilities in a Government compatible format when the meeting location is not at a Government facility.

C.2.4 Post-Award Start of Work Meeting (SOWM)

C.2.4.1 The contractor shall schedule and host a Post-Award SOWM at its facility, unless otherwise directed in the WD, within 30 calendar days after contract award. This SOWM is to achieve a clear and mutual understanding of all contract requirements between the Government and the contractor and to identify and resolve potential problems to ensure successful contract performance. The contractor shall, at a minimum, invite the COR(s) identified within this contract, the PCO and Contract Specialist identified on the face page of this document, and the Administrative Contracting Officer (ACO).

C.2.4.2 The COR, PCO, Contract Specialist, and ACO shall be given at least 14 calendar days advance notification, via electronic mail, of the time, date, and location of the SOWM. The contractor shall collaborate with the Government to draft the SOWM agenda prior to the meeting. The contractor shall include in its agenda the determined schedule, cost, and performance goals. The contractor shall deliver Meeting Minutes IAW CDRL A001 and Briefing Material IAW A002. The Government will provide CDRL Tool user instructions and training at the Start of Work Meeting (SOWM).

C.2.5 WD Post-Award Start of Work Meeting

The contractor shall host a post-award start of work meeting at its facility, unless some other location is agreed to by the parties, within seven calendar days after WD award, or as required by each individual WD. The contractor shall, at a minimum, invite the COR, PCO, and ACO. The contractor shall give the COR, PCO, and ACO at least 3 calendar days advance notification, via electronic email, of the time, date, and location of the SOWM. The contractor shall discuss or present cost, schedule, performance, risks, risk mitigation, issues, and resolution strategies and goals. The contractor shall deliver Meeting Minutes IAW CDRL A001 and Briefing Material IAW A002.

C.2.6 IPT Meetings

The contractor shall attend IPT meetings led by the Government, as requested by the Government.

C.2.7 Other Meetings

The contractor shall conduct or participate in joint meetings with the Government, as specified in the list below. The contractor shall provide the COR with a minimum of five business day notice prior to the scheduled meeting date. The requirements of the contractor and frequency for these meetings will be called out in each WD.

- a. Government Fielding Branch
- b. Logistic Fielding Support Services Status Reviews
- c. COR Field Support Services Review
- d. Program Management Reviews (PMR)
- e. Field Problem Review Board (FPRB)
- f. Environmental, Safety, and Occupational Health (ESOH)
- g. Ad Hoc Meetings
- h. Fielding Synchronization
- i. Materiel Requirements List (MRL) Coordination Meetings

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The contractor shall issue meeting invitations via Microsoft Outlook or Teams. To the maximum extent possible, the contractor shall attend meetings in person, with appropriate personnel to present or answer questions as required. When in-person attendance is not feasible, the contractor shall ensure qualified personnel are available virtually. The contractor shall deliver Meeting Minutes IAW CDRL A001 and Briefing Material IAW A002.

C.2.8 Government Fielding Branch

The contractor shall attend the Government led Fielding Branch meeting on a weekly basis. The contractor shall be prepared to discuss all aspects of their Integrated LFSS efforts currently under a WD and answer questions as required. If required, the contractor shall deliver Briefing Material IAW CDRL A002.

C.2.9 LFSS Status Review

The contractor shall support status review meetings as requested by the USG and be prepared to discuss any ongoing efforts. The contractor shall provide the status on existing WDs with any issues that require administrative changes. The contractor shall be prepared to discuss all facets of the Logistic Services program at these meetings to include cost, schedule, performance, and risk.

C.2.10 Field Support Services Review

The contractor shall conduct, on a quarterly basis, Field Support Services reviews of all efforts under the WDs. Briefings shall contain, by WD, efforts previously performed; upcoming efforts; any known issues or problems; description of hours authorized, hours expended, material dollars expended, and material dollars committed; and any variances from planned efforts and reasons for the variances. Following each meeting, contractor shall provide meeting minutes IAW CDRL A001.

C.2.11 PMR

The contractor shall host and prepare materials to support a hybrid PMR, virtual and in person, on an annual basis. The contractor shall be able to support 40 people for the in-person portion of the PMR. The PMR shall be held within 10 miles of the Detroit Arsenal, unless an exception is approved by the PCO. The contractor shall present cost, schedule, performance, and any risks for each active TO performed under this contract and be prepared to discuss with the Government. The contractor shall deliver briefing materials IAW CDRL A002.

C.2.12 FPRB

The contractor shall participate in the Government hosted bi-annual virtual meeting, and as requested discussions for each individual PM MAV vehicle platform regarding field problems with a wide range of participants from working-group level personnel to leadership. The contractor shall be prepared to propose resolutions and risks with risk mitigation(s) at each FPRB meeting and be prepared to engage in discussions.

C.2.13 ESOH Working Group (WG)

The contractor shall participate in the Government hosted ESOH WG meetings for each of the following platforms: Bradley Fighting Vehicle (BFV) Family of Vehicles (FoVs), Armored Multi-Purpose Vehicle (AMPV) FoV and M113 FoV, Multiple Launch Rocket Systems (MLRS), and Combat Recovery Systems M88 FoV. The contractor shall present and discuss a summary of all accident/fire causal factors and investigation results (no travel required).

C.2.14 Ad Hoc Meetings

As required, the contractor shall attend, virtually or in person, ad hoc meetings required to manage the various efforts performed under this contract. Government will provide as much notice of ad hoc meetings to the extent possible. For ad hoc meetings, the contractor shall support discussion of the issues and take any actions out of the meetings delegated to them. These meetings will be required to facilitate the management of the Field Support Services efforts as they operate in a changing environment.

C.2.15 Fielding Synchronization Meetings

The contractor shall discuss analysis, schedules, milestones, accomplishments, future planning, corrective action planning, risks, risk mitigation strategies, and issues regarding worldwide fielding synchronizations. These meetings will be attended by the contractor and Government fielding teams worldwide. These meetings will be chaired by the Chief, Materiel Fielding Team (MFT). The contractor shall make no changes to fielding schedule(s) or change the make-up of any TPF package without approval of the Chief Materiel Fielding Team.

C.2.16 MRL Coordination Meetings

The contractor shall conduct quarterly MRL Coordination meetings with Fielding and/or Gaining Commands, MFT, and Integrated Logistics Support Managers. The contractor shall answer questions related to discrepancies identified in the MRL and obtain results of recent configuration changes to be incorporated into a final MRL using the Basis of Issue Plan (BOIP), Modified Table of Organization and Equipment (MTOE), Table of Distribution and Allowance (TDA) for Training & Doctrine Command (TRADOC) Units, and System Architecture (SA). The contractor shall deliver Fielding Hand-Off Documentation/DA Form 5682 Submittal report IAW CDRL A004. The report shall include the final MRL (documented on DA Form 5682 or other approved format from DA PAM 770-2) IAW the configurations within the BOIP/MTOE/SA authorization document(s) provided by the Government. Meetings shall be conducted at a Government facility or through teleconference calls. During the meeting, the Government will provide a Mission Support Plan that shall be used by the MFT during its development of the initial issue.

C.3 Task Orders (TOs) and Work Directives (WDs)

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C.3.1 All work under this contract shall be completed IAW a work directive executed under the applicable TO. The WD will detail the scope of work to be completed.

C.3.2 WDs will be funded and identified in Section B of the TO, by Contract Line-Item Number. WDs may take one of two basic forms - Completion or Term. Each WD will specify which form applies to the individual effort. WDs shall be within the general scope of the basic contract and will be incorporated as an attachment to Section J of its respective TO. The contractor shall notify the Government within three business days of award receipt of any WD or portion of a WD that duplicates or appears to duplicate work previously performed under Government contracts. The contractor shall provide all necessary labor, materials, supplies, services, facilities, and equipment to perform the specific services required by the WDs.

C.3.3 The contractor shall notify the COR and the PCO immediately upon discovery, by email, if any scheduled requirement or delivery date will not be met as defined. The contractor shall detail the reason(s) why the requirement(s) will not be met and propose corrective action(s) within five business days. The COR may, in writing, provide alternative notification procedures.

C.3.4 The contractor shall notify the PCO of any potential or suspected conflict of interest and provide the plan to mitigate or eliminate the conflict to the satisfaction of the Government.

C.3.5 The contractor agrees to perform those internal functions necessary to support WD close-out in a timely manner. WD closeout will occur 60-90 calendar days after WD performance has concluded.

C.3.6 Excess funding on cost-based CLINs will be de-obligated by the Government once contract performance is 100 percent complete. De-obligation of excess funding does not impact the contractor's right to subsequently submit a voucher reflecting settled amounts and rates IAW FAR 42.705(b), unless otherwise indicated in the contract modification which de-obligated the funding.

C.4 Business Management

The contractor shall manage and control its resources to ensure contractual requirements are met efficiently and economically, including management and control of subcontractor performance. The contractor shall provide all resources necessary to perform the services defined in this contract, except for those items otherwise noted in the WD. The contractor shall be responsible for the administration, operation, and conduct of all personnel providing services under each WD.

C.4.1 Desktop Metrics. If a WD requires desktop metrics (also known as project schedule), the contractor shall develop, maintain, and deliver a contractor developed, logic-driven Desktop Metrics schedule, IAW CDRL A043, Desktop Metrics-Project Schedule, providing the following data: contractual milestones, major decision points, planned events, summary-level activities, intermediate activities, and detailed tasks and planning packages from contract award through completion of its performance. The report shall provide sufficient detail to facilitate Government assessment of schedule realism. The Desktop Metrics shall be integrated, logical network-based schedule and shall include activities from other contracts that impact the project. The contractor shall apply predecessor and successor relationships at the lowest level of tasks and those tasks shall contain projected start and finish dates and baseline start and finish dates. Desktop Metrics shall identify critical paths and provide for slack time to accommodate unexpected program events.

The desktop metrics shall include fields and data that enable the user to access the information by product, process, function, or organizational lines. The desktop metrics shall have a numbering system that provides traceability to the Work Breakdown Schedule (WBS). Progress-to-date status shall include, at a minimum, estimated start and finish dates, actual start and finish dates, estimated percent complete of activities and tasks, remaining duration, and revised forecasts.

C.4.2 Cost and Software Data Reports (CSDR)

C.4.2.1 CSDR are the primary means by which the Department of Defense (DoD) collects data on the costs that contractors incur on DoD programs. Reliable and comprehensive cost data is essential to produce credible cost estimates as required in both statute and regulation. The Governments goals and use of CSDR data is to improve the quality of cost estimates, ensure proper resource allocation occurs within the DoD, and enable data driven decision making by program and department leadership. The contractor shall systematically collect, report, and deliver actual contract costs by work directive in the following reports:

Report Title	CDRL
Resource Distribution Table (RDT) \tab	A005
Cost and Hour Report/Flexfile (DD Form 1423-1)	A006
Maintenance and Repair Parts Data Report	A007
The contractor shall prepare CSDR reports IAW the above listed CDRLs, CSDR Plan, Attachment 0002.	

C.4.2.2 Application to Subcontractors

The contractor shall flow-down CSDR requirements to subcontractors (regardless of subcontractor tier) when the subcontract value is expected to exceed \$50 million using the most likely contractor quantities, hours, or options (as applicable), as required by Department of Defense (DoD) Manual 5000.04 (CSDR Manual). The contractor shall require subcontractors to electronically submit CSDRs deliverables directly to the Defense Cost and Resource Center (DCARC) IAW CDRLs A005-A007. The contractor shall ensure that subcontractors subject

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to CSDR reporting thresholds collect data in sufficient detail to meet Attachment 0002, CSDR Plan requirements. The contractor shall collect and deliver data on all subcontractors to comply with Attachment 0003 RDT, CDRL A005 RDT, and Attachment 0002, CSDR Plan requirements. A subcontract is any agreement, purchase order, or instrument other than a prime contract calling for work or for the material required for the performance of one or more prime contracts.

C.4.2.3 RDT

In accordance with the WD, the contractor shall develop, maintain, and deliver the data item IAW Attachment 0003 RDT and submit it under CDRL A005, RDT. The RDT identifies the value of work assigned to the contractor and its subcontractors by each WBS element listed in Attachment 0002, CSDR Plan, and is the primary means of identifying which subcontractors qualify for CSDR flow down reporting.

C.4.2.4 Cost and Hour Report (Flexfile)

The contractor shall prepare and submit the Cost and Hour Report (Flexfile) IAW CDRL A006. The Cost and Hour Report (Flexfile) reports incurred and forecasted costs and hours related business data in order to perform this contract. The contractor shall utilize the Contract Work Breakdown Structure (WBS) identified in Attachment 0002, CSDR Plan, as the primary framework for contract budgeting and reporting of costs and hours to perform the contract. The contractor shall extend the WBS to provide adequate internal management, surveillance, and performance measurement of the contract. The contractor shall ensure all WBS oriented reporting is compliant with at least the levels identified in Attachment 0002, CSDR Plan.

C.4.2.5 Maintenance and Repair Parts Data Report

The contractor shall prepare and submit the Maintenance and Repair Parts Data Report IAW CDRL A007. This report captures maintenance event data related to each maintenance event.

C.4.2.6 Cost and Software Data Reporting (CSDR) Readiness Reviews

The contractor shall host a CSDR Readiness Review at the contractor's facility or virtually using a screen sharing platform where CSDRs are prepared with the Government's Cost Working Group Integrated Product Team (CWIPT) IAW Defense Federal Acquisition Regulation Supplement (DFARS) 242.503-2(b) and DoD Manual 5000.04 (CSDR Manual). The purpose of the CSDR Readiness Review formally known as the Post Award Conference (PAC) is to review the contracts CSDR requirements and assess how the Contractor's accounting system satisfies the CSDR requirements found in DoD 5000.04 (CSDR Manual) and the CSDR Plan, Attachment 0002. In a briefing presented by the contractor in its own format, the contractor shall:

- Demonstrate how it collects cost data in its accounting system and how that data will be utilized to provide actual cost transactions and minimize cost allocations when preparing CSDR data deliverables.ar- Describe how recurring vs. nonrecurring costs are segregated in its accounting system and for the purpose of CSDR reporting.
- Demonstrate how the data from its accounting system will be mapped into the CSDR reports required by the CSDR Plan, Attachment 0002, and associated CDRLs.
- Present the methodologies used for mapping internal cost accounts to the WBS, specifically showing how individual WBS elements and functional element codes will be populated.
- Propose any changes to the CSDR Plan, Attachment 0002, in order to tailor the plan to the contractor's accounting system, to include any Contractor recommended changes or additions to the WBS elements. These changes may include adjustments to the submission events and/or submission timelines, particularly in the case of a direct reporting subcontractor performing against a different delivery schedule than the associated prime Contractor.

The contractor and CWIPT will also review the initial submission of the Resource Distribution Table (RDT) (CDRL A005), in order to finalize which subcontractors will be required to provide CSDR reporting and electronic submission of deliverables directly to the DCARC and which subcontractors may qualify for a CSDR direct reporting subcontractor waiver.

The Readiness Review shall be held within 60 calendar days after work directive award or the SOWM on a date mutually agreed to by the CWIPT and the Contractor. The duration of the Readiness Review will depend on level of complexity of the program, the contract, and reporting entity's prior experience with the requirement and/or specific issues that may require in-depth discussion. The meeting is typically 1-4 hours but actions with more complex CSDR Plan or less experienced reporting entities should reserve a full working day. For additional planning guidance for the CSDR-Readiness Review meeting reference the CSDR Readiness Review guide on the CADE website (<https://cade.osd.mil/>).

C.4.3 The contractor shall deliver a Project Status Report (PSR) IAW CDRL A009. This report shall provide a description of the work performed against the WD during the PoP of the WD. The PSR report shall include descriptions of WD progress and contributions during the PoP to document achievements against established objectives and plans. Material to be covered may also include a brief description of tasks performed in the reporting period, accomplishments highlighted, technical issues/resolution, and recommendations. The report shall be limited to contractor and subcontractor efforts in performance of the Work Directive being reported.

C.4.4 Performance Management

C.4.4.1 The contractor shall establish, maintain and use an Integrated Performance Management System in the performance of WDs.

C.4.4.2 The contractor shall deliver a Performance and Cost Report (PCR), IAW CDRL A010. The PCR shall include monthly and cumulative-

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to-date Budget, Performance, and Expenditures by WD. This report shall be in contractor format.

C.4.4.3 The WD corresponding to each WBS shall be indicated on the PCR report. The contractor shall break out labor hours, labor dollars, material, Other Direct Costs (ODCs), and total costs by WBS. The Government reserves the right to request the contractor to decompose subcontractor ODCs to include subcontract labor cost, subcontract material cost, and subcontract ODC cost. Cost variances shall be reported in the differences between Budgeted Cost of Work Performed (BCWP) and Actual Cost of Work Performed (ACWP). Schedule variances shall be reported as the differences between BCWP and Budgeted Cost of Work Scheduled (BCWS). The contractor report shall also include the Budget at Completion and a Latest Revised Estimate (LRE) including estimated overrun/underrun for all authorized work. The PCR shall include the PoP for each TO and WD. The contractor shall comply with notification requirements outlined in FAR 52.232-20, Limitation of Cost per TO and WD.

C.4.4.4 The contractor is not authorized to incur hours that exceed the estimate on each executed WD and the hours awarded in each CLIN. Any hours in excess of those awarded are unallowable.

C.4.5 Contract Funds Status Report (CFSR)

C.4.5.1 The contractor shall provide the CFSR IAW CDRL A011. The contractor shall reconcile reporting elements in the CFSR with the PCR as an addendum to the PCR.

C.4.5.2 Every CLIN or subCLIN that is directly billed by the contractor for payment will be reported on a separate CFSR page. The contractor may aggregate multiple related subCLINs on a single CFSR page only if those subCLINs are billed at the CLIN level. The general intent is for data in the CFSR to be segregated in such a way that is one-to-one with how the contractor submits billings to the Government for payment.

C.5 GFP and Contractor Acquired Property (CAP)

C.5.1 All GFP to include GFM and Government Furnished Equipment (GFE) will be listed in Attachment 0001, Government Furnished Property List, which will be incorporated by Task Order.

C.5.2 The contractor shall prepare and deliver a Government Property Inventory Report IAW CDRL A014. The CDRL report shall include for each GFM/GFE/GFI item: current quantity on hand, current usage rate, current condition of items, forecasted usage schedule, and status summary of PQDR submitted on the item (if any). The contractor is authorized to utilize GFP across any TOs issued under this contract. Government assets accountable to other contracts shall not be redirected or used for activities on this contract without written concurrence from the cognizant PCO(s).

C.5.3 The contractor shall not use vehicles for any purpose outside the scope of work for this contract without prior written approval from the PCO.

C.5.4 When the contractor is to acquire property on a reimbursable basis, that property, as CAP for the basis of this contract, shall be deemed GFE. The contractor is required to track all GFE in an electronic data-base and maintain a valid hand receipt from the designated Government site-lead or property book owner. The contractor shall account for 100 percent of all GFP and provide the report to the COR IAW CDRL A035.

C.5.5 Transportation Account Codes

The Government will provide a Transportation Account Code for transportation of Government owned parts, materials, and tools to all locations.

C.5.6 The contractor shall complete a PQDR and deliver a Quality Deficiency Report, IAW CDRL A015, if a deficiency is discovered with GFP. The Government will provide the contractor with disposition instructions for the non-conforming GFM.

C.5.7 The contractor shall complete a Supply Discrepancy Report, IAW CDRL A020, if GFM components are missing or damaged upon receipt. The Government will provide the contractor with disposition instructions for the non-conforming product.

C.6 Total Package Fielding

TPF is defined as executing vehicle hand-off, STTE, COEI, BII, and ASL hand-off to include spare parts, tools and manuals. The contractor shall provide planning, coordination, technical, and management support of all fielding aspects of identified assets.

C.6.1 The contractor shall provide a list of the facilities, logistical, and administrative requirements needed to set up and conduct fielding preparation.

C.6.2 Total Package Fielding

The Government will issue vehicles IAW AR 770-2 and DA PAM 770-2 with Basic Issue Items (BII), Components of the End Item (COEI), and if needed Special Tools & Test Equipment (STTE), Authorized Stockage List (ASL) items, Technical Manuals (including Interactive Electronic Technical Manuals). Additional Authorized List (AAL), and Associated Support Items of Equipment.

TPF activities include supply requisitioning, staging, inventorying, providing caretaker stockage, equipment shipment & hand-off using property book automation systems, precise documenting and closing out of records, and conducting New Materiel Introductory Briefings

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(NMIB), unit level In Process reviews (IPR), and Materiel Requirements List (MRL) reviews. Specific contractor requirements and the scope of work required to support overall TPF activities will be defined in each WD.

C.6.2.1 Reception

C.6.2.1.1 Contractor personnel shall be at the location, specified in the schedule, to download vehicles from the rail head or ship when vehicles arrive. Contractor personnel shall assist the Government with loading/off-loading, and if necessary, chaining/unchaining vehicles from rail cars or ships. Vehicles arriving by ship will be moved to Rail Head or commercial truck. Vehicles arriving by commercial truck will be off-loaded at the Deprocessing and/or PFI locations. Vehicles arriving by rail shall be moved by the contractor, with Government assistance, from the Rail Head to the Deprocessing site and/or PFI Location. FSRs shall either drive the vehicles themselves, or assist the Government team with transporting the vehicles from the download site to where they will be de-processed.

C.6.2.2 The contractor shall inspect vehicles IAW the Preventive Maintenance, Checks and Services (PMCS) section of the Technical Manuals (TM) and identify all deficiencies and shortcomings, with electronic faults isolated to the circuit card or Shop Replaceable Unit (SRU) level through troubleshooting. The contractor shall document deficiencies and shortcomings on the DA FORM 2404 or 5988-E.

C.6.2.3 Regarding TPF services actions, the contractor shall:

- a) Participate and support the Government lead in NMIBs.
- b) Assist Government personnel in preparing the fielding site.
- c) Assist Government personnel in conducting joint inventory of BII, COEI, applying Operations/Modifications kit (Op/Mods), and if required, ASL, AAL and STTE.
- d) Assist Government personnel in preparing documentation for unit signature.
- e) Assist Government personnel in hand-off of vehicle and all TPF materiel.
- f) Assist Government personnel in documenting vehicle serial number and item unique identification (IUID) to the unit receiving it, so that the Global Combat Support System Army (GCSS Army) database can be loaded.
- g) Track shipment of Vehicles, BII and COEI.
- h) Provide a status of TPF events in accordance with CDRL A008, Contractor Field Service Support Status Report.
- i) Receive, load, unload, tie down (shackle), unshackle, transport, de-process, and prepare vehicles for issue during fielding events.
- j) Update, kit, maintain, and deliver the Basic Issue Items (BII), Additional Authorized List (AAL) items, and Components of the End Item (COEI) required for vehicle fielding. The contractor shall provide a Fielding Hand-Off Documentation Report IAW CDRL A016. The contractor shall enter information from fielded vehicles onto DA Form 3161 and information from fielded vehicle BII, COEI, AAL, ASL, and STTE onto DA Form 2062.
- k) Provide and physically attach, mount, or otherwise install all common and unique repair parts necessary to operate and maintain vehicles in -10/-20 standard condition during fielding and training events.
- l) Perform a functional check on all Mission Equipment Packages associated with the vehicles. This includes interoperability and connectivity of all vehicle computer/ communication systems. The contractor shall report deficiencies IAW CDRL A017, Deficiency Report.

C.6.2.4 New Materiel Introductory Brief

The contractor shall be prepared to assist with NMIB activities for the gaining unit and be present at all NMIB sessions as directed or requested by the Government. The contractor shall provide personnel to offer assistance and support as needed.

C.6.2.5 Fielding and Site Preparation

C.6.2.5.1 The contractor shall have personnel present at fielding sites to perform 100% inventories and to prepare vehicles to include BII, COEI, applying Operations/Modifications kit (Op/Mods), and if required, ASL, AAL, and STTE for hand off and/or training. The contractor shall document all major items for each fielding as authorized by the units Modified Table of Organization and Equipment (MTOE) or Tables of Distribution and Allowances (TDA) to determine the proper vehicle configuration prior to hand off to the unit.

C.6.2.5.2 The contractor shall provide serial number and IUID to the Government fielding team, upon request. This documentation is essential for the proper property book transactions to take place in GCSS-Army, Defense Property Accountability System (DPAS), or Logistics Modernization Program (LMP). The contractor shall record the serial numbers of all major assemblies and components and install all Components of End Item (COEI).

C.6.2.5.3 The contractor shall track and record all vehicle shipments, BII, COEI, STTE, ASL, and AAL and deliver this data IAW CDRL A018, Record Vehicle Shipments. This report shall include vehicle arrivals, vehicle inventory report, and shipping discrepancy.

C.6.2.6 TPF Materials

The contractor shall receive, inventory, kit, store, maintain, and consolidate TPF materials received from the Government. The contractor shall provide Maintenance and Repair Parts Data IAW CDRL A008, Contractor Field Service Support Status Report. This report shall list all parts requisitioned due to required repairs, shortages, or missing items.

C.6.2.7 The contractor shall provide FSR technical support during vehicle fielding and training events.

C.6.2.7.1 The contractor shall manage all parts (i.e. new, repair, replacement, etc.), including receiving and storing GFM IAW FAR

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52.245-1. The contractor shall be responsible for the turn-in or disposal of unserviceable parts and equipment.

C.6.2.7.2 The contractor shall document all non-mission essential items not available at the time of initial handoff or re-issue. The contractor shall document this information in a Fielding Report to be delivered IAW CDRL A019. The contractor shall deliver status and document issues (i.e. overages, shortages, damaged material, past due contract delivery schedule dates) IAW CDRL A019.

C.6.2.8 Vehicle Handoff

The contractor shall load, offload, and move end items; perform inventory of vehicles and equipment; perform quality assurance inspection of the vehicles; perform maintenance functions; and adjust, align, service, repair, clean, inspect, and perform road test of end items. The contractor shall provide logistics management support by assisting the Government in preparing DA Form 2062 and DA Form 3161 for unit signature.

C.6.2.9 The contractor shall perform required Maintenance and Parts Management activities detailed in C.8.

C.7 De-Processing, Maintenance, and Preparation for Issue (PFI)

C.7.1 Vehicle Deprocessing

Vehicle Deprocessing is defined as vehicle inspections, component installations, system checks, functional tests, and Preparation for Issue. During this process discrepancies are documented and replacement parts acquired.

Deprocessing is the checkout of vehicles at the deprocessing or handoff site(s) upon arrival from production facilities. The contractor shall de-process all equipment after delivery to the deprocessing site. The contractor shall ensure vehicles are ready to operate prior to issue to the receiving unit.

C.7.1.1 IAW platform specific de-processing checklists, the contractor shall remove all preservative coatings, grease, tape, and packing materials from vehicles and inspect vehicles for any damage incurred during shipment. The contractor shall ensure that all aspects of vehicle operation are checked and verified prior to issuing the vehicle. The contractor shall troubleshoot and repair Government Line Replaceable Units (LRUs) with electronic faults and isolate to the circuit card or Shop Replaceable Unit (SRU) level. The contractor shall ensure that all aspects of vehicle operation are checked and verified prior to issuing the vehicle. The contractor shall troubleshoot and repair Government Line Replaceable Units (LRUs) with electronic faults and isolate to the circuit card or Shop Replaceable Unit (SRU) level.

C.7.1.2 Deprocessing actions shall be performed IAW specific WD requirements and include the following:

- (a) review of vehicle operations,
- (b) road testing (if applicable),
- (c) replacement of failed or discrepant components.

C.7.1.3 During vehicle de-processing and inventory, the contractor shall identify all repair parts, components and major assemblies found to be defective, missing or damaged that render a vehicle (inclusive of end items and major assemblies) not fully mission capable as defined in Army Regulation 700-138, "Army Logistics Readiness and Sustainability," -10/20 Technical Manuals (Attachments 0007-0029), and Deprocessing Checklists, Attachment 0004-0006. The contractor shall deliver a Product Quality Deficiency Report (PQDR), Field/Customer Generated Report IAW CDRL A015.

C.7.2 PFI Inspection and Repair.

The contractor shall conduct a detailed vehicle inspection based on the TMs, Attachments 0007-0029, and the Deprocessing Checklists, Attachments 0004-0006. All Class IX repair part requirements shall be submitted to the Government IAW CDRL A025, Deprocessing and PFI on DD 2404. The contractor shall perform any repair necessary to correct deficiencies and install any on-hand parts to correct shortcomings. All shortcomings and deficiencies shall be noted on a DD 2404, Equipment Inspection and Maintenance Worksheet, against each vehicle.

C.7.2.1 In the event that vehicle platforms are utilized in NET, the contractor shall follow the steps outlined in the PFI inspection and perform repairs before vehicles are fielded.

C.7.2.2 Completed Forms 2404s or 5988-E documenting the faults found during deprocessing and PFI, and the corrective action status, shall be delivered IAW CDRL A025 and provided to the Government Lead on site. A digital copy of the contractor deprocessing checklist and PFI 2404s shall be provided to the gaining units to aid in establishing the maintenance cycle in the Global Combat Support System Army (GCSS-A); however, a WD may provide an alternative documentation and recordkeeping process IAW CDRL A025.

C.7.3 The contractor shall perform required Maintenance and Parts Management activities detailed in C.8.

C.8 Maintenance and Parts Management

C.8.1 Maintenance service activities include technical inspections, servicing, repair of equipment, performing PFI, and vehicle handoff. The contractor shall perform maintenance services IAW TM Series 10 and 20 (TM 10/20) and submit an Inspection and Maintenance Report

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IAW A021. Reporting requirements will be defined in the individual WD CDRL. The contractor shall perform any necessary repairs required to correct identified deficiencies. The contractor shall install on-hand parts to correct shortcomings that occurred during transit.

(a) The Army has one maintenance standard, TM 10 series and TM 20 series (10/20) and can be supplemented by the applied Technical Data Packages.

Army equipment meets the maintenance standard when the following conditions exist:

- 1) The equipment is Fully Mission Capable (FMC). FMC is defined as systems and equipment that are all mission capable and have all Associated Support Items of Equipment installed and operational. An FMC vehicle or system has no faults that are listed in the non-mission capable ready columns of the applicable TM/Interactive Electronic Technical Manuals (IETM) -10 Operator Manuals and -20 Maintenance Manual series PMCS tables, see Attachments 0007-0029.
- 2) All faults are identified, following prescribed intervals, using the items to be checked column of the applicable TM 10/20 PMCS tables.
- 3) Scheduled services are performed at the service intervals required by the applicable TM that is specified in the WD.
- 4) All Government-approved configuration changes are applied to equipment.
- 5) All BII and COEI are present and serviceable.

- (a) Proper use, care, handling, and conservation of materiel per applicable technical publication are mandatory.
- (b) The contractor shall use an electronic database, that allows USG access, to track all vehicle maintenance, including vehicle serial number, maintenance schedules, maintenance tasks, parts replaced, parts on order awaiting replacement, and service notes.

C.8.2 The contractor shall deliver a Contractor Field Service Support Status Report for all maintenance efforts conducted, IAW CDRL A008. Report information shall include equipment on hand, the status of all platforms on hand, the numbers and types of platforms previously handed off, the status of platforms to be handed off, equipment fielding status, hand off dates, gaining unit point of contact, repair parts problems, repair parts consumed, maintenance data, total lead time for each part, and total man-hours expended for each maintenance action, material shortages, and any other issues that may arise relating to the performance of the requirements of this contract.

C.8.3 The contractor shall document all maintenance performed in the appropriate Army maintenance forms IAW DA PAM 750-8 paragraph 3-10. The contractor shall deliver this data IAW CDRL A022, Maintenance Records.

C.8.4. Parts Management

Parts Management is defined as part forecasting, receiving, documenting receipt, storing, distributing, and managing and maintaining parts inventory.

C.8.4.1. The contractor shall monitor, research, and develop resolution of requisition issues (i.e. overage, shortage, cancellation/reject status, unsuitable NSN substitutes, damaged material, or material lost in shipment). The contractor shall deliver this information IAW CDRL A019, Fielding Report. The contractor shall monitor status and document issues (i.e. overages, shortages, damaged material, past due contract delivery schedule dates), and email the COR when there is an issue.

C.8.4.2. Wholesale Supply System Data Transactions

The contractor shall maintain an up-to-date list of wholesale supply system data transactions to accomplish all TPF program requirements and deliver this data IAW CDRL A023, Wholesale Supply System Transactions Report. This list shall be made available to the Government upon request.

C.8.5 The contractor shall maintain a data management system to track parts demand histories for all off-line requisitions. The contractor's database shall be accessible by authorized Government representatives for the duration of the contract's PoP. The contractor shall deliver this data IAW CDRL A024, Parts History Report for Off-Line Requisitions.

C.8.6 Inspection/Repair.

The contractor shall conduct readiness checks using on-vehicle diagnostics systems and shall check for recurring vehicle faults. The contractor shall perform deprocessing or PFI and deliver a completed DD Form 2404 IAW CDRL A025.

C.8.6.1 Systems Check Out

The Government may provide unit-owned communications equipment to the contractor for installation in the vehicles. The communications equipment will be installed by the unit after vehicle hand off. The contractor shall perform systems checkouts to ensure system operability and the identification of unserviceable components.

C.8.6.2 The contractor shall load the latest Vehicle Version Identification or other software requirements. The contractor shall verify vehicle level software functionality prior to vehicle hand off.

C.8.7 Cyclic Maintenance

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The contractor shall perform maintenance operations including deprocessing, reconstitution of vehicles, and follow-on cyclic maintenance for the same vehicles after they have been brought to a 10/20 status IAW Attachments 0007-0029.

C.8.7.1 Cyclic Maintenance includes vehicle receipt, technical inspection, troubleshooting, submission of Class IX requests to the Government, and handling of repair parts provided by the Government. Vehicles with zero deficiencies, no diagnostic faults reported, and no shortcomings, shall be placed into a cyclic maintenance effort that maintains the vehicles in a 10/20 status, or as specifically provided in a WD. The contractor shall transfer vehicles, once fault free, to a low usage cyclic maintenance effort.

C.8.7.2 The contractor shall perform low usage cyclic maintenance (monthly Readiness Checks including Vehicle Diagnostic Management System and Chassis Modernization and Embedded Diagnostics checks and quarterly road march before, during, and after PMCS and correct deficiencies IAW Attachments 0007-0029. The contractor shall perform other tasks to maintain the vehicles in a 10/20 status until such time as the vehicles are issued to a gaining unit. The contractor shall adhere to Readiness Checks as defined by the platform TM. The contractor shall perform a full operator PMCS (Before, During and After) in conjunction with a road march during Month 3. The contractor shall troubleshoot all faults found during these checks and report repair parts for the Government to requisition. Within 96 hours of receipt of the parts, the contractor shall install the repair parts onto the vehicle and bring the vehicle back to a 10/20 status.

C.8.7.3 The contractor shall complete all work required to bring vehicles that are in deprocessing or reconstitution to a 10/20 status until such time as the vehicles are issued to a gaining unit or removed from the Cyclic Maintenance program as directed by the Government. The contractor shall utilize Attachments 0007-0029 to determine which components to replace on the vehicle. The contractor shall replace those parts as specified in the Attachments.

C.8.7.3.1 The contractor shall temporarily replace any inoperable or missing electrical items, with the exception of powerpack related parts (which may be inoperable or missing), with a known working component to verify the functionality of the remaining sub-system. The contractor shall document all inoperable or missing parts and confirmation of system verification on the DA Form 2404, IAW CDRL A025.

C.8.7.3.2 The contractor shall conduct a final preparation for shipment inspection along with weekly PMCS during the 30 business days prior to the Government shipping a vehicle. This information shall be delivered IAW CDRL A008, Contractor Field Service Support Status Report. The contractor shall load vehicles onto trailers and load and tie down vehicles on rail cars. The contractor shall load vehicles IAW Transportation Engineering Agency Pamphlet 55-19 and US Army/local standards. Shipping costs will be paid by the Government.

C.8.7.4 Garrison Field Level Maintenance Support

C.8.7.4.1 The contractor shall perform all scheduled maintenance at required intervals IAW the current released Vehicle Platform specific Electronic Technical Manuals (ETMs) and IETMs, Attachments 0007-0029.

C.8.8 Unscheduled Maintenance

C.8.8.1 Unscheduled Maintenance is defined as unpredictable field-level maintenance requirements that require prompt attention and must be added to, integrated with, or substituted for previously scheduled workloads. The contractor shall perform unscheduled maintenance (on the spot maintenance/repair occurring during training) for each unit during NET to ensure completion of training as scheduled. An unscheduled maintenance event will be identified during Deprocessing, Operator and Maintenance Training (OPNET), and Field Level Maintenance New Equipment Training (FLMNET).

C.8.8.2 The contractor shall ensure vehicles and kits remain in 10/20 status IAW with the current released Vehicle Platform's ETMs and IETMs.

C.8.9 Contingency Operations Maintenance Support

Contingency is defined as operations in locations in support of deployments in hostile areas. Non-contingency is defined as operations in fielding or deployments in support of normal operations in CONUS or OCONUS. Contractor personnel shall be capable of deploying in support of contingency operations within 60 days of WD award by the Government. Maintenance services to be provided include the following:

C.8.9.1 Scheduled Maintenance

The contractor shall perform all scheduled maintenance at required intervals in accordance with the current released Vehicle Platform's ETMs and IETMs for each vehicle variant at each deployment location.

C.8.9.2 Unscheduled Maintenance

The contractor shall ensure vehicles and deployment kits remain in 10/20 status IAW the current released vehicle platform's ETMs and IETMs. The contractor shall provide maintenance support 24 hours per day, seven days per week.

C.8.9.3 Deployment Plan

The contractor shall develop and maintain a deployment plan and checklist, IAW AMC-P 715-18 and AR 715-9, for personnel who deploy in

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support of contingency operations and exercises. The contractor shall certify that deploying contractor personnel have completed the applicable administrative requirements set forth in the contractor's Deployment Checklist. The contractor shall deliver this completed checklist IAW CDRL A026, Certified Deployment Plan Checklist.

C.8.10 Damage to Vehicles

C.8.10.1 The contractor shall immediately notify the PCO and COR, when vehicle damage requires repair beyond field-level maintenance capabilities. The contractor shall assess the damage at the vehicle's location and provide a repair cost estimate IAW CDRL A027, Estimate of Cost to Repair. The contractor shall prepare the Estimate Cost for Damage (ECOD) using DA Form 2404 in accordance with DA PAM 750-8, para 3-10 (reference Figure 3-32).

C.8.10.2 The contractor shall perform vehicle repairs to vehicles not at 10/20 status. The Government will provide the facilities and the contractor shall provide the tools, spare parts, and repair parts required by the contractor to perform authorized repairs if the damage is determined to be due to negligence. If the Government determines vehicle repair is uneconomical, it will coordinate vehicle storage at a Government facility or demilitarization and disposal IAW Army policy.

C.8.11 The contractor shall conduct an after-action review after each fielding event and deliver a Fielding Report IAW CDRL A019.

C.8.12 Reachback Report. The contractor shall deliver CDRL A012, Reachback Report, which documents systems and parts exhibiting excessive malfunctioning or wear, manual passages that are incorrect, software that exhibits excessive malfunction, and other items that materially differ from their intended design or function and are mission critical.

C.8.13 Sustainment Parts Support Analysis. The contractor shall perform a sustainment parts support analysis and deliver data IAW CDRL A008, Contractor Field Service Support Status Report. The sustainment parts support analysis shall be based on historic system and projected failure rates on the platform specific items listed in Attachments 0007-0029 (platform TMs). The contractor's initial submission of CDRL A045 shall include a detailed Sustainment Support Plan with projections for initial sustainment support for each sites ASL and monthly demand requirement. The contractor shall deliver all model input and output data used to develop CDRL A044 (Logistics Maintenance and Repair Parts Data Report) IAW Logistics Product Data/LPD Summaries (LSAR)). The contractor shall support parts procurement for all items listed in Attachments 0007-0029 (platform TMs).

C.9 Equipment Training- New Equipment Training (NET) and Displaced Equipment Training (DET)

C.9.1 Training

The contractor shall conduct NET and DET services IAW AR 350-1. The contractor shall incorporate the training milestone schedule of events into the NET Plan for the OP for which the services are ordered. The Government will review the milestone schedule and if updates are required, the contractor shall complete all updates no later than 60 calendar days prior to the start of NET/ DET. The contractor shall deliver this information IAW CDRL A028, NET Plan and Training Support Package.

C.9.2 NET and DET

C.9.2.1 The contractor shall conduct NET for all operators and maintenance personnel. The contractor shall provide input and recommended changes needed for NET/ DET to the Government NET/DET team and shall receive Governmental approval prior to finalization of training support packages. NET shall be conducted with assistance from military and Government personnel for all operators and maintenance training, as provided in the WD. The contractor shall conduct NET in accordance with the NET Program of Instructions (POI). The NET POI will be provided, by the Government, with the related WD no later than 60 calendar days prior to the start of the NET.

C.9.2.2 The contractor shall provide Training Support Packages (TSPs) and ship the materials to fielding sites 14 calendar days prior to the start of NET. TSPs shall be delivered IAW CDRL A028, NET Plan and Training Support Package, and shall contain the POI, instructor guides, student guides, test package, and media package IAW TRADOC PAM 350-70 Series. Contractor instructors shall provide a copy of training materials to all attendees.

C.9.2.3 Training shall be held at the fielding or receiving units home station at existing training ranges and facilities. The contractor shall provide all items required for conducting training IAW the NET POI. TSPs shall be provided to the units as a stay behind training packet and used to conduct training at the subsequent sites of the receiving unit. For contractor-conducted training courses, the contractor shall develop and deliver a Training Completion Report IAW CDRL A029. CDRL requirements will be defined in the WD.

C.9.2.4 Contractor instructors shall arrive at the training site, IAW the WD, to allow time to prepare for training course execution. Instructors shall de-process and/or repair equipment to be used for training purposes, ensure training aids and materials are provided to students, and prepare the classroom for instruction. If the required training materials, equipment, or facilities are not available, the contractor shall immediately notify the COR and Government NET Manager. The COR or the Government NET Manager will notify the contractor on the decided course of action to be taken to rectify the situation. The contractor shall de-process equipment to be used for training purposes prior to course commencement.

C.9.3 The contractor shall conduct NET following handoff of the vehicles to the gaining units. All Petroleum Oil Lubricants and parts

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required to execute NET will be listed on Attachment 0001, Government Property List.

C.9.4 FSRs shall accompany the units during training exercises, when required by the WD, to provide maintenance support.

C.9.5 The contractor shall ensure FSRs are available to perform scheduled and unscheduled vehicle maintenance and repairs on vehicles used during NET. FSRs may be required to perform vehicle technical inspections, troubleshooting and repair as necessary, submittal of repair part (Class IX) requests to the Government, and handling and installation of repair parts provided by the Government. Once vehicles have no deficiencies and no shortcomings, the FSR shall maintain vehicles in a 10/20 status for the duration of both OPNET and FLMNET. FSRs shall provide vehicle Subject Matter Expert (SME) support during the installation and operational checks performed by the gaining unit for each vehicle prior to hand off for NET conducting a system check out. The contractor shall assist in the layout, inventory, and handoff of the BII, COEI, ASL, and STTE to the unit.

C.9.6 Additional Training. The contractor shall recommend to the Government additional training requirements resulting from design changes via the Logistics Support Analysis, Logistics Review and System Assessment processes. The contractor shall prepare changes to training materials as set forth in individual work directives.

C.9.7 The contractor shall furnish qualified and experienced personnel, per the below listed Instructor Standards, and provide supplies and services necessary to conduct OPNET and FLMNET. The contractor shall attend or present and provide technical expertise as defined in the individual work directive(s), in the New Equipment Materiel in Brief (NMIB) at various fielding locations worldwide.

C.9.8 Contractor instructors shall meet the following NET Instructor Requirements:

- a) Common Faculty Development Program (CFDP) Certified, Instructor Qualified (Or equivalent)
- b) Ability to become certified and validated on specific NET TSP on identified platform
- c) Maintainer instructor possesses maintenance experience in diesel engines, transmissions, hydraulic systems, air systems, fuel systems, and schematics and requirement below.
 - 1. Candidates for this activity will possess skills identified within the following Military Occupational Series (MOS) 91A, 91F, 91H, 91P, 91G, 91M, H9 Identifier.
- d) Operator instructor possesses a valid Commercial Driver's License (CDL), and is experienced in operating track vehicles, operating wheel vehicles, and military communication systems and requirement below.

- 1. Candidates for this activity would possess skills identified within the following Military Occupational Series (MOS) 19C, 13F, 12B, 11B, 19D, 13B, 19K, 21B, 25U, J3 Identifier.

- e) No performance limiting medical conditions
- f) Be able to perform all training tasks

Additional experience and/or training required will be detailed by individual WD, if required.

C.9.9 The contractor shall ensure that all personnel conducting training courses are certified. Contractor instructor certification shall be established by: Common Faculty Development Program (CFDP), or by a civilian certification program through public or private certification process, or by a documented Government-approved Contractor certification program, that requires instructors to (1) present instruction using the conference method (2) present instruction using the demonstration method (3) present instruction using the practical exercise (PE) method. Presentations will be evaluated using a performance evaluation checklist (PEC). To successfully complete this requirement, instructors shall achieve a "GO" on the final PE by presenting a combination of the conference and demonstration or PE methods of instruction and facilitate an AAR following another instructor's presentation in accordance with a PEC. Upon successful completion of a Government approved Contractor certification program, instructors become certified to teach selected NET POI(s). The contractor shall fund travel costs and training cost for non-certified USA CFDP instructors to attend the commercial equivalent certification training. If training is provided by the Subcontractor, the training effort(s) shall follow existing Government instructor certification procedures and related protocol for conduct of vehicle/equipment training. Certification submittals shall be made IAW CDRL A030, Training Certificate, for Government approval. In all cases, Instructor credentials and certifications shall be available to the Government.

C.9.10 The contractor shall provide confirmation of instructor certification IAW CDRL A030, Training Certificate. In addition to the CDRL A030, the contractor shall comply with the following requirements for instructor certification: AR 350-1 (Army Training and Leader Development) Paragraph 7-16 and TRADOC Pamphlet 350-70-3 (Faculty and Staff Development), Paragraphs 4-4, 5-1, 5-2, and 5-3. The contractor shall provide course completion reports in accordance with CDRL A028, Net Plan and Training Support Package. The Government will provide tools, facilities, spares and repair parts, and facility vehicles required by the contractor to validate training materials and certify instructors. The contractor shall maintain enough certified instructors to support the Government fielding schedule.

C.9.11 The contractor shall provide engineering and/or logistics support, and report services provided IAW CDRL A008, Contractor Field Service Support Status Report.

C.10 MWO Installation

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MWO Installation Complexity levels are defined as: (1) Minor MWO installation is defined as software updates or updates to platform(s) not requiring equipment beyond vehicle equipped tools, equivalent to military (-10) level; (2) Moderate MWO installation is defined as vehicle modifications including replacing, repairing, or removing brackets, wire assemblies, or components using tools or skill set beyond the operator's abilities, equivalent to military (-20) level; (3) High MWO installation is defined as removing multiple main assemblies from the platform to modify or alter the assemblies to a new configuration; drilling, cutting, welding, and/or grinding on the vehicle to apply the modification, equivalent military (-30 or higher) level.

C.10.1 The contractor shall install MWO kits IAW the applicable Work Directive and AR 750-10, Army Modification Program. The contractor shall provide the labor, tools, equipment, bench stock material, consumable items, packaging, storage, and other material required to modify the Army Vehicles specified in work directives. The contractor shall maintain common tools, equipment, and materials, and ship to the modification sites in support of the fielding schedule. The contractor shall apply the modification kits to vehicles at Continental US (CONUS) and Outside the Continental US (OCONUS) locations. Completion of this effort is dependent upon vehicle availability within the PoP.

C.10.2 The Government will provide facilities and overhead lift capabilities at all Government locations. In instances when the Government determines that MWO facilities and/or capabilities cannot be provided at CONUS locations, the contractor shall provide these facilities and/or support capabilities.

C.10.3 The contractor shall install MWO kits onto vehicles in accordance with MWO documents. The contractor shall, store, package, and palletize the MWO kit material in support of the modification fielding schedule. The contractor shall provide all tools, bench stock material, and consumable materials required to perform the installation of MWO kits. The contractor shall preserve and package all Spare Parts IAW Government approved packaging data (reference Attachments 0007-0029). If Spare Parts do not yet have Government approved packaging data, the Spare Parts shall be preserved and packed in accordance with MIL-STD-2073-1 with a level of preservation "Military" and level of packing "B" (MIL/B). The contractor shall provide a hardware delivery schedule and status update IAW CDRL A032, MWO kits schedule, reporting the expected and actual quantities on hand for all material. The contractor shall update the Modification Management Information System (MMIS) IAW CDRL A034.

C.10.4 The contractor shall ship material in support of the modification fielding schedule to all locations. For OCONUS shipments, all material shall be packaged and shipped in accordance with US Custom's and Border Protection Rules and Regulations.

C.10.5 The contractor shall conduct a joint Technical Inspection (TI) prior to contractor acceptance of vehicles for modification effort with a Government Representative at each fielding site. The contractor shall conduct inspections utilizing vehicle TMs specified in the WD. The contractor shall maintain the complete TI acceptance documentation throughout the vehicle modification effort. The contractor shall provide the labor, tools, equipment, and/or other material required to retrofit the vehicles specified in the WDs in accordance with the fielding schedule. The contractor shall conduct a joint final TI with a Government Representative utilizing TI acceptance documentation. The contractor shall provide a copy of the completed TI documentation package with vehicle hand-off to the Government Representative IAW CDRL A033, Technical Inspection Package. The contractor shall utilize DA Form 2404 for all TI Documentation Package forms and shall submit each package in digital format through MFT, or as directed in the WD, NLT 3 days after hand-off of vehicle. The contractor shall store the original TI documentation packages throughout the PoP of the work directive. The contractor shall deliver original TI documentation packages through MFT, or as instructed by the COR, NLT 30 days prior to the end of PoP, IAW CDRL A033, Technical Inspection Package.

C.10.5.1 The contractor shall deliver CDRL A034, Modification Management Information System (MMIS) report. The contractor shall utilize DA Form 2408-5. Upon Government approval, the contractor shall submit the approved document to the MMIS database.

C.10.5.2 The contractor shall provide cleared government site, facility and equipment document to the COR upon the completion of each installation site.

C.11 Field Service Representative (FSR)

The contractor shall establish an FSR Technical program. The contractor shall provide all administrative support and site supervision for the FSR Program as described herein.

C.11.1 FSR Support

FSR Support is defined as technical support and maintenance supporting Soldier Training; troubleshooting and repair to include fault identification, and resolution of technical issues for hardware and software; installation and configuration of components; and coaching soldiers through maintenance activities using TMs.

FSRs shall provide technical advice and assistance to vehicle operators and maintainers. FSRs shall perform hands-on maintenance for the purpose of providing instruction and advice to both soldier and civilian maintainers and operators. The FSR may reference IETM, ETMs, Bradley Operator Tablets, Depot Maintenance Work Requirements (DMWRs), National Maintenance Work Requirements (NMWRs), OEM procedures, and/or best commercial practices. FSRs shall be capable of providing on the job training as part of their duties when requested by soldiers. FSRs shall assist soldiers with inspection, testing, installation, calibration, and troubleshooting of the vehicles. FSRs shall conduct on-site field testing and provide technical direction to Ground Combat Tracked System maintainers and operators. FSRs shall identify technical problems and work to resolve issues immediately.

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The contractor shall provide all administrative support and site supervision for FSRs as described herein. The contractor shall provide all personnel, equipment, tools, materials, and supervision necessary to maintain all vehicle operations. FSRs shall provide instruction and assistance for technical repairs and make recommendations to Government personnel with respect to operations, maintenance, repair, and parts supply. The FSR shall report problems and trends such as Field Problem Reports and Fire, Injury, and Accident Reports IAW CDRL A008, Contractor Field Service Support Status Report. The FSRs shall be located at field sites IAW the established WD. The contractor shall provide FSRs for fielding and sustainment activities IAW the established WD. FSRs shall perform and assist Government personnel with vehicle retrofit upgrades and kit installation at various locations.

FSRs shall recommend the need for Failure Analysis (FA).

FSRs work schedule shall coincide with that of the associated Government personnel they are supporting.

FSRs shall perform de-processing, sustainment maintenance, and stay behind maintenance to include Leave Behind Equipment (LBE) and RESET programs, IAW the established WD(s).

C.11.1.1 FSR Certification

FSRs shall be able to perform all levels of repair on military maintenance systems and ability to use technical manuals and engineering data. FSRs shall understand system troubleshooting techniques and must have basic computer skills and be physically capable of performing essential functions. The contractor shall, in conjunction with the Government, develop and deliver an FSR certification test. The test will be reviewed and approved by each of the program offices in PM MAV. The FSR certification test shall be approved by the PM MAV Branch, and Subject Matter Experts from Logistics Product Deployment Branch management within 30 days of contract award, and the contractor shall begin administering the test within 45 days of contract award. The contractor shall, in conjunction with the Government, update the FSR certification test every 24 months.

FSRs shall pass the certification test with a minimum 90% score. FSRs shall be required to recertify every 24 months to retain FSR status. Test results shall be submitted IAW CDRL A030, Training Certificate.

C.11.1.2 CONUS and Non-contingency OCONUS

C.11.1.2.1 For regular deployments, (i.e. planned movements of military forces that are usually scheduled), the contractor shall arrive within 30 days of WD issuance. For CONUS non-contingency efforts, the PoP will be negotiated in the WD.

C.11.1.2.2 For emergency deployments, (i.e. unplanned movements of military forces that require immediate action), the contractor shall arrive at the designated location within two weeks of WD issuance. Examples include natural disasters such as hurricanes, wild fires, global conflicts, etc, where units would deploy to provide assistance. These are not scheduled and often unannounced.

C.11.2 The FSRs shall provide instruction and assistance for technical repairs and make recommendations to orient and instruct army unit personnel with respect to operations, maintenance, repair and parts supply for the vehicles furnished under this contract, for units both CONUS and OCONUS, and report problems. The contractor shall deliver CDRL A008, Contractor Field Service Support Status, as directed by the WD.

C.11.3 The contractor shall provide FSR technical services for vehicle operations, maintenance, repair, and parts supply. Services may include providing user training, technical data collection and reporting, and troubleshooting, repairing, deprocessing, storing, and shipping vehicles and their respective components during transition, training, and unit hand-off. User training shall be provided for assembly and subassembly troubleshooting, component and system fault isolation and repair, and reading hydraulic, pneumatic, and electrical schematics IAW the established WD. FSRs shall investigate and diagnose problems or issues in the field related to vehicle performance, maintenance, and training. Instructions and itineraries will be provided in the established WD. The FSRs shall also perform and assist with vehicle retrofit upgrades and kit installation at various locations.

C.11.4 FSRs shall support unit Combined Training Center (CTC) rotations IAW the established WD. CTC is seven days per week, eight hours per day for 28 days. FSRs shall participate in meetings and in problem investigations, which include problem analysis, failure analysis, fault isolation, providing recommended solutions, and performing trend analysis.

C.11.5 The FSR shall annotate vehicle inspection findings on a DA 2404/5988-E and record the ordering of all parts required to bring the equipment to the 10/20 Standard as defined IAW with the equipment's TMs, IETMs, ETMs, NMWRs, DMWRs, MWOs, drawings or best commercial practices. The contractor shall deliver this information IAW CDRL A025, Deprocessing and PFI on DD 2404 Report.

C.11.6 In the event that the FSR encounters an issue not remedied within the TMs, IETMs, ETMs, NMWRs, and DMWRs, they shall initiate and deliver the DA 2028 IAW CDRL A013, Contractor Evaluation of Technical Publications and Recommended Changes. The FSR may recommend alternate maintenance procedures for incorporation into the appropriate TMs IAW CDRL A013 Contractor Evaluation of Technical Publications and Recommended Changes. By submitting the issue IAW A013, the Government will relay any OEM procedures that are available to address the immediate concern. In the event a malfunction or issue that cannot be resolved through the TM the contractor shall

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contact the program COR for assistance with finding the proper repair procedure.

C.11.7 The contractor shall ensure that deployed employees possess the required licenses per AR 600-55 to operate all vehicles and equipment necessary to perform contract tasks in the theater of operations. Before operating any military owned or leased vehicles or equipment, the contractor employee shall provide proof of license, issued by an appropriate Governmental authority, to the unit or agency issuing the vehicles or equipment.

C.12 Field Service Mechanic (FSM) Field Support Maintenance

C.12.1 The contractor shall provide FSMs to perform scheduled and/or unscheduled maintenance as requested by Army unit personnel for fielded vehicles (CONUS and OCONUS) to ensure vehicles are in 10/20 status IAW the approved TMs for each type of vehicle. The Government will provide the following for the support of FSMs, when available: Test Measurement and Diagnostic Equipment (TMDE) and field authorized common, special, and peculiar support equipment to include tools, appropriate office space and furnishings. If not available from the Government, the contractor shall provide the required field authorized common, special, and peculiar support equipment to include tools. The contractor shall report repair parts consumed and maintenance data, and deliver this data IAW CDRL A008, Contractor Field Service Support Status Report.

C.12.2 The contractor shall provide FSMs to act as maintenance augmentation support to Government and Army units as requested for CONUS and OCONUS locations. The contractor shall provide maintenance assistance, to consist of repair, troubleshooting, and service support, for the vehicles within the contract. The contractor shall only use US Army or OEM provided diagnostic equipment and software.

C.12.3 The contractor shall participate in supporting unit assigned meetings and in problem investigations which include problem analysis, fault isolation, and provide recommended solutions.

C.12.4 The FSMs shall provide assistance to Army units and work with unit maintenance personnel with respect to operations, maintenance, and repair and parts supply for the vehicles furnished under this contract, for units both CONUS and OCONUS, and deliver IAW CDRL A008, Contractor Field Service Support Status Report, and its related WD.

C.12.5 The FSMs shall be located at field sites, as authorized to meet the requirements of the contract in a manner that is both economical and beneficial to the USG. The FSMs shall be experienced, qualified, and certified (as required) to perform the functions laid out in this contract.

C.12.6 The contractor shall provide FSM maintenance services which include vehicle operations, maintenance, repair and parts supply. Services may include technical data collection and reporting, troubleshooting, repairing, and shipping vehicles. User training consists of assembly and subassembly troubleshooting, component and system fault isolation and repair, and reading hydraulic, pneumatic, and electrical schematics. The effort may include investigation and diagnosis of problems or issues in the field related to vehicle performance and maintenance. The FSM shall also perform and assist with vehicle retrofit upgrades and kit installations at various locations as required.

C.12.7 FSMs shall support unit CTC rotations as authorized by work directive. CTC is seven days per week, eight hours per day for 28 days. The FSR shall support meetings and problem investigations, which include problem analysis, failure analysis, fault isolation and providing recommended solutions, as well as performing trend analysis.

C.12.8 The FSM shall prepare and submit reports IAW CDRL A008, Contractor Field Service Support Status Report.

C.12.9 The FSM shall annotate findings on a DA 2404/5988-E and record the ordering of all parts required to bring the equipment to the 10/20 Standard as defined IAW the equipment's TMs, IETMs, ETMs, NMWRs, DMWRs, MWOS, drawings, or best commercial practices.

C.12.10 In the event that the FSM encounters an issue not remedied within the TMs, IETMs, and ETMs, or an error is detected, they shall leverage an FSR to initiate the DD 2028, Contractor Evaluation of Technical Publications and Recommended Changes. The FSRs may recommend any alternate maintenance procedures for incorporation into the appropriate TMs by utilizing the DA 2028 Contractor Evaluation of Technical Publications and Recommended Changes. By submitting the issue to the provided mailbox, the Government will relay any OEM procedures that are available to address the immediate concern.

C.12.11 The contractor shall ensure that deployed employees possess the required licenses, per AR 600-55, to operate all vehicles and equipment necessary to perform contract tasks in the theater of operations. Before operating any military owned or leased vehicles or equipment, the contractor employee shall provide proof of license, issued by an appropriate Governmental authority, to the unit or agency issuing the vehicles or equipment.

C.13 OCONUS SUPPORT

Contractor personnel may be required to deploy in OCONUS areas of operation for fielding, exercises, or MWO applications. The contractor acknowledges that such operations are inherently dangerous and accepts the risks associated with contract performance in this environment. Each military operation shall evolve differently depending upon mission. The contractor shall document all contractor personnel acknowledgement prior to deployment.

C.13.1 Immigration, Customs and Local Rules

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C.13.1.1 Depending on the SOFA or other international agreements, all contractor employees may be subject to the customs, processing procedures, laws, agreements and duties of the country in which they are deploying to and the procedures, laws and duties of the US upon re-entry. The contractor shall verify and comply with all requirements.

C.13.1.2 The contractor is responsible for documenting contractor status for performance in OCONUS locations. The contractor shall work with the COR to provide information required by the Host Country Government to secure technical expert status, as required.

C.13.1.3 The contractor is responsible and authorized to obtain (i) all passports, visas, and other documents necessary for contractor personnel to transverse through and within the Area of Operation and (ii) the customs, immigration, or similar liabilities of its contractor personnel.

C.13.1.4 Upon arrival to the host country, the contractor personnel may be required to obtain locally required identification cards.

C.13.2 The contractor shall provide support to US Army personnel, National Guard, FMS, and USG civilians at various CONUS and OCONUS locations.

C.13.3 The contractor shall provide FSR support for vehicles, as specified in the WD, at OCONUS locations to support military exercises within the host country. FSRs shall provide technical assistance, field level maintenance, and training during training events for the vehicle systems within the area of operations specified in the WD.

C.13.4 The contractor shall input FSR Support Activities into the Total Enterprise Asset Management System (TEAMS) database, or into another database as directed by the COR, on a weekly basis. The contractor has 21 days after the end of the work week to enter the information into the database. The contractor shall deliver the information input into the TEAMS database IAW CDRL A008, Contractor Field Service Support Status Report and its related WD.

C.13.5 In the instance that any location identified in WDs issued for OCONUS FSRs becomes too dangerous to meet contractual requirements, the contractor is authorized to mobilize its workforce to a safer location. The contractor shall notify the PCO no later than two business days from mobilizing its workforce. If the Department of State issues an evacuation order, approval to evacuate is not required but the contractor will inform the PCO and Interagency Program Office (IPO) of the demobilization plan.

C.13.6 Government support with access to Government facilities may be available through WD or letter of authorization.

C.14 OCONUS Contingency

C.14.1 Deployed FSRs will be authorized two weeks of non-paid R&R leave for every six months spent in the Area of Responsibility (AOR). The Government shall provide transportation from the AOR to the Point of Debarkation and from the Point of Debarkation to the AOR. The contractor shall schedule arrangements for R&R travel.

C.14.2 OCONUS Contingency Processing

C.14.2.1 OCONUS contingency deployments require contractor personnel to process and de-process through the Individual Replacement Deployment Operations (IRDO) Complex. The Government will schedule contractor personnel for processing through the IRDO Complex, Camp Atterbury, IN, no later than four weeks before deploying. The schedule is subject to change based on space availability at the IRDO Complex. All contractor personnel shall participate in training through the IRDO Complex for deployment to contingency locations. The contractor shall provide the USG COR he names of the employees deploying to the AOR no later than seven calendar days after award of WD. The contractor shall complete the IRDO Personal Information Data Requirements. The Government will in turn issue a Letter of Authorization (LOA) for those employees deploying. The LOA will contain all the information that is needed to request a Call Forward and the data required to input the information into the Synchronized Pre-deployment & Operational Tracker (SPOT) system. The contractor is required to track its employees in the SPOT system. Personnel will be scheduled for processing through the IRDO Complex, Camp Atterbury, IN, no later than four weeks before deploying. This schedule is subject to change based on space availability at the IRDO Complex.

C.14.2.2 The contractor shall provide transportation for its personnel from point of origin to the IRDO Complex, Camp Atterbury, IN, and return, except for the initial and final trips. The Government will provide transportation from the IRDO Complex to the AOA, and return, upon completion of the mission. If Government travel is unavailable, travel for these trips will be IAW the applicable WD.

C.14.2.3 The contractor shall deliver a list of employees required to deploy (Contractor's Personnel Roster), no later than three weeks prior to each scheduled deployment. The COR will schedule enrollment in the Government deployment process. The contractor shall deliver the FSR and Mechanic Summary Report, IAW CDRL A008, Contractor Field Service Support Status Report and its related WD. The contractor shall obtain approval from the COR for the allowance of payment for entry and exit duties on personal items in excess of 100 pounds per traveler in possession of contractor employees and in accordance with US Customs Service rates and restrictions.

C.14.2.3.1 Reception, Staging, Onward Movement and Integration (RSO&I)

Upon arrival in Deployment locations, contractor employees will receive RSO&I, as directed by the Logistics Support Element (LSE), the

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Contracting Officer, or his/her designated representative. The contractor shall be prepared to move contract material and equipment using US Government transportation and to comply with applicable transportation regulations, such as; Military Standard Transportation and Movement Procedures, etc., for safety, packaging, tie-down, etc.

C.14.3 Living Conditions

C.14.3.1 The Government will provide housing for contractor employees at OCONUS locations in which contingency operations are being conducted, except Kuwait.

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C.14.3.2 The contractor will be provided with Government subsistence which includes meals, billeting, emergency medical care, emergency dental, and access to morale and welfare activities and available chaplains as authorized in the Letter of Authorization (LOA) or elsewhere in this contract. If subsistence changes during deployment (e.g., the Combatant Commander or subordinate Commander changes the authorizations), the contractor must notify the PCO.

C.14.3.3 Support and Force Protection. As OCONUS performance for this effort will be located in various locations in contingency operations, the PdM which supports the platform for which the work is performed is identified as the entity that will provide all support for personnel, including routine medical and dental care, transportation between bases and airport locations, billeting, security and logistical needs to support this effort. The Government will not provide a vehicle for use within an installation. While performing duties in accordance with terms and conditions of the contract, the Service Theater Commander will provide force protection to the contractor employees commensurate with that given to Service and Agency (e.g., Army, Navy) civilians in the operations area.

C.14.3.4 Relocation/Evacuation. The Government may, at its discretion, relocate personnel (who are citizens of the US; aliens in residence in the US; or third country nationals, not residents in the host nation) to a safe area or evacuate them from the area of operations as required by the operational situation. The US State Department has responsibility for evacuation of nonessential personnel. In the event an area where contractor personnel or subcontractors are performing becomes a contingency area, such person(s) shall be evacuated, after PCO and COR notification, in the same manner and in accordance with the evacuation of nonessential personnel from the country's US Embassy to a safe location in accordance with US Department of State regulations until the area is no longer considered a contingency area. Any resulting delay in Contract performance shall be considered an excusable delay in accordance with FAR 52.249-14, Excusable Delays.

C.14.3.5 Contractor Memorandum of Understanding for Deployed Employees. The contractor shall ensure that each employee hired by or for the contractor (including subcontractors) acknowledges in writing that they understand the danger, stress, physical hardships, and field-living conditions that are possible if the employee deploys in support of military operations. The contractor shall ensure that contents of this paragraph are included in all subcontracts.

C.14.3.6 Security Background Check. The contractor shall maintain a completed background check on file for each employee that will be deployed.

C.14.4 Medical Information

C.14.4.1 Physical Requirement. Prior to deployment, the contractor shall ensure that all deployable personnel are medically and physically fit to endure the rigors of deployment in support of a military operation. The contractor employees who fail to meet medical or fitness standards, or who become unfit through their own actions, will be removed from the area of operations and replaced at the contractor's expense. All personnel shall have a complete set of immunizations and inoculations for entry into the deployment location.

C.14.4.2 Medications. Deploying contractor employees shall carry with them a 90-day supply of any medication they require. Military facilities will not be able to replace many medications required for routine treatment of chronic medical conditions such as high blood pressure, heart conditions, asthma, and arthritis. Contractor employees shall review both the amount of the medication and its suitability in the foreign area with their personal physician and make any necessary adjustments prior to deployment.

C.14.4.3 Eyeglasses. If glasses are required, the contractor employees shall deploy with two pairs of glasses and a current prescription. Copies of the prescription shall be provided by the employee to the IRDO Complex so that eyeglass inserts for use in a compatible chemical protective mask can be prepared.

C.14.4.4 Medical Screening. The Government does require a medical screening at the IRDO Complex for FDA approved immunizations, which shall include DNA sampling.

C.14.5 Additional Deployment Information

C.14.5.1 Identification Tags, Geneva Convention, and Common Access Cards. The contractor shall ensure that all deploying individuals have the required identification tags and cards prior to deployment. In addition to the DD FM 489 (Geneva Convention Card) issued at the point of deployment, all contractor employees will be issued personal identification tags and CACs, if available before deployment. Personal identification tags will include the following information: full name, social security number, blood type, and religious preference. Contractor employees shall maintain all issued cards and tags on their person at all times while OCONUS. These cards and tags shall be obtained through the IRDO Complex and shall be promptly returned to the Government upon redeployment.

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C.14.5.2 VISA. The contractor shall ensure that their employees obtain any appropriate VISA before they will be allowed to enter the IRDO Complex. The contractor shall ensure that any employee performing work in Germany for more than 90 days, meets requirements of the Department of Defense Contractor Personnel Office (DOCPER) for an extended stay in Germany.

C.14.5.3 Employees Emergency Contact Data. Before deployment, the contractor shall ensure that each of its employees complete at least three DD Forms 93, Record of Emergency Data Cards. One completed form is for the IRDO Complex, one copy for the Army's Casualty & Memorial Affairs Operations Center (CMAOC), and one copy for the Army Materiel Command (AMC) LSE contractor Coordination Cell (CCC) or another designated liaison.

C.14.5.4 Next of Kin Information. As Executive Agent for mortuary affairs, the Army will facilitate the notification of Next of Kin in the event that a US citizen contractor employee accompanying the force OCONUS dies, requires evacuation due to injury, or is reported missing. The contractor shall notify the employee's primary and secondary Next of Kin. In some cases, an Army Notification Officer may accompany the contractor's representative. Notification support by the Army is dependent upon each contractor employee completing and updating as necessary, the DD Form 93, Record of Emergency Data Card. The contractor is responsible for the evacuation of contractor employee remains.

C.14.5.5 Employees Health and Life Insurance. The contractor shall ensure that health and life insurance benefits provided to its deploying employees are in effect in the theater of operations.

C.14.5.6 Unless prohibited by international agreement, the PCO shall provide a LOA for deployed contractor personnel. Contractor employees shall carry this LOA with them as authorization for use of Government transportation, medical facilities, billeting, and other entitlements. Contractor employees shall not use Invitational Travel Orders.

C.14.5.7 The contractor shall at all times remain responsible for the conduct of its employees. The contractor shall promptly resolve, to the Government's satisfaction, all performance and conduct issues of its employees identified by the Government. Failure to correct identified performance or conduct issues may result in the Government directing the contractor, at its, to replace and, if necessary, repatriate any non-compliant employee. This action is at the Government's discretion and does not waive any other rights or remedies available under this contract, including the right to terminate for default.

C.15 Environment, Safety, and Occupational Health (ESOH)

C.15.1 Environmental Compliance

The contractor shall ensure that all aspects of contract execution are in compliance with applicable International, US Federal, State, Interstate, and/or Local environmental regulations and requirements. Such regulations, conditions, and instructions in effect or prescribed by an International, Federal, State, Interstate, or Local governmental agency are hereby made a condition of this agreement. The contractor shall immediately notify the COR if the Government gives any direction the contractor believes may result in violation of applicable law(s) and/or regulation(s). For contractor activities conducted at the Government facility or installation, the contractor shall immediately notify the Government of any nonconformance and/or noncompliance(s) related to this Statement of Work.

C.15.2. Hazardous Materials Management

Hazardous materials are defined by FED-STD-313F, dated October 12, 2018, Section 3.2. A radioactive material is any source material, as defined by Title 10, Code of Federal Regulations, Part 40, "Domestic Licensing of Source Material," in excess of 0.05 percent by weight.

C.15.2.1 Prohibited Materials

The hazardous materials prohibitions stated below shall apply to all components, parts, and materials provided under this contract, including items purchased through a subcontractor, vendor or supplier, Commercial Off the Shelf components, OEM parts, and manufactured parts. These requirements do not apply to GFM items.

Prohibited materials are as follows:

- Asbestos
- Beryllium
- Cadmium,
- Class I and Class II Ozone Depleting Substances
- Hexavalent Chromium
- Hydrofluorocarbons (HFC)
- Lead
- Mercury
- Radioactive Materials
- Group 1 Agents classified as carcinogenic to humans by the International Agency for Research on Cancer Monographs

C.15.2.2 Exceptions to the Hazardous Materials Requirements

Exceptions to the Prohibited Materials are as follows:

- Cadmium and hexavalent chromium on electrical connectors and back shells used to mate with cadmium electrical connectors on GFM or used in an Automatic Fire Extinguishing System

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- Products listed under "Priming" and "Topcoating" in MIL-DTL-53072, Table I
- Lead-acid batteries
- Lead solder
- Leaded battery terminal adaptors/clamps
- Silica containing up to 0.35% lead by weight
- Fuels specified for use in the requirements of this contract
- Steel containing up to 0.35% lead by weight
- Aluminum containing up to 0.4% lead by weight
- Copper and Brass alloys containing up to 4% lead by weight
- Beryllium and Beryllium alloys used in electrical components
- Mercury containing components compliant with European Union (EU) Directive 2011/65/EU (RoHS 2)
- Trace amounts of identified prohibited materials contained in base materials and/or alloys. Trace amounts are defined as <0.1% for carcinogens and <1% for all other materials.
- HFCs in fire extinguishing systems in crew-occupied spaces
- R134a in ground vehicle air conditioning systems

C16. Security

C.16.1 Security Classification Specification

The contractor shall adhere to the requirements of the DD Form 254, Attachment 0033, and the AMPV Security Classification Guide, Attachment 0035, M88 Security Classification Guide, Attachment 0036, and Bradley Security Classification Guide, Attachment 0037, for the protection of the unclassified information, CUI, and classified information, data, hardware, and software generated for or provided in support of the program. To preserve national security interest, the contractor shall ensure all aspects of the contract and work performed are evaluated for conformance with security procedures and standards as identified in this contract, the National Industrial Security Program Operating Manual (NISPOM), NISPOM Rule, and the DD Form 254.

C.16.2 Classification

The highest classification associated with this contract is Secret. The contractor shall ensure personnel needing access to classified information meet clearance and access requirements. Refer to the DD Form 254 for additional security and personnel requirements.

C.16.3 Manage Security

The contractor shall manage security activities at the unclassified, CUI, and all applicable classification levels encompassing all security disciplines (Information Security, Operations Security, Anti-Terrorism and Force Protection, International Security, Physical Security, Communications Security, Information Systems Security, and Personnel Security). This requirement is to utilize the above security functions to protect the programs' information and technology.

C.16.4 CUI

CUI provided to or generated pursuant to this contract shall be protected. The procedures for the protection of CUI are outlined in the CUI Attachment to the DD Form 254, DoDI 5200.48, and DFARS 252.204-7012.

The contractor shall ensure any covered defense information provided by the Government under this contract is destroyed or sanitized from contractor-owned media and reported in accordance with NIST Special Publication (SP) 800-88, Rev 1, Guidelines for Media Sanitization, December 2014, or returned to the owning organization upon the completion of the contract or as directed by the Contracting Officer.

C.16.5 Public Release Requests

The contractor shall screen all information submitted for determination of public release to ensure it is both unclassified and technically accurate. The contractor shall provide a letter of transmittal certifying a screening was conducted and that the contractor attests that the information is unclassified and technically accurate, to the best of the contractor's knowledge. The contractor shall not release program information outside of program channels until the Government review process is complete. The contractor shall submit all requests for public release approval through the PCO for a review by Government technical and security personnel and by the Government's Public Affairs Officer (PAO). The PCO will, after appropriate review, either authorize or reject the request to disseminate Government information publicly. Note that authorization may be given contingent on specified changes being made to the material for which public release has been requested. The program requires 45 calendar days to process the request and render a decision. Requests for public release shall be sent electronically via encrypted email using cryptographic products that are National Institute for Standards and Technology/National Information Assurance Partnership (NIST/NIAP) approved or mail a Compact Disc/Digital Video Disc (CD/DVD) using US Postal First Class mail.

C.16.6 Counter-Intelligence Awareness and Reporting (CIAR).

Annual CIAR training and reporting requirements are applicable to all Army contractors if included in the contract (Statement of Work and or DD Form 254), this is applicable to all contract employees not just those contractor employees with security clearances. Per AR 381-12, Counter-Intelligence Awareness and Reporting (CIAR), contractor employees must receive annual CIAR training by a Counter Intelligence agent or other trainer as specified in AR 381-12, Chapter 3.

C.16.7 Operations Security (OPSEC) Requirements

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The contractor is not required to produce an OPSEC Plan. US contractors with access to CUI (e.g. technical information, information marked with a distribution statement or CUI) or classified information shall be required to follow the PM MAV OPSEC Plan, Attachment 0034. The contractor shall ensure that new personnel receive PM MAV OPSEC Plan specific training within 30 days of program assignment. To ensure awareness of the PM MAV OPSEC Plan, the contractor shall provide annual training for personnel supporting this contract on the contents of the PM MAV OPSEC Plan and have available upon request all certificates of completion for initial and annual reporting requirements. Personnel who have taken the PM MAV OPSEC Plan training within the last 12 months shall be considered compliant unless the PM MAV OPSEC Plan has been revised since the last training. The contractor shall report IAW CDRL A037, OPSEC Plan Training Report.

C.16.8 TEMPEST Requirements

Prior to the implementation of any TEMPEST countermeasures or expenditure of funds, a TEMPEST assessment will be conducted at every contractor facility electronically processing classified information. TEMPEST assessments will be marked at a minimum of CUI or classified according to content. The Army TEMPEST staff will review the information provided and determine if a formal TEMPEST Countermeasures Review (TCR) is required. Notification will be provided by the Government Security Manager to the point of contact identified in the submission. The contractor will send in a TCR request for their facility within 30 days after contract award to the Program Security Manager. The TCR request, if unclassified, shall be sent electronically via encrypted email using cryptographic products that are National Standards and Technology/National Information Assurance Partnership (NIST/NIAP) approved or mail using US Postal First Class mail. If the TCR request is classified, please contact the Program Security Manager for instruction. This requirement shall be flowed down to all US subcontractors that use Information Systems to process classified material. This meets the requirements as identified in the DFARS 252.239-7000 and AR 380-27.

C.16.9 Information Flow Down

The contractor shall ensure security requirements and guidelines are followed IAW the scope above flowed down to US subcontractors and consultants.

C.16.10 OPSEC Awareness Training Requirements

All contractor employees shall complete "OPSEC Awareness for Military Members, DoD Employees and Contractors" training. This training is available at: <https://www.cdse.edu/Training/eLearning/GS130/>. All training shall be completed and reported IAW CDRL A038, OPSEC Awareness (Level 1) Training Report and have available upon request all certificates of completion for initial and annual reporting requirements. An alternative method is to conduct face-to-face training in a classroom or auditorium setting, utilizing a downloaded version of the CDSE OPSEC Awareness training with a sign-in or attendance sheets along with copies of the completed test questions/exam from the CDSE training for each participant verifying passing with a test score of 75% or better in lieu of certificates. The instructor shall be OPSEC Level II certified to perform this alternative training method.

C.16.11 CAC or Installation Access Identification: Issuance of a CAC is authorized under this contract if one of the following requirements under Issuance is met.

C.16.11.1 Issuance: The contractor employee shall be issued a CAC only if duties involve one of the following: (1) Logical access to a DoD network that requires a CAC for login or a DoD website that only accepts the CAC for login access; or (2) Both physical access to a DoD facility and access, via logon, to DoD network on-site or remotely. Access to a DoD network must require the use of a computer with Government-controlled configuration or use of a DoD-approved remote access procedure in accordance with Defense Information Systems Agency; or (3) Physical access to multiple DoD facilities or multiple non-DoD federally controlled facilities on behalf of the DoD on a recurring basis for a period of 6 months or more. Contractor employees who meet these requirements shall be issued a CAC as explained at <https://www.cac.mil/common-access-card/getting-your-cac-for-contractors/>. Contractor employees who do not meet the requirements for a CAC but are required to have access to a government installation shall be sponsored for an installation Identification card by the COR and provide all information to comply with adjudication standards and procedures using the National Crime Information Center Interstate identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander agreements and other theater regulations.

C.16.11.2 Protection and Handling of Identification (ID) Cards and Reporting Lost or Stolen Cards: For CAC, refer to <https://www.cac.mil/common-access-card/managing-your-cac/>. Installation identification or badge shall be displayed while on the installation on the front of the outer garment between the shoulder and waist. The contractor is responsible for ensuring all ID cards are properly safeguarded and accounted for at all times. The contractor shall immediately file an installation police report in cases of loss, theft, forgery, or damage and report to the COR.

C.16.11.3 Return of ID Cards: The contractor shall ensure that all employees, including all subcontractor employees at all tiers, return installation and/or access badges IAW FAR 52.204-9 to the Visitor Control Center for deactivation and destruction. If a contractor employee's badge is not returned, the contractor shall report, as soon as the incident is discovered, the unrecovered badge to the Installation Police. Contractor employees in possession of a CAC shall be responsible for turning in the CAC IAW FAR 52.204-9 and providing the CAC to the COR. All ID cards (installation or CAC) are property of the US Government.

C.16.12 Antiterrorism (AT) Level 1 Training

All contract employees conducting work on a DoD controlled installation, facility or area shall complete initial AT Level 1 training and annual training through the life of the contract. AT Level I awareness training is available at the following website: <https://jkodirect.jten.mil/pdf/at11/launch.html>. All contractors shall adhere to CDRL A039, Antiterrorism Level 1 Training Report training and reporting requirements training and have available upon request all certificates of completion for initial and annual

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reporting requirements. An alternative method is to conduct face-to-face training in a classroom or auditorium setting, using a sign-in or attendance sheets in lieu of certificates. The instructor shall be Antiterrorism Level II certified and be an appointed Antiterrorism Officer to perform this alternative training method.

C.16.13 iWatch Training

The contractor shall complete Government provided iWatch training for all contractor personnel supporting the contract who are operating on a DoD controlled installation, facility or area. This training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. The contractor shall deliver certificates of completion IAW CDRL A040, iWatch Training Report. Additionally, the contractor shall have available upon request all certificates of completion for initial and annual reporting requirements. Training shall be obtained at: <https://www.mepcom.army.mil/Home/contractors/>.

C.16.14 Access to Government Information Systems Requirements

All contract employees with access to a government information system shall be registered in the ATCTS (Army Training Certification Tracking System) at <https://atc.us.army.mil/iastar/index.php>. All contract employees shall complete the DoD Information Assurance Awareness training prior to being granted access to government information systems. This training is required to be completed annually for the duration of the contract. The minimum security investigative requirements for access to government information systems is Tier 1 formally known as "National Agency Check with Inquiries (NACI)" and DISS needs to reflect IT-III (Non-Privileged Access).

C.16.15 Antiterrorism (AT) Awareness Training for Contractors Traveling OCONUS

Contractor employees and associated subcontractor employees shall receive government-provided Anti-Terrorism (AT) awareness training specific to the AOR as directed by AR 525-13. Specific AOR training content is to be directed by the combatant commander, with the unit Anti-Terrorism Officer (ATO) being the local point of contact.

C.16.16 Covered Defense Information

C.16.16.1 The contractor shall identify all covered defense information associated with the execution and performance of this contract. At the post-award conference the contractor and the Government/Program Office shall identify and affirm marking requirements for all covered defense information, as prescribed by DODI 5200.48, CUI, and DoDI 5230.24, Distribution Statements on Technical Documents, to be provided to the contractor, and/or to be developed by the contractor, associated with the execution and performance of this contract.

C.16.16.2 The contractor shall track all covered defense information associated with the execution and performance of this contract. The contractor shall document, maintain, and provide to the Government, a record of tier 1 level subcontractors, vendors, and/or suppliers who will receive or develop covered defense information as defined in DFARS Clause 252.204-7012, and associated with the execution and performance of this contract. The contractor shall report IAW CDRL A041, Contractor's Record of Tier 1 Level Suppliers Receiving/Developing Covered Defense Information.

C.16.16.3 The contractor shall restrict unnecessary sharing and/or flow down of covered defense information associated with the execution and performance of this contract. The contractor shall restrict unnecessary sharing and/or flow down of covered defense information as defined in DFARS Clause 252.204-7012, and associated with the execution and performance of this contract in accordance with marking and dissemination requirements specified in the contract and based on a 'need-to-know' to execute and perform the requirements of this contract.

C.16.16.4 The contractor shall flow down the requirements 15.6.1 and 15.6.2 to their tier 1 level subcontractors, vendors, and/or suppliers.

C.16.16.5 System Security Plan

C.16.16.5.1 System Security Plan and Plans of Action and Milestones (SSP/POAM) Reviews

C.16.16.5.1.1 Within 30 days of contract award, unless otherwise notified by the Government, the contractor shall make its System Security Plan(s) (SSP(s)) for its covered contractor information system(s) available for review by the Government at the contractor's facility. The SSP(s) shall describe how the National Institute of Standards and Technology (NIST) Special Production (SP) 800-171 security requirements are implemented as required by DFARS clause 252.204-7012, which is included in this contract, and identify all applicable Commercial and Government Entity Code codes affected. The contractor shall fully cooperate in the Government's review of the SSP(s) at the contractor's facility. The contractor shall report IAW CDRL A042, Contractor's Systems Security Plan and Associated Plans of Action to Implement NIST SP 800-171 on a Contractor's Internal Unclassified Information System.

C.16.16.5.1.2 If the Government determines that the SSP(s) does not adequately describe how the NIST SP 800-171 security requirements are implemented, then the Government shall notify the contractor of each identified deficiency. The contractor shall correct any identified deficiencies within 30 days of notification by the Government. The contracting officer may provide for a correction period longer than 30 days and, in such a case, may require the contractor to submit a POAM for the correction of the identified deficiencies. The contractor shall immediately notify the contracting officer of any failure or anticipated failure to meet a milestone in the POAM.

C.16.16.5.1.3 Upon conclusion of the correction period, the Government may conduct a follow-on review of the SSP(s) at the contractor's

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facilities. The Government may continue to conduct follow-on reviews until the Government determines that the contractor has corrected all identified deficiencies in the SSP(s).

C.16.16.5.1.4 The Government may, in its sole discretion or in response to a cyber incident, conduct subsequent reviews at the contractor's site to verify the information in the SSP(s). The Government may conduct reviews at any time upon 30 days' notice to the contractor.

C.16.16.5.2 Compliance to NIST SP 800-171

C.16.16.5.2.1 The contractor shall fully implement the CUI Security Requirements in NIST SP 800-171 in effect at the time the solicitation is issued or as authorized by the Contracting Officer, or establish a SSP(s) and POAM(s) that varies from NISP SP 800-171 only in accordance with DFARS clause 252.204-7012(b)(2), for all covered information systems affecting this contract.

C.16.16.5.2.2 Notwithstanding the allowance for such variation, the contractor shall identify in any SSP and POAM its plans to implement the following, at a minimum:

- (1) Implement Requirement 3.5.3 (Multi-factor authentication). This means that multi-factor authentication is required for all users, privileged and unprivileged accounts that log into a network. In other words, any system that is not standalone shall be required to utilize acceptable multi-factor authentication. For legacy systems and systems that cannot support this requirement, a combination of physical and logical protections acceptable to the Government may be substituted;
- (2) Implement Requirement 3.1.5 (least privilege) and associated Requirements, and identify practices that the contractor implements to restrict the unnecessary sharing with, or flow of, covered defense information to its subcontractors, suppliers, or vendors based on need-to-know principles;
- (3) Implement Requirement 3.1.12 (monitoring and control remote access sessions) Require monitoring and controlling of remote access sessions and include mechanisms to audit the sessions and methods;
- (4) Audit user privileges on at least an annual basis;
- (5) Implement Requirement 3.13.11 (Federal Information Processing Standards (FIPS) 140-2 validated cryptology or implementation of National Security Agency or NIST-approved algorithms (i.e., FIPS 140-2 Annex A: Advanced Encryption Standard (AES) or Triple Data Encryption Standard or compensating controls as documented in an SSP and POAM));ar
- (6) Implement Requirement 3.13.16 (Protect the confidentiality of CUI at rest) or provide a POAM for implementation which can be evaluated by the Government Program Manager for risk to the program;
- (7) Implement Requirement 3.1.19 (encrypt CUI on mobile devices) or provide a plan of action for implementation which can be evaluated by the Government Program Manager for risk to the program.

C.16.16.5.3 Cyber Incident Response:

C.16.16.5.3.1 The contractor shall, within 15 days of discovering the cyber incident (inclusive of the 72-hour reporting period in DFARS clause 252.204-7012), deliver all data used in performance of the contract that the contractor determines is impacted by the incident and begin assessment of potential warfighter/program impact. Incident data shall be delivered in accordance with the Department Cyber Crimes Center (DCS3) Instructions for Submitting Media available at https://www.acq.osd.mil/dpap/dars/pgi/docs/Instructions_for_Submitting_Media.docx. In delivery of the incident data, the contractor shall, to the extent practical, remove contractor-owned information from Government covered defense information.

C.16.16.5.3.2 If the contractor subsequently identifies any such data not previously delivered to DCS3, then the contractor shall immediately notify the contracting officer in writing and shall deliver the incident data within 10 days of identification. In such a case, the contractor may request a delivery date later than 10 days after identification. The contracting officer will approve or disapprove the request after coordination with DCS3.

C.16.16.5.4 Army Counterintelligence (CI) Outreach

The contractor shall engage, whenever practicable, with Army CI industry outreach efforts and consider recommendations for hardening of covered contractor information systems affecting Army programs and technologies; and make contractor personnel available for threat briefings specific to foreign intelligence threats to Army programs and technologies.

C.16.16.5.5 Army CI/Industry Monitoring

C.16.16.5.5.1 In the event of a cyber incident or if at any time the Government has indication of a vulnerability or potential vulnerability, the contractor shall cooperate with the Army CI, which may include cooperation related to: threat indicators; pre-determined incident information derived from the contractor's infrastructure systems; and the continuous provision of all contractor,

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subcontractor, or vendor logs that show network activity, including any additional logs the contractor, subcontractor or vendor agrees to initiate as a result of the cyber incident or notice of actual or potential vulnerability.

C.16.16.5.5.2 If the Government determines that the collection of all logs does not adequately protect its interests, the contractor will coordinate with Army CI to implement additional measures, which may include allowing the installation of an appropriate network device that is owned and maintained by the Army CI, on the contractor's information systems or information technology assets. The specific details (e.g., type of device, type of data gathered, monitoring period) regarding the installation of an Army CI network device shall be the subject of a separate agreement negotiated between Army CI and the contractor. In the alternative, the contractor may install network sensor capabilities or a network monitoring service, either of which must be reviewed for acceptability by Army CI. Use of this alternative approach shall also be the subject of a separate agreement negotiated between Army CI and the contractor.

C.16.16.5.5.3 In all cases, the collection or provision of data and any activities associated with this statement of work shall be IAW federal, state, and non-US law.

C.17 Mission Partner Identity, Credential and Access Management (MP-ICAM)

(a) The contractor is responsible for providing the appropriate documentation to the government to process applications for CACs for every contractor employee who deploys with the military force, who has need to access any government computer network in accordance with FAR 52.204-9, "Personal Identity Verification of Contractor Personnel", requires physical access to multiple DoD facilities or access to multiple non-DoD facilities on behalf of the sponsoring government organization for a period of 6-months or more, requires both physical and logical (network logon) access to both DoD networks on site or remotely, OR requires logical (network logon) access to DoD networks on site or remotely.

(b) The contractor is responsible for managing requests for initial, renewal and reverification of a CAC in sufficient time to ensure all contractor employees have them as needed to perform the work under this contract. The norm is at least fifteen (15) business days advance notice to the Mission Partner Affiliation Sponsor (MPAS), unless there are extenuating circumstances approved by the Contracting Officer's Representative (COR) or Contracting Officer. *The COR should be the MPAS for the contract.

(c) It is recommended that a "Corporate" Facility Security Officer (FSO) or other facility appointed person be assigned as the firm's single point of contact (POC) for CAC Application/New Contractor Packet processing to G2 and Government COR. If an FSO is not established, each contractor employee requiring a CAC will be required to manage their own application.

(d) A CAC application must be processed through Mission Partner Identity, Credential and Access Management (MP-ICAM). The contractor's FSO or appointed POC employee shall submit CAC requests via secure means such as DoD SAFE, encrypted email, password protected documents etc. to the COR. The COR will provide the request package to the command G2 to be processed. The COR will provide the AHRC TASS Form1, version 1.3 to the MPAS once the CAC Application is approved. The list of required documents to complete the request package for an INITIAL CAC:

G-2 Contractor PSI Worksheet Emp Hist Worksheet
OF 306, Declaration for Federal Employment (August 2023 version)
Copy of birth certificate or passport or naturalization certificate (if foreign born)
AHRC TASS Form V1.3 dated 1 May 2021

(e) The government MPAS will establish an MP-ICAM application account for each CAC request. MP-ICAM will generate emails to the applicant with the application number and password. The contractor employee shall access the MP-ICAM site and complete the CAC application (entering/editing contractor information as applicable) at MP ICAM - Mission Partner Registration Web Application - DMDC (osd.mil).

(f) The contractor employee will submit completed applications in MP-ICAM. MP-ICAM will confirm via email that the MPAS application has been submitted.

(g) The MPAS will process the request and MP-ICAM will automatically inform the contractor's applicant via email of one of the following:

Approved*. Upon approval, the information is transferred to the Defense Enrollment Eligibility Reporting System (DEERS) database and an email notification is sent to the contractor with instructions on obtaining the CAC. The contractor proceeds to a Real-Time Automated Personnel Identification System (RAPIDS) station. (Visit <https://www.dmdc.osd.mil/rsl/> to locate a RAPIDS station)

Rejected*. Government, in separate correspondence, will provide reason(s) for rejection.

Returned*. Additional information or correction by the application is required from the contractor employee.

*The contractor will maintain records of all approved and rejected applications.

(h) At the RAPIDS station, the RAPIDS Verification Officer will verify the contractor by SSN, and two forms of identification, one of which must be a picture ID. The Verification Officer will capture primary and alternate fingerprints and picture, and updates to DEERS and will then issue a CAC. A CAC requires re-verification every 180 days. The MPAS will be notified via MP-ICAM generated email when the reverification date is approaching. The contract FSO will provide the electronically signed AHRC TASS Form 2.1 to the MPAS. The MPAS will re-verify the employee in MP-ICAM.

(i) An issued CAC shall be for a PoP no longer than three years or the individual's contract end date (inclusive of any options),

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whichever is earlier. Prior to the three year expiration, MP-ICAM will notify both the contractor and the MPAS of the expiration date. The FSO or appointed personnel will submit the AHRC TASS Form 1, version 1.3 indicating REISSUE on the form.

(j) The contractor shall return any CACs to the DEERS office upon return from deployment, when issued a new CAC, or when employment is terminated. The FSO or other appointed POC shall provide the electronically signed AHRC TASS Form 2.1 to the MPAS. The MPAS will revoke the contractor's CAC in MP-ICAM.

(k) A CAC cannot be issued without evidence that a T1 investigation has at least been initiated by the Government G2 Security Office. Per DODI 5200.46 Section 3.d: A CAC may be issued on an interim basis based on a favorable National Agency Check and a Federal Bureau of Investigation (FBI) National Criminal History Check (fingerprint check) adjudicated by appropriate approving authority, and successful submission to the investigative service provider (ISP) of a T1 or a personnel security investigation (PSI) equal to or greater in scope than a T1. Once the fingerprints are done and the applicant has submitted the T1 (or other applicable investigation) in PSIP, a CAC can and should be issued to the applicant on an interim basis to prevent delay of work and excess cost to the government as a result. If the employee does not have a valid background investigation, the government will initiate the T1 as long as the contract does NOT require the contractor to have access to classified information. Once the T1 investigation is open in Defense Information Security System (DISS), (between 2-4 weeks) an interim CAC eligibility is either granted or denied and an email will go out to the Supervisor, FSO, Sponsor, COR, MPASM and MPAS advising eligibility.

*** END OF NARRATIVE C0001 ***

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SECTION D - PACKAGING AND MARKING
D.1 HEAT TREATMENT AND MARKING OF WOOD PACKAGING MATERIALS

- (a) In accordance with DOD 4140.65-M and the requirements of the International Standards for Phytosanitary Measures 15 (ISPM), Regulation of Wood Packaging Material in International Trade, current edition, (hereinafter ISPM 15), the following commercial heat treatment and marking process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). Foreign manufacturers shall comply with ISPM 15, and have the WPM heat treatment and marking verified in accordance with their National Plant Protection Organization's compliance program.
- (b) Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All WPM using a conventional steam or dry kiln heat chamber (treatment code for the mark: HT) shall be heat treated to a minimum core temperature of 56 degrees Celsius for a minimum of 30 minutes, and certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: <http://www.alsc.org>). WPM heat treated wood using dielectric heating (treatment code for the mark: DH) shall follow the requirements in ISPM 15, and shall be certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: <http://www.alsc.org>). The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure the materials used in manufacture can be traced to the original source of heat treatment, and that the original source of the heat treatment obtained the necessary certifications.
- (c) Marking. Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The ALSC approved quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens. Pallet markings shall be applied to the side of the stringer or end of the block on diagonally opposite sides and ends of the pallet and be contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp.

*** END OF NARRATIVE D0001 ***

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SECTION E - INSPECTION AND ACCEPTANCE

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
E-1	52.246-4	INSPECTION OF SERVICES--FIXED-PRICE	AUG/1996
E-2	52.246-5	INSPECTION OF SERVICES--COST-REIMBURSEMENT	APR/1984
E-3	52.246-11	HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT	DEC/2014

- (a) The contractor shall comply with the higher-level quality standard(s) listed below.
The contractor shall be required to establish a certified quality management system (ISO 9000 or ISO 9001:2015) to the extent the system applies.
- (b) The contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts in--
- (1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or
 - (2) When the technical requirements of a subcontract require--
 - (i) Control of such things as design, work operations, in-process control, testing and inspection; or
 - (ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.
- (End of clause)

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SECTION F - DELIVERIES OR PERFORMANCE

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
F-1	52.242-15	STOP-WORK ORDER (AUG 1989) -- ALTERNATE I (APR 1984)	APR/1984
F-2	52.242-17	GOVERNMENT DELAY OF WORK	APR/1984
F-3	52.247-55	F.O.B. POINT FOR DELIVERY OF GOVERNMENT-FURNISHED PROPERTY	JUN/2003

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SECTION G - CONTRACT ADMINISTRATION DATA

Regulatory Cite	Title	Date
G-1 252.232-7006	WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)	JAN/2023

(a) Definitions. As used in this clause

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov> ; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Cost Voucher

- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
- (iv) For performance based payments, submit a performance based payment request.
- (v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF

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when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	HQ0338
Issue By DoDAAC	W912CH
Admin DoDAAC**	S8050A
Inspect By DoDAAC	S8050A
Ship To Code	N/A
Ship From Code	N/A
Mark For Code	N/A
Service Approver (DoDAAC)	S8050A
Service Acceptor (DoDAAC)	S8050A
Accept at Other DoDAAC	N/A
LPO DoDAAC	N/A
DCAA Auditor DoDAAC	HAA235
Other DoDAAC(s)	N/A

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable. Reference Section G.2 through G.9 below for additional instructions.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

N/A

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

G.1.1 Electronic Submission via Wide Area WorkFlow (WAWF): Contractors must register and begin submitting electronic invoices immediately through the WAWF Receipt and Acceptance module on the PIEE Internet site: <https://piee.eb.mil/>. Online training may also be accessed on that site. Use the award number indicated on the award document to invoice for services or supplies procured.

G.2 The contractor shall submit all invoices, including any supporting documentation, electronically, via email, to the TO's COR and Contract Specialist on the same day that it is submitted into WAWF.

G.2.1 The monthly invoice period is defined as the first calendar day of each month to the last calendar day of each month.

G.2.2 Prior month invoice shall be submitted no later than the 10th working day of the following month.

G.2.3 When submitting invoices, the contractor shall utilize an SF 1034 as the coversheet to accompany its supporting documentation. The SF 1034 form can be found at <https://www.gsa.gov/forms-library/public-voucher-purchases-and-services-other-personal>. Individual ACRNs/CLINS/SCLINS being billed must be annotated as separate lines on the SF 1034. Each category (i.e. Labor, ODCs, etc.) shall be invoiced separately. The contractor shall also submit supporting documentation separating Labor, ODCs, and Travel. Travel shall be separately identified when billed under ODC CLINS.

G.2.4 The contractor shall utilize a file naming convention for its supporting documentation when submitting the entire monthly invoice package electronically, via email, and when submitting into WAWF. The naming conventions should follow this format: INVOICE

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NUMBER_LABOR, ODC, BY/OP_MON/Yr. (example: 12345_LABOR OP1_JAN17, 12345_ODC OP1_JAN17, etc.). The invoice number assigned by the contractor should match what has been entered into WAWF, without variances.

G.2.5 At the "Start of Work Meeting" the contractor shall provide a sample TO Ceiling and Fixed Fee Compliance Report IAW CDRL A036. The contractor shall provide supporting documentation, in Microsoft Excel format, demonstrating compliance with applicable TO Ceiling Rates and compliance with the proposed Composite Fixed Fee Rates. The Microsoft Excel File shall list the invoiced employees and hours for each Labor Category (LCAT) ID Number, along with the Direct Labor Rate, all applicable burdens (Indirect Expenses), and Fee for each employee. Additionally, the contractor shall map each employee's FBLR Less Fee to the applicable Ceiling Rate, as well as map each employee's Fee to the applicable Composite Fixed Fee Rate for the associated LCAT ID Number, which shall also be traceable to the invoiced labor in WAWF. The contractor shall demonstrate compliance with the proposed 10% CONUS Ceiling Rates, 20% OCONUS Ceiling Rates, and proposed Composite Fixed Fee Rates.

G.2.6 Labor - The contractor shall start billing employee labor upon commencing performance of a WD.

G.2.6.1 The contractor shall annotate all Labor on the monthly SF1034 for all Labor CLINs. The contractor shall submit one Labor invoice, per month, which shall be invoiced separately from other categories. All supporting documentation shall be separated based on the above file naming conventions and included as part of the entire monthly invoice package. IAW the TO Ceiling and CDRL A036, Ceiling and Fixed Fee Compliance Report, supporting documentation shall include a monthly reconciliation of actual incurred costs of each invoiced employee for each LCAT ID Number for the Prime and Subcontractors. The monthly reconciliation shall demonstrate contractual compliance with the proposed 10% CONUS Ceiling Rates, 20% OCONUS Ceiling Rates, and proposed Composite Fixed Fee Rates.

G.2.6.2 For all invoices related to this effort, "Direct Labor" shall include the effective labor rate and any allocation of Non-Discretionary Bonuses or Incentive Pay that are collected and spread across all invoiced hours. A Non-Discretionary Bonus or Incentive Pay is a Recruitment, Retention or Completion Bonus typically paid to an employee based on an employer/employee agreement. For the purpose of this TO, Offeror's are required to allocate any Non-Discretionary Bonuses or Incentive Pay across all of the hours an employee works in a year.

G.2.6.3 Non-Discretionary Bonuses or Incentive Pay shall be traceable to the specific employee and amortized across all applicable hours and comply with the requirements at FAR 31.205-6 (a), (b), and (f). The Prime contractor shall amortize any incentive bonuses when preparing the TO Ceiling and Fixed Fee Compliance Report, IAW CDRL A036, and allocate across applicable hours.

G.2.7 Material and ODCs

G.2.7.1 The contractor shall annotate all Material and ODCs on the SF1034 for ODC CLINs. ODCs are expenses that can be directly attributed to a specific contract or project but do not fall under the categories of direct labor or direct materials. ODCs must be reasonable, allocable, and allowable under FAR Part 31.0. Subcontractor costs are not ODCs. The contractor shall submit one Material and ODC invoice, per month, which shall be invoiced separately from other categories. Material and ODC supporting documentation shall be separate from the contractor's labor documentation but still included as part of the monthly invoice package.

G.2.7.2 The contractor shall include a summary list of billed expenses, including detailed individual expense reports, receipts for purchases made that will be billed back to the Government, proof of any required authorization by the PCO or COR, and any other supporting documents (attached as backup).

G.2.7.3 All invoiced Material and ODCs must have proof of prior approval, unless authorized in the WD.

G.2.8 Travel.

G.2.8.1 The contractor shall annotate all combined travel on the monthly SF1034. The contractor shall submit one travel invoice, per month, which shall be invoiced separately from other categories. The travel invoice shall be separate from the contractor's labor invoice and ODC invoice but still included as part of the monthly invoice package.

G.2.8.2 The contractor shall include a summary list of billed expenses, including individual expense reports, proof of any required authorization by the PCO or COR. The contractor shall provide copies of original receipts for travel expenses and travel purchases incurred, that will be billed back to the Government, and any other necessary supporting documents. Meals & Incidental Expenses (M&IE) will be paid at the standard JTR per diem rate. Receipts are not required for M&IE when authorized TDY under the per diem rate under the JTR.

G.2.8.3 Documentation shall be organized by each unique employee. Travel vouchers shall include a description of the purpose of the travel. Accounting system screenshots do not constitute adequate documentation for travel.

G.2.9 Trailing Charges

For any charges that the contractor does not include in a particular month's initial invoice ("trailing charges,") the contractor shall submit a separate invoice for such trailing charges and will not commingle trailing charges with an invoice for a different month of performance. Any "True- Up" as a result of reconciliation between actual labor costs incurred and the 10% CONUS Ceiling Rates or 20% OCONUS Ceiling Rates will be submitted on a separate invoice at the end of the contractor's fiscal year.

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G.3 If a contractor believes that its policies and procedures meet the criteria outlined in Defense Contract Audit Agency (DCAA) Pamphlet No. 7641.90, "Information for contractors," the contractor may request participation in the direct billing program by submitting a written request to is cognizant DCAA office. The pamphlet is available via the Internet at <http://www.dcaa.mil>. If DCAA determines that a contractor is eligible to participate in the direct billing program, a copy of the DCAA authorization memorandum must be sent to the PC0.

*** END OF NARRATIVE G0001 ***

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SECTION H - SPECIAL CONTRACT REQUIREMENTS
H.1 Ordering Provisions

H.1.1 All efforts shall be performed IAW the Work Directives issued under a Task Order. Labor hours will be awarded for Work Directives, which will either be Term or Completion efforts. The Government has the unilateral right to exercise Term Work Directives but may execute bilaterally at the PCO's discretion. Term and Completion Work Directives will be awarded IAW FAR 16.306(d). The contractor is obligated to honor and immediately commence performance against any unilateral Term Work Directive(s) issued under this contract. The individual WD will define if it is Term or Completion.

H.1.1.1 Term describes the scope in general terms and obligates the contractor to devote specified Term hours for a stated time period. At its discretion, the Government may award additional Term hours to complete the effort. The contractor shall not exceed the specified Term hours and total cost listed in the WD. The Government reserves the right to unilaterally exercise Term WDs. The number of labor hours required on each WD will be determined by the Government.

H.1.1.2 Completion scope describes a WD with a definite goal or target and specifies an end product, regardless of the number of hours ordered or performed. In the event the contractor cannot complete the scope within the estimated cost, the Government may require more effort without increase in fixed fee, provided that the Government increases the estimated cost .

H.1.1.3 Rough Order of Magnitude (ROM)
The Government may request a ROM, to obtain an estimated budget in support of a WD. ROMs shall be prepared IAW CDRL A003, Manhour Estimate, Technical Cost Proposals. The Government's request for a ROM in no way infringes on its unilateral right to issue work term directives.

H.1.1.4 The Government may issue an RFP in response to any ROM submission.

H.1.1.5 The contractor's proposal shall be inclusive of labor hours, labor cost, material, travel, and ODCs with support and rationale. The contractor shall provide comments, concerns, technical expertise, best practices, and lessons learned in support work directive proposal development and ROM estimates.

H.1.2 Prior to issuance of a bilateral WD, the contractor shall review the draft WD provided by the PCO and shall deliver a Basis of Estimate (BOE) estimating the Labor/ODC/Travel commensurate with the WD, within 10 business days of receipt of the draft WD. If a BOE is not provided to the PCO within 10 business days, the PCO will estimate the ODC/Travel costs utilizing relevant data (i.e. GSA rates, State Department Allowances, etc.) and unilaterally award the Task Order or Modification to Task Order, which will incorporate the WD. Pricing for each WD will be determined by the Government performing a technical review of the contractor's proposed BOE for ODC/Travel, and resultant negotiations, if applicable.

H.1.2.1 Travel and ODCs shall be proposed on a cost no-fee basis and will be negotiated at the WD level

H.1.2.2 Supporting data for the Government to substantiate the contractor's estimated travel and ODC costs.

H.1.2.3 Identification of any labor categories that will require Contracting Officer authorization for exemption from the Labor Ceiling Rates as established in the base contract, along with the associated labor hours, anticipated labor rate(s), rationale, and supporting data.

H.1.3 The contractor shall not begin work on any WD until the Government issues an awarded TO or Modification to a TO. The Government has the unilateral right to increase, decrease, and prioritize the work to be performed hereunder by the issuance of TOs or Modifications to TOs. It is understood and agreed that such adjustments shall be made within the general scope of the contract.

H.1.4 In performance, the contractor shall propose its estimated travel costs IAW the Joint Travel Regulations (JTR) and FAR 31.205-46 while demonstrating the compliance of its proposed discounts to Lodging and Meals & Incidental Expenses (M&IE).

H.1.4.1 Invoices for Lodging and M&IE shall be accompanied by a supporting Excel file that shows the JTR per diem rates, any agreed upon discount percentage rates, and the maximum allowable rates for each employee being invoiced.

Example (25% is the "Discount" applied to M&IE within the awardee's proposal):
Meals & Incidental Expenses (M&IE)

Name	Location	JTR	Discount	Max Allowable	Incurred Cost	Unallowable Amount
John Doe	Detroit, MI	\$74.00	25%	\$55.50	\$74.00	\$18.50

H.1.4.2 Discounts for Travel:

Travel	Discount Rates	OP1	OP2	OP3	OP4	OP5
Lodging		TBD	TBD	TBD	TBD	TBD
M&IE		TBD	TBD	TBD	TBD	TBD

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H.2 Labor Categories

H.2.1 Upon contract award, the labor rates found in the Government Format Pricing Model (GFPM) on the Composite Labor Rates tab will be incorporated into the contract in Attachment 0047 and also documented in Section B.4. These rates will be utilized to calculate the estimated labor cost for all WDs, and the fixed fee dollars per hour will be utilized to calculate the total estimated fixed fee.

H.2.2 Ceiling Rates. Upon contract award, the Prime and Subcontractor ceiling rates found in the GFPM on the Prime Ceiling Rates and Subcontractor Ceiling Rates tabs will be incorporated into the contract via Attachment. These ceiling rates are equal to the Offerors proposed FBLR (less fee) plus 10% for CONUS labor categories or 20% for OCONUS labor categories, for each applicable PoP. At no time during contract performance of a Term WD shall the contractor invoice the Government at a rate which exceeds these ceiling rates, regardless of the actual cost incurred. Ceilings are not applicable to Completion WDs. All Work Directive(s) that do not incorporate the negotiated rates in Attachment 0047 and are negotiated separately are subject to FAR 15.403-4, Requiring Certified Cost and Pricing Data.

H.2.2.1 Ceiling rates may be waived at the Contracting Officer's discretion. This includes, but is not limited to, individual WDs containing OCONUS locations with uplifts exceeding 20% and individual WDs requiring overtime work.

H.3 Labor Category Descriptions and Minimum Qualifications

H.3.1 The Service Contract Act (SCA) applies to all work performed by all non-exempt labor categories within the US. For purposes of the SCA, the term "United States" includes any State, the District of Columbia, Puerto Rico, the Virgin Islands, Outer Continental Shelf lands as defined in the Outer Continental Shelf Lands Act, American Samoa, Guam, Wake Island, Johnston Island, and the Commonwealth of the Northern Mariana Islands. The SCA does not apply to work performed in any other territory under the jurisdiction of the US or any US base or possession within a foreign country. The SCA does not apply to work performed on ships operating in international or foreign waters. If a portion of the contract services is performed within the US and a portion is performed outside the US, the SCA applies to the portion performed in the US.

H.3.1.1 For Wage Grade positions as identified below, the labor categories will be subject to conforming to the requirements of the SCA Wage Determination 2015-0025 "Nationwide Contract Field Teams" and Wage Determination 1988-0407 "Nationwide (Inspector)" with the exception of employees whose main area of operation (AO) is Fort Hood, TX or ANAD, AL. Those employees whose main AO is Fort Hood, TX shall conform to the requirements of the SCA Wage Determination 2015-5237 "Bell County, Texas." Those employees whose main AO is ANAD, AL shall conform to the requirements of the SCA Wage Determination 2015-4587 "Calhoun County, Alabama." If a contractor is on CONUS TDY outside of its main AO, Fort Hood, TX or ANAD, AL, for a period greater than 179 days continuously, they will be considered part of the contract field teams and subject to Nationwide WDs 2015-0025 and 1988-0407. The latest versions of each Wage Determination will be listed in Section J of the contract as Attachments 0045 and 0046. Prior to issuing orders within each OP, these WDs will be verified and updated if necessary. Below is a description of each labor category to aid in mapping to the correct minimum wage rate as detailed in the Wage Determination.

For the purposes of the solicitation, the SCA Wage Determination criteria utilized shall be the Nationwide Wage Determination 2015-0025 and 1988-0407.

H.3.2 Supply/Procurement Specialist shall meet the qualifications of the Supply Technician, Occupation Code 01410. The Supply/Procurement Specialist shall be responsible for managing and supporting supply management, logistics, inventory control, and order fulfillment operations for parts, supplies, and equipment as transportation coordinator and transportation liaison between various sites. The Supply/Procurement Specialist shall be responsible for direct dispatching, routing, and shipping of equipment, parts, and support equipment repair parts. The Supply/Procurement Specialist shall be responsible to order, receive, stock, and issue Class II, IV, VII and IX parts, as well as generate reports, in addition to managing the site's inventory stock levels. Supply/Procurement Specialist shall be responsible for utilization of government automated program to manage inventory. The Supply/Procurement Specialist shall be responsible for the use of web-based systems such as Army Enterprise Systems Integration Program, FedMall, Web Visual Logistics Information Processing System, ETA, Radio Frequency/In-Transit Visibility, and Product Data Reporting and Evaluation Program or similar systems to retrieve/expedite status, track shipments, manage container inventory and report discrepancies. The Supply/Procurement Specialist shall be responsible for automated management and transfer of TPF MILSTRIP documentation to gaining units Property Book and Stock Record accounts to allow property and CL IX acceptance in gaining commands automated systems for property accountability.

H.3.3 Material Handling Specialist shall be expected to meet the qualifications of the Material Coordinator, Occupation Code 21030. The Material Handling Specialist shall be responsible for maintaining warehouse stock, as well as assisting in fulfilling requisitions and purchase orders. The Material Handling Specialist shall be responsible for loading, unloading and kitting PM MAV related materials, staging products based on requirements executing inventories with the gaining unit at fielding events. In addition, they shall assist with organizing and maintaining existing inventory. The Material Handling Specialist shall also have a current and valid Occupational Safety and Health Administration forklift operation certificate, Hazardous Material (HAZMAT) certificate and environmental certificate, as well as at least 2 years inventory management experience with a strong attention to detail. Material Handling Specialists must also have valid HAZMAT certification IAW Department of Defense regulation 4500.9-R, 49 CFR.

H.3.4 Heavy Equipment Mechanic: Shall meet the qualifications of the Heavy Equipment Mechanic, Occupation Code 23430 with the following minimum level of experience. The Heavy Equipment Mechanic shall have at least five years of experience in tracked combat vehicle

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maintenance to include general automotive and turbine engine maintenance; or at least three years of experience performing or supervising military automotive and turbine engine maintenance; or at least two years of experience of performing or supervising vehicle maintenance. The Heavy Equipment Mechanic will be responsible for analyzing malfunctions and repairs, rebuilding and maintaining power equipment. The mechanic will be skilled in the care and use of hand and power tools. This worker operates, troubleshoots, and inspects tank machines or equipment to diagnose defects, dismantles and reassembles equipment, using hoists and hand tools, examines parts for damage or excessive wear, using micrometers and gauges, replaces defective engines and subassemblies, such as transmissions, and tests overhauled equipment to insure operating efficiency. Mechanic shall have knowledge of fielding practices and policies to include de-processing, technical inspection and loading/unloading of combat equipment. The mechanic may direct workers engaged in cleaning parts and assisting with assembly and disassembly of equipment. The mechanic must also be licensed to operate cranes capable of lifting up to 35 tons.

H.3.5 Welder: Shall meet the qualifications of Welder, Combination, Maintenance, Occupation Code 23960, with the following minimum responsibilities and experience. Welders shall have a minimum five years of experience welding on military equipment, with a strong preference for extensive knowledge welding on ground combat vehicles and/or armored equipment. Welders shall be capable of repairing defects on existing welds and armor steel castings. Welders shall have experience performing welding on a variety of materials, to include Aluminum Armor. Welders shall also be qualified to perform cutting, soldering, and brazing efforts on armor vehicles. Welders shall have experience working with US Army welding procedures, guidelines, and regulations IAW Attachment 0031, Arc Welding of Steel for Combat Vehicles and Attachment 0032, Arc Welding of Aluminum for Combat Vehicles. Welders shall have experience working with different welding methods such as pulse welding, stick welding. The qualification of welders, welding operators, and tack welders for non-ballistic structures shall be IAW the MAV Hybrid Weld Code and applicable weld specifications/standards within Attachment 0030 Welding Standard Tables, Attachment 0031, MAV Steel Document, and Attachment 0032, MAV Aluminum Document.

H.3.6 MW0 Installer: Shall meet the qualifications of the Heavy Equipment Mechanic, Occupation Code 23430, with the following minimum responsibilities. The contractor shall have experience in the diagnosing and resolution of technical issues during modification applications on US Government equipment. The contractor shall have experience working with US Government technical documentation, to include a general understanding of the process to gain formal approval of technical documents. The contractor shall have experience working with some or all of, but not limited to, the following: turbine/diesel engines, transmissions, AC/DC electrical systems, hydraulics, or other sensitive systems to be used in combat. The contractor shall have experience providing guidance and informal training to users of complex equipment, as well as describing the modifications made to the equipment.

H.3.7 Instructor: Shall meet the qualifications of the Technical Instructor, Occupation Code 15090 with the following responsibilities. FLMNET Instructors shall be further required to meet the qualifications of Heavy Equipment Mechanic. The instructor will be certified, provide instructions on the vehicle platform and Mission Equipment Packages, to include BII, STTE, and Associated Support Items of Equipment related to the system to include: Training Aids and Devices, planning lessons, monitoring and assessing student progress on an ongoing basis, participating in the accountability of the Soldiers training aid process as requested, creating Individual Learning Plans with students, and collecting, recording, and reporting all necessary information related to students IAW the scope of work. The Instructor shall ensure all training is IAW the current IETMs, TMs, POI, and lesson plans.

H.3.8 Field Service Representative: Shall meet the requirements of a Ground Support Equipment Mechanic, Occupation Code 23380, in addition to a minimum of 10 years of experience maintaining and/or supervising. The FSR shall be responsible for inspection, testing, installation, calibration, troubleshooting and providing informal training. The FSR shall also conduct on-site field testing and provide technical directions to maintainers and operators. The FSR shall identify technical problems and take initiative to resolve those issues immediately. The FSR shall be responsible for ensuring excellent customer satisfaction by demonstrating commitment and delivering quality services. The FSR shall make sure that the administrative functions, along with the generation of reports, is IAW the CDRLs and has been completed within the given time limit. The FSR shall conduct all the field work within the given budget, considering the labor and travel costs. The FSR shall comply with the unit's policies and ensure that they adhere to the local military and government safety regulations. The FSR shall wear the appropriate gear to support the customer unit in training or when deployed. This could include Military Standard gear and load bearing equipment. The FSR shall be certified to meet the requirements to perform the above duties.

H.3.9 Field Service Mechanic: Shall meet the qualifications of the Heavy Equipment Mechanic, Occupation Code 23430 with the following minimum level of experience. The FSM shall be responsible for inspection, testing, installation, calibration, and troubleshooting. The FSM shall also conduct on-site field testing and provide technical directions to maintainers and operators. The FSM shall identify technical problems and take initiative to resolve those issues immediately. The FSM shall be responsible for ensuring excellent customer satisfaction by demonstrating commitment and delivering quality services. The FSM shall Document all work performed. This includes writing detailed service reports, logging parts used, documenting travel time, and noting any unresolved issues or recommendations. The FSM shall conduct all the field work within the given budget, considering the labor and travel costs. The FSM shall comply with the unit's policies and ensure that they adhere to the local military and government safety regulations. The FSM shall wear the appropriate gear to support the customer unit in training or when deployed. This could include Military Standard gear and load bearing equipment. The FSM shall be certified to meet the requirements to perform the above duties.

H.3.10 Inspector: Inspector shall meet the qualifications of an Inspector, Occupation Code 99240, with the following minimum responsibilities: The Inspector shall have experience performing quality inspections on work performed on complex systems to determine work quality meets standards and/or specifications as called out in requirements documents. The Inspector shall have experience working with US Government regulations and guidance on maintenance standards for complex equipment. This Inspector shall have experience

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working with US Government TMs with the ability to read and understand maintenance procedures and instructions. The inspector shall have experience with complex working systems to be able to troubleshoot and diagnose any known or observed faults on equipment after modifications have been performed to the system. The Inspector shall possess Certified Weld Inspector certification.

H.3.11 Project Management Specialist: This labor category does not have an assigned Occupation Code at this time but is found under 92000 Non Standard Occupations. The Project Management Specialist shall meet the qualifications of the Project Management Specialist with the following responsibilities: The Project Management Specialist shall have experience managing government programs with responsibility for coordinating meetings, providing presentation materials, submitting contractual deliverables, and reviewing and providing input to proposed contractual work. The Program Management Specialist shall also have experience working with various Government documents and forms required for traveling purposes, both CONUS and OCONUS. The Program Management Specialist shall also demonstrate experience with entering foreign countries and working requirements and documentation. The Program Management Specialist shall also entail the ability to react in a changing environment with dynamic requirements, calling for quick movement of personnel and timely support to meet mission requirements. The Program Management Specialist shall also demonstrate working knowledge of existing US Government contractual requirements and restrictions as they relate to support in a field environment.

H.4 Army Contract Writing System (ACWS) Transition Information for Contractors

a. The Army Contracting Enterprise (ACE) is in the process of deploying new solicitation and contract writing software to Army contracting offices worldwide. Known as the Army Contract Writing System (ACWS), this modern software suite will soon replace most existing Army contract writing systems, including the system used to create and release this Contract.

b. During this transition period, Contractors are hereby advised:

1. The Contracting Office may use any combination of contract writing systems to generate distributable copies of this contract during its period of performance, as well as any subsequent modifications or orders (if applicable). As a result:

i. Subsequent documents you receive may appear noticeably different than the original award or previous contractual documents from the same Contracting Office.

ii. A change between contract writing systems may cause important information concerning contract terms and conditions to take on different formatting or appear in different parts of later documents issued.

iii. Contractors shall ensure Customer Relationship Management (CRM) systems and personnel interacting with this contract are prepared to identify and respond appropriately to differences between document versions.

2. The Government does not intend to use the shift between contract writing systems to effect any changes to Contract terms and conditions. Therefore:

i. Contractors should view changes to terms or conditions between document versions as system-generated and potentially erroneous unless accompanied by narrative(s) designating such changes as deliberate and desired.

ii. Contractors shall inform the Contracting Officer listed on the first page of the most recent document issued for guidance regarding any suspected or observed inadvertent or system-generated changes (e.g. noticing something missing in a new conformed copy).

iii. The Government will correct any inadvertent or system-generated changes, additions, or omissions discovered by either party, via bilateral modification, at no cost to the Contractor.

iv. The terms and conditions contained in the latest document reflecting deliberate action by the Contracting Officer (e.g. the last conformed copy of the award not affected by the observed issue) will take precedence until these problems are corrected.

3. In the unlikely event award information is corrupted or mutilated during system migration and replacement or re-issuance of this contract is necessary for continued contract administration, the Contracting Officer will:

i. Issue a continuation contract in accordance with DFARS 204.1601(c) and DFARS PGI 204.1601(c), carrying over all terms and conditions from the last-known version of this contract accurately reflecting mutual agreement of the parties.

ii. Incorporate the last-known version of this contract accurately reflecting mutual agreement of the parties as an attachment to the replacement or continuation contract for future reference.

iii. Ensure any such reissuance or continuance is properly reported to preserve the integrity of Contractor performance measurement data, if any (e.g. FAPIIS, CPARS).

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SECTION I - CONTRACT CLAUSES

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
I-1	52.202-1	DEFINITIONS	JUN/2020
I-2	52.203-3	GRATUITIES	APR/1984
I-3	52.203-5	COVENANT AGAINST CONTINGENT FEES	MAY/2014
I-4	52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (NOV 2021)	NOV/2021
I-5	52.203-7	ANTI-KICKBACK PROCEDURES	JUN/2020
I-6	52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-7	52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-8	52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUN/2020
I-9	52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN/2017
I-10	52.204-2	SECURITY REQUIREMENTS (MAR 2021) -- ALTERNATE I (APR 1984)	APR/1984
I-11	52.204-2	SECURITY REQUIREMENTS	MAR/2021
I-12	52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN/2011
I-13	52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS	JUN/2020
I-14	52.204-12	UNIQUE ENTITY IDENTIFIER MAINTENANCE	OCT/2016
I-15	52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT/2018
I-16	52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG/2020
I-17	52.204-23	PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)	DEC/2023
I-18	52.204-28	Federal Acquisition Supply Chain Security Act Orders?Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts (Dec 2023)	DEC/2023
I-19	52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025)	JAN/2025
I-20	52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	OCT/2018
I-21	52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV/2015
I-22	52.210-1	MARKET RESEARCH	NOV/2021
I-23	52.211-5	MATERIAL REQUIREMENTS	AUG/2000
I-24	52.211-15	DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS	APR/2008
I-25	52.215-2	AUDIT AND RECORDS--NEGOTIATIONS	JUN/2020
I-26	52.215-8	ORDER OF PRECEDENCE--UNIFORM CONTRACT FORMAT	OCT/1997
I-27	52.215-14	INTEGRITY OF UNIT PRICES	NOV/2021
I-28	52.215-15	PENSION ADJUSTMENTS AND ASSET REVERSIONS	OCT/2010
I-29	52.215-18	REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT BENEFITS (PRB) OTHER THAN PENSIONS	JUL/2005
I-30	52.215-21	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA --MODIFICATIONS	NOV/2021
I-31	52.215-23	LIMITATIONS ON PASS-THROUGH CHARGES	JUN/2020
I-32	52.216-8	FIXED FEE	JUN/2011
I-33	52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025)	JAN/2025
I-34	52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN (JAN 2025)	JAN/2025
I-35	52.219-16	LIQUIDATED DAMAGES--SUBCONTRACTING PLAN	SEP/2021
I-36	52.222-1	NOTICE TO THE GOVERNMENT OF LABOR DISPUTES	FEB/1997
I-37	52.222-20	CONTRACTS FOR MATERIALS, SUPPLIES, ARTICLES, AND EQUIPMENT	JUN/2020
I-38	52.222-37	EMPLOYMENT REPORTS ON VETERANS	JUN/2020
I-39	52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT	DEC/2010
I-40	52.222-41	SERVICE CONTRACT LABOR STANDARDS	AUG/2018
I-41	52.222-43	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS--PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS)	AUG/2018
I-42	52.222-44	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS--PRICE ADJUSTMENT	MAY/2014
I-43	52.222-50	COMBATING TRAFFICKING IN PERSONS (OCT 2025)	OCT/2025
I-44	52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (JAN 2025)	JAN/2025
I-45	52.222-55	MINIMUM WAGES UNDER EXECUTIVE ORDER 14026	JAN/2022
I-46	52.222-62	PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706	JAN/2022
I-47	52.223-5	POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION (MAY 2024)	MAY/2024
I-48	52.225-13	RESTRICTIONS ON CERTAIN FOREIGN PURCHASES	FEB/2021

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I-49	52.226-7	DRUG-FREE WORKPLACE (MAY 2024)	MAY/2024
I-50	52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)	MAY/2024
I-51	52.227-1	AUTHORIZATION AND CONSENT	JUN/2020
I-52	52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT	JUN/2020
I-53	52.228-7	INSURANCE--LIABILITY TO THIRD PERSONS	MAR/1996
I-54	52.229-6	TAXES--FOREIGN FIXED-PRICE CONTRACTS	FEB/2013
I-55	52.230-6	ADMINISTRATION OF COST ACCOUNTING STANDARDS	JUN/2010
I-56	52.232-1	PAYMENTS	APR/1984
I-57	52.232-8	DISCOUNTS FOR PROMPT PAYMENT	FEB/2002
I-58	52.232-11	EXTRAS	APR/1984
I-59	52.232-17	INTEREST	MAY/2014
I-60	52.232-18	AVAILABILITY OF FUNDS	APR/1984
I-61	52.232-20	LIMITATION OF COST	APR/1984
I-62	52.232-23	ASSIGNMENT OF CLAIMS (MAY 2014) -- ALTERNATE I (APR 1984)	APR/1984
I-63	52.232-25	PROMPT PAYMENT	JAN/2017
I-64	52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER--SYSTEM FOR AWARD MANAGEMENT	OCT/2018
I-65	52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS	JUN/2013
I-66	52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS(MAR 2023)	MAR/2023
I-67	52.233-1	DISPUTES	MAY/2014
I-68	52.233-1	DISPUTES (MAY 2014) -- ALTERNATE I (DEC 1991)	DEC/1991
I-69	52.233-3	PROTEST AFTER AWARD	AUG/1996
I-70	52.233-3	PROTEST AFTER AWARD (AUG 1996) -- ALTERNATE I (JUN 1985)	JUN/1985
I-71	52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT/2004
I-72	52.237-2	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION	APR/1984
I-73	52.237-3	CONTINUITY OF SERVICES	JAN/1991
I-74	52.242-1	NOTICE OF INTENT TO DISALLOW COSTS	APR/1984
I-75	52.242-3	PENALTIES FOR UNALLOWABLE COSTS	DEC/2022
I-76	52.242-5	PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	JAN/2017
I-77	52.242-13	BANKRUPTCY	JUL/1995
I-78	52.243-2	CHANGES - COST-REIMBURSEMENT (AUG 1987) -- ALTERNATE I (APR 1984)	APR/1984
I-79	52.244-5	COMPETITION IN SUBCONTRACTING (AUG 2024)	AUG/2024
I-80	52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION 2025-00003)	OCT/2025
I-81	52.245-1	GOVERNMENT PROPERTY	SEP/2021
I-82	52.245-9	USE AND CHARGES	APR/2012
I-83	52.246-23	LIMITATION OF LIABILITY	FEB/1997
I-84	52.246-25	LIMITATION OF LIABILITY--SERVICES	FEB/1997
I-85	52.246-26	REPORTING NONCONFORMING ITEMS (AUG 2024)	AUG/2024
I-86	52.247-63	PREFERENCE FOR U.S.-FLAG AIR CARRIERS (JAN 2025)	JAN/2025
I-87	52.247-68	REPORT OF SHIPMENT (REPSHIP)	FEB/2006
I-88	52.249-2	TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE)	APR/2012
I-89	52.249-6	TERMINATION (COST REIMBURSEMENT)	MAY/2004
I-90	52.249-8	DEFAULT (FIXED-PRICE SUPPLY AND SERVICE)	APR/1984
I-91	52.249-14	EXCUSABLE DELAYS	APR/1984
I-92	252.270-7002	Pilot Program To Incentivize Contracting With Employee-Owned Businesses (Nov 2024)	NOV/2024
I-93	252.201-7000	CONTRACTING OFFICER'S REPRESENTATIVE	DEC/1991
I-94	252.203-7000	REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS	SEP/2011
I-95	252.203-7001	PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES (JAN 2023)	JAN/2023
I-96	252.203-7002	REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022)	DEC/2022
I-97	252.203-7003	AGENCY OFFICE OF THE INSPECTOR GENERAL	AUG/2019
I-98	252.203-7004	DISPLAY OF HOTLINE POSTERS (JAN 2023)	JAN/2023
I-99	252.204-7000	DISCLOSURE OF INFORMATION	OCT/2016
I-100	252.204-7003	CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT	APR/1992
I-101	252.204-7004	ANTITERRORISM AWARENESS TRAINING FOR CONTRACTORS	JAN/2023
I-102	252.204-7006	BILLING INSTRUCTIONS--COST VOUCHERS (MAY 2023)	MAY/2023
I-103	252.204-7009	LIMITATIONS ON THE USE OR DISCLOSURE OF THIRD-PARTY CONTRACTOR REPORTED CYBER INCIDENT INFORMATION (JAN 2023)	JAN/2023
I-104	252.204-7012	SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (MAY 2024) (DEVIATION 2024-00013, REVISION 1)	MAY/2024

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I-105	252.204-7015	NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023)	JAN/2023
I-106	252.204-7018	PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)	JAN/2023
I-107	252.204-7020	NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)	NOV/2023
I-108	252.204-7021	CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS(NOV2025)	JAN/2023
I-109	252.204-7023	REPORTING REQUIREMENTS FOR CONTRACTED SERVICES--ALTERNATE I	JUL/2021
I-110	252.205-7000	PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS (OCT 2024)	OCT/2024
I-111	252.209-7004	SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY E GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019)	MAY/2019
I-112	252.209-7009	ORGANIZATIONAL CONFLICT OF INTEREST -- MAJOR DEFENSE ACQUISITION PROGRAM	MAY/2019
I-113	252.219-7003	SMALL BUSINESS SUBCONTRACTING PLAN (DOD CONTRACTS)--BASIC	DEC/2019
I-114	252.222-7002	COMPLIANCE WITH LOCAL LABOR LAWS (OVERSEAS)	JUN/1997
I-115	252.222-7006	RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS (JAN 2023)	JAN/2023
I-116	252.223-7008	PROHIBITION OF HEXAVALENT CHROMIUM (JAN 2023)	JAN/2023
I-117	252.225-7002	QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS	MAR/2022
I-118	252.225-7012	PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES	APR/2022
I-119	252.225-7015	RESTRICTION ON ACQUISITION OF HAND OR MEASURING TOOLS	JUN/2005
I-120	252.225-7016	RESTRICTION ON ACQUISITION OF BALL AND ROLLER BEARINGS (JAN 2023)	JAN/2023
I-121	252.225-7028	EXCLUSIONARY POLICIES AND PRACTICES OF FOREIGN GOVERNMENTS	APR/2003
I-122	252.225-7033	WAIVER OF UNITED KINGDOM LEVIES	APR/2003
I-123	252.225-7040	CONTRACTOR PERSONNEL SUPPORTING U.S. ARMED FORCES DEPLOYED OUTSIDE THE UNITED STATES	OCT/2023
I-124	252.225-7041	CORRESPONDENCE IN ENGLISH	JUN/1997
I-125	252.225-7048	EXPORT-CONTROLLED ITEMS	JUN/2013
I-126	252.225-7052	RESTRICTION ON THE ACQUISITION OF CERTAIN MAGNETS, TANTALUM, AND TUNGSTEN (MAY 2024)	MAY/2024
I-127	252.225-7056	PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023)	JAN/2023
I-128	252.225-7058	POSTAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (JAN 2023)	JAN/2023
I-129	252.226-7001	UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS (JAN 2023)	JAN/2023
I-130	252.227-7013	RIGHTS IN TECHNICAL DATA--OTHER THAN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)	JAN/2025
I-131	252.227-7014	RIGHTS IN NONCOMMERCIAL COMPUTER SOFTWARE AND NONCOMMERCIAL COMPUTER SOFTWARE DOCUMENTATION(JAN 2025)	JAN/2025
I-132	252.227-7016	RIGHTS IN BID OR PROPOSAL INFORMATION (JAN 2023)	JAN/2023
I-133	252.227-7025	LIMITATIONS ON THE USE OR DISCLOSURE OF GOVERNMENT-FURNISHED INFORMATION MARKED WITH RESTRICTIVE LEGENDS (JAN 2025)	JAN/2025
I-134	252.229-7011	REPORTING OF FOREIGN TAXES - U.S. ASSISTANCE PROGRAMS	SEP/2005
I-135	252.231-7000	SUPPLEMENTAL COST PRINCIPLES	DEC/1991
I-136	252.232-7002	PROGRESS PAYMENTS FOR FOREIGN MILITARY SALES ACQUISITIONS(MAY 2023)	MAY/2023
I-137	252.232-7003	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS	DEC/2018
I-138	252.232-7008	ASSIGNMENT OF CLAIMS (OVERSEAS)	JUN/1997
I-139	252.232-7010	LEVIES ON CONTRACT PAYMENTS	DEC/2006
I-140	252.234-7004	COST AND SOFTWARE DATA REPORTING SYSTEM--BASIC	NOV/2014
I-141	252.235-7011	FINAL SCIENTIFIC OR TECHNICAL REPORT	DEC/2019
I-142	252.237-7010	PROHIBITION ON INTERROGATION OF DETAINEES BY CONTRACTOR PERSONNEL (JAN 2023)	JAN/2023
I-143	252.242-7005	CONTRACTOR BUSINESS SYSTEMS (JAN 2025)	JAN/2025
I-144	252.242-7006	ACCOUNTING SYSTEM ADMINISTRATION (JAN 2025)	JAN/2025
I-145	252.243-7001	PRICING OF CONTRACT MODIFICATIONS	DEC/1991
I-146	252.243-7002	REQUESTS FOR EQUITABLE ADJUSTMENT (DEC 2022)	DEC/2022
I-147	252.244-7000	SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023)	NOV/2023
I-148	252.245-7003	CONTRACTOR PROPERTY MANAGEMENT SYSTEM ADMINISTRATION (JAN 2025)	JAN/2025
I-149	252.245-7005	Management and Reporting of Government Property	JAN/2024
I-150	252.246-7003	NOTIFICATION OF POTENTIAL SAFETY ISSUES (JAN 2023)	JAN/2023

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I-151	252.247-7023	TRANSPORTATION OF SUPPLIES BY SEA--BASIC (OCT 2024)	OCT/2024
I-152	52.204-30	Federal Acquisition Supply Chain Security Act Orders?Prohibition (Dec 2023)	DEC/2023

(a) Definitions. As used in this clause

Covered article, as defined in 41 U.S.C. 4713(k), means

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 2011.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency

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(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) Prohibition. (1) Unless an applicable waiver has been issued by the issuing official, Contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase FASCSA order in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).

(3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 4.2304(c)). However, see paragraph (c) of this clause.

(5) (i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item description;

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) Executive agency review of disclosures. The contracting officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) Notice and reporting requirement. (1) During contract performance, the Contractor shall review SAM.gov at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

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(3) (i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:

(A) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil> .

(B) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

(i) Within 3 business days from the date of such identification or notification:

(A) Contract number;

(B) Order number(s), if applicable;

(C) Name of the product or service provided to the Government or used during performance of the contract;

(D) Name of the covered article or source subject to a FASCSA order;

(E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor shall describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) Removal. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

(e) Subcontracts. (1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

(End of clause)

(a) Invoicing.

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(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) Subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the 30th day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in subparagraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only --

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for --

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check or other form of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless--

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) Small business concerns. A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

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- (1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with Subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.
- (2)(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.
- (ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.
- (iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:
- (A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.
 - (B) General and Administrative expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).
 - (C) Overhead expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.
 - (D) Occupancy expenses (intermediate indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.
 - (E) Claimed allocation bases, by element of cost, used to distribute indirect costs.
 - (F) Facilities capital cost of money factors computation.
 - (G) Reconciliation of books of account (i.e., General Ledger) and claimed direct costs by major cost element.
 - (H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.
 - (I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.
 - (J) Subcontract information. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).
 - (K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.
 - (L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.
 - (M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.
 - (N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).
 - (O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).
- (iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:
- (A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.
 - (B) General Organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p). Additional salary reference information is available at:
<https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedBeforeJune24.pdf> and
<https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedafterJune24.pdf>
 - (C) Identification of prime contracts under which the contractor performs as a subcontractor.

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(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (e.g., trial balance, compilation, review, etc.).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: Contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify

- (i) the agreed-upon final annual indirect cost rates,
- (ii) the bases to which the rates apply,
- (iii) the periods for which the rates apply,
- (iv) any specific indirect cost items treated as direct costs in the settlement, and
- (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates.

The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may--

- (A) Determine the amounts due to the Contractor under the contract; and

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(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) Billing rates. Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates --

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) Quick-closeout procedures. Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) Audit. At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be --

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver --

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except --

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of Clause)

I-154 52.216-18 ORDERING

AUG/2020

Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from:

- OP 1: Date of contract award through 365 days
- OP 2: 366 days through 730 days after contract award
- OP 3: 731 days through 1,095 days after contract award
- OP 4: 1,096 days through 1,460 days after contract award

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OP 5: 1,461 days through 1,825 days after contract award

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

- (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
- (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
- (3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

I-155 52.216-22 INDEFINITE QUANTITY OCT/1995

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after six and one half (6) years after contract award.

(End of Clause)

I-156 52.222-2 PAYMENT FOR OVERTIME PREMIUMS JUL/1990

(a) The use of overtime is authorized under this contract if the overtime premium does not exceed AMOUNT TO BE NEGOTIATED or the overtime premium is paid for work --

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.

(b) Any request for estimated overtime premiums that exceeds the amount specified above shall include all estimated overtime for contract completion and shall --

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- (1) Identify the work unit; e.g., department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;
- (2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;
- (3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and
- (4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.
- (End of Clause)

I-157 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020) -- JUL/2014
ALTERNATE I (JUL 2014)

Notice: The following term(s) of this clause are waived for this contract: N/A.

(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-158 52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES MAY/2014
In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only:
It is not a Wage Determination

Employee Class	Monetary Wage - Fringe Benefits
Project Management Specialist (Bell County, TX)	\$42.89 - 36.25%
Field Service Representative (Bell County, TX)	\$30.33 - 36.25%
Heavy Equipment Mechanic (Bell County, TX)	\$30.33 - 36.25%
Material Handling Specialist (Bell County, TX)	\$24.68 - 36.25%
Inspector (Bell County, TX)	\$29.57 - 36.25%
Supply/Procurement Specialist (Bell County, TX)	\$24.18 - 36.25%
Welder (Bell County, TX)	\$30.33 - 36.25%
Instructor (Bell County, TX)	\$24.18 - 36.25%
MWO Installer (Bell County, TX)	\$30.33 - 36.25%

(End of Clause)

I-159 52.229-8 TAXES--FOREIGN COST-REIMBURSEMENT CONTRACTS MAR/1990

(a) Any tax or duty from which the United States Government is exempt by agreement with the Government of foreign government TBD, or from which the Contractor or any subcontractor under this contract is exempt under the laws of country TBD, shall not constitute an

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allowable cost under this contract.

(b) If the Contractor or subcontractor under this contract obtains a foreign tax credit that reduces its Federal income tax liability under the United States Internal Revenue Code (Title 26, U.S. Code) because of the payment of any tax or duty that was reimbursed under this contract, the amount of the reduction shall be paid or credited at the time of such offset to the Government of the United States as the Contracting Officer directs.

(End of Clause)

I-160 52.244-2 SUBCONTRACTS JUN/2020

(a) Definitions. As used in this clause

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with Part 44 of the Federal Acquisition Regulation (FAR)

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

"Subcontract" means any contract, as defined in FAR Subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) or this clause.

(c) If the contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that--

- (1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or
- (2) Is fixed-price and exceeds

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the national Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For contracts awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts: TBD

(e)(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

- (i) A description of the supplies or services to be subcontracted.
- (ii) Identification of the type of subcontract to be used.
- (iii) Identification of the proposed subcontractor.
- (iv) The proposed subcontract price.
- (v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.
- (vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.
- (vii) A negotiation memorandum reflecting --

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- (A) The principal elements of the subcontract price negotiations;
 - (B) The most significant considerations controlling establishment of initial or revised prices;
 - (C) The reason certified cost or pricing data were or were not required;
 - (D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;
 - (E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;
 - (F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and
 - (G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.
- (2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (c), (d), or (e) or this clause.
- (f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination --
- (1) Of the acceptability of any subcontract terms or conditions;
 - (2) Of the allowability of any cost under this contract; or
 - (3) To relieve the Contractor of any responsibility for performing this contract.
- (g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).
- (h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.
- (i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR Subpart 44.3.i
- (j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations: TBD
- (End of clause)

I-161 52.247-67 SUBMISSION OF TRANSPORTATION DOCUMENTS FOR AUDIT FEB/2006

- (a) The Contractor shall submit to the address identified below, for prepayment audit, transportation documents on which the United States will assume freight charges that were paid
- (1) By the Contractor under a cost-reimbursement contract; and
 - (2) By a first-tier subcontractor under a cost-reimbursement subcontract thereunder.
- (b) Cost-reimbursement Contractors shall only submit for audit those bills of lading with freight shipment charges exceeding \$100. Bills under \$100 shall be retained on-site by the Contractor and made available for on-site audits. This exception only applies to freight shipment bills and is not intended to apply to bills and invoices for any other transportation services.
- (c) Contractors shall submit the above referenced transportation documents to

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(End of Clause)

I-162 252.215-7004 REQUIREMENT FOR SUBMISSION OF DATA OTHER THAN CERTIFIED COST OR OCT/2013
PRICING DATA -- MODIFICATIONS -- CANADIAN COMMERCIAL CORPORATION

This clause, in lieu of FAR 52.215-21, applies only if award is to the Canadian Commercial Corporation.

(a) Submission of certified cost or pricing data is not required.

(b) Canadian Commercial Corporation shall obtain and provide the following for modifications that exceed \$150,000 [or higher dollar value specified by the U.S. Contracting Officer in the solicitation].

(i) Profit rate or fee (as applicable).

(ii) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(iii) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable TBD.

(End of clause)

I-163 252.225-7027 RESTRICTION ON CONTINGENT FEES FOR FOREIGN MILITARY SALES APR/2003

(a) Except as provided in paragraph (b) of this clause, contingent fees, as defined in the Covenant Against Contingent Fees clause of this contract, are generally an allowable cost, provided the fees are paid to

(1) A bona fide employee of the Contractor; or

(2) A bona fide established commercial or selling agency maintained by the Contractor for the purpose of securing business.

(b) For foreign military sales, unless the contingent fees have been identified and payment approved in writing by the foreign customer before contract award, the following contingent fees are unallowable under this contract:

(1) For sales to the Government(s) of countries TBD, contingent fees in any amount.

(2) For sales to Governments not listed in paragraph (b)(1) of this clause, contingent fees exceeding \$50,000 per foreign military sale case.

(End of clause)

I-164 252.225-7043 ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE JUN/2015
THE UNITED STATES

(a) Definition. "United States," as used in this clause, means, the 50 States, the District of Columbia, and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

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(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is:

- (1) A foreign government;
- (2) A representative of a foreign government; or
- (3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from HQDA-AT; telephone, DSN 222-9832 or commercial (703 692-9832. .

(End of clause)

I-165 252.234-7002 EARNED VALUE MANAGEMENT SYSTEM (JAN 2025) JAN/2025
(a) Definitions. As used in this clause--

"Acceptable earned value management system" means an earned value management system that generally complies with system criteria in paragraph (b) of this clause.

"Earned value management system" means an earned value management system that complies with the earned value management system guidelines in the ANSI/EIA-748.

"Material weakness" means a deficiency or combination of deficiencies in the internal control over information in contractor business systems, such that there is a reasonable possibility that a material misstatement of such information will not be prevented, or detected and corrected, on a timely basis. A reasonable possibility exists when the likelihood of an event occurring is

- (1) Probable; or
- (2) More than remote but less than likely (section 806 of Pub. L. 116-283).

(b) System criteria. In the performance of this contract, the Contractor shall use--

(1) An Earned Value Management System (EVMS) that complies with the EVMS guidelines in the American National Standards Institute/Electronic Industries Alliance Standard 748, Earned Value Management Systems (ANSI/EIA-748); and

(2) Management procedures that provide for generation of timely, reliable, and verifiable information for the Contract Performance Report (CPR) and the Integrated Master Schedule (IMS) required by the CPR and IMS data items of this contract.

(c) If this contract has a value of \$50 million or more, the Contractor shall use an EVMS that has been determined to be acceptable by the Cognizant Federal Agency (CFA). If, at the time of award, the Contractor's EVMS has not been determined by the CFA to be in compliance with the EVMS guidelines as stated in paragraph (b)(1) of this clause, the Contractor shall apply its current system to the contract and shall take necessary actions to meet the milestones in the Contractor's EVMS plan.

(d) If this contract has a value of less than \$50 million, the Government will not make a formal determination that the Contractor's EVMS complies with the EVMS guidelines in ANSI/EIA-748 with respect to the contract. The use of the Contractor's EVMS for this contract does not imply a Government determination of the Contractor's compliance with the EVMS guidelines in ANSI/EIA-748 for application to future contracts. The Government will allow the use of a Contractor's EVMS that has been formally reviewed and determined by the CFA to be in compliance with the EVMS guidelines in ANSI/EIA-748.

(e) The Contractor shall submit notification of any proposed substantive changes to the EVMS procedures and the impact of those changes to the CFA. If this contract has a value of \$50 million or more, unless a waiver is granted by the CFA, any EVMS changes proposed by the Contractor require approval of the CFA prior to implementation. The CFA will advise the Contractor of the acceptability of such changes as soon as practicable (generally within 30 calendar days) after receipt of the Contractor's notice of proposed changes. If the CFA waives the advance approval requirements, the Contractor shall disclose EVMS changes to the CFA at least 14 calendar days prior to the effective date of implementation.

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(f) The Government will schedule integrated baseline reviews as early as practicable, and the review process will be conducted not later than 180 calendar days after--

- (1) Contract award;
- (2) The exercise of significant contract options; and
- (3) The incorporation of major modifications.

During such reviews, the Government and the Contractor will jointly assess the Contractor's baseline to be used for performance measurement to ensure complete coverage of the statement of work, logical scheduling of the work activities, adequate resourcing, and identification of inherent risks.

(g) The Contractor shall provide access to all pertinent records and data requested by the Contracting Officer or duly authorized representative as necessary to permit Government surveillance to ensure that the EVMS complies, and continues to comply, with the performance criteria referenced in paragraph (b) of this clause.

(h) When indicated by contract performance, the Contractor shall submit a request for approval to initiate an over-target baseline or over-target schedule to the Contracting Officer. The request shall include a top-level projection of cost and/or schedule growth, a determination of whether or not performance variances will be retained, and a schedule of implementation for the rebaselining. The Government will acknowledge receipt of the request in a timely manner (generally within 30 calendar days).

(i) Material weaknesses.

(1) The Contracting Officer will provide an initial determination to the Contractor, in writing, of any significant deficiencies. The initial determination will describe the deficiency in sufficient detail to allow the Contractor to understand the deficiency.

(2) The Contractor shall respond within 30 days to a written initial determination from the Contracting Officer that identifies significant deficiencies in the Contractor's EVMS. If the Contractor disagrees with the initial determination, the Contractor shall state, in writing, its rationale for disagreeing.

(3) The Contracting Officer will evaluate the Contractor's response and notify the Contractor, in writing, of the Contracting Officer's final determination concerning--

- (i) Remaining significant deficiencies;
- (ii) The adequacy of any proposed or completed corrective action;
- (iii) System noncompliance, when the Contractor's existing EVMS fails to comply with the earned value management system guidelines in the ANSI/EIA-748; and
- (iv) System disapproval, if initial EVMS validation is not successfully completed within the timeframe approved by the Contracting Officer, or if the Contracting Officer determines that the Contractor's earned value management system contains one or more material weaknesses in high-risk guidelines in ANSI/EIA-748 standards (guidelines 1, 3, 6, 7, 8, 9, 10, 12, 16, 21, 23, 26, 27, 28, 30, or 32). When the Contracting Officer determines that the existing earned value management system contains one or more material weaknesses in one or more of the remaining 16 guidelines in ANSI/EIA-748 standards, the Contracting Officer will use discretion to disapprove the system based on input received from functional specialists and the auditor.

(4) If the Contractor receives the Contracting Officer's final determination of material weaknesses, the Contractor shall, within 45 days of receipt of the final determination, either correct the material weaknesses or submit an acceptable corrective action plan showing milestones and actions to eliminate the material weaknesses.

(j) Withholding payments. If the Contracting Officer makes a final determination to disapprove the Contractor's EVMS, and the contract includes the clause at 252.242-7005, Contractor Business Systems, the Contracting Officer will withhold payments in accordance with that clause.

(k) Subcontracts. With the exception of paragraphs (i) and (j) of this clause, the Contractor shall require its subcontractors to comply with EVMS requirements as follows:

- (1) For subcontracts valued at \$50 million or more, the following subcontractors shall comply with the requirements of this clause:
[Contracting Officer to insert names of subcontractors (or subcontracted effort if subcontractors have not been selected/TBD) designated for application of the EVMS requirements of this clause.]
- (2) For subcontracts valued at less than \$50 million, the following subcontractors shall comply with the requirements of this clause,

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excluding the requirements of paragraph (c) of this clause:

[Contracting Officer to insert names of subcontractors (or subcontracted effort if subcontractors have not been selected/TBD) designated for application of the EVMS requirements of this clause.]

(End of clause)

I-166 252.235-7010 ACKNOWLEDGMENT OF SUPPORT AND DISCLAIMER MAY/1995

(a) The Contractor shall include an acknowledgment of the Government's support in the publication of any material based on or developed under this contract, stated in the following terms: This material is based upon work supported by the Army Contracting Command under Contract No. TBD.

(b) All material, except scientific articles or papers published in scientific journals, must, in addition to any notices or disclaimers by the Contractor, also contain the following disclaimer: Any opinions, findings and conclusions or recommendations expressed in this material are those of the author(s) and do not necessarily reflect the views of the -1-.

(End of clause)

I-167 52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT NOV/2021
(a) Definitions. As used in this clause--

"Agent" means any individual, including a director, an officer, an employee, or an independent Contractor, authorized to act on behalf of the organization.

"Full cooperation"--

(1) Means disclosure to the Government of the information sufficient for law enforcement to identify the nature and extent of the offense and the individuals responsible for the conduct. It includes providing timely and complete response to Government auditors and investigators' request for documents and access to employees with information;

(2) Does not foreclose any Contractor rights arising in law, the FAR, or the terms of the contract. It does not require--

(i) A Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine; or

(ii) Any officer, director, owner, or employee of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; and

(3) Does not restrict a Contractor from--

(i) Conducting an internal investigation; or

(ii) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

"Subcontract" means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

"Subcontractor" means any supplier, distributor, vendor, or firm that furnished supplies or services to or for a prime contractor or another subcontractor.

"United States," means the 50 States, the District of Columbia, and outlying areas.

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(b) Code of business ethics and conduct.

(1) Within 30 days after contract award, unless the Contracting Officer establishes a longer time period, the Contractor shall--

- (i) Have a written code of business ethics and conduct; and
- (ii) Make a copy of the code available to each employee engaged in performance of the contract.

(2) The Contractor shall--

- (i) Exercise due diligence to prevent and detect criminal conduct; and
- (ii) Otherwise promote an organizational culture that encourages ethical conduct and a commitment to compliance with the law.

(3)(i) The Contractor shall timely disclose, in writing, to the agency Office of the Inspector General (OIG), with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed--

(A) A violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 of the United States Code; or

(B) A violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(ii) The Government, to the extent permitted by law and regulation, will safeguard and treat information obtained pursuant to the Contractors disclosure as confidential where the information has been marked confidential or proprietary by the company. To the extent permitted by law and regulation, such information will not be released by the Government to the public pursuant to a Freedom of Information Act request, 5 U.S.C. Section 552, without prior notification to the Contractor. The Government may transfer documents provided by the Contractor to any department or agency within the Executive Branch if the information relates to matters within the organizations jurisdiction.

(iii) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the Contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract.

(c) Business ethics awareness and compliance program and internal control system. This paragraph (c) does not apply if the Contractor has represented itself as a small business concern pursuant to the award of this contract or if this contract is for the acquisition of a commercial product or commercial service as defined at FAR 2.101. The Contractor shall establish the following within 90 days after contract award, unless the Contracting Officer establishes a longer time period:

(1) An ongoing business ethics awareness and compliance program.

(i) This program shall include reasonable steps to communicate periodically and in a practical manner the Contractors standards and procedures and other aspects of the Contractors business ethics awareness and compliance program and internal control system, by conducting effective training programs and otherwise disseminating information appropriate to an individuals respective roles and responsibilities.

(ii) The training conducted under this program shall be provided to the Contractors principals and employees, and as appropriate, the Contractors agents and subcontractors.

(2) An internal control system.

(i) The Contractors internal control system shall--

(A) Establish standards and procedures to facilitate timely discovery of improper conduct in connection with Government contracts; and

(B) Ensure corrective measures are promptly instituted and carried out.

(ii) At a minimum, the Contractors internal control system shall provide for the following:

(A) Assignment of responsibility at a sufficiently high level and adequate resources to ensure effectiveness of the business ethics awareness and compliance program and internal control system.

(B) Reasonable efforts not to include an individual as a principal, whom due diligence would have exposed as having engaged in conduct that is in conflict with the Contractors code of business ethics and conduct.

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(C) Periodic reviews of company business practices, procedures, policies, and internal controls for compliance with the Contractors code of business ethics and conduct and the special requirements of Government contracting, including--

- (1) Monitoring and auditing to detect criminal conduct;
- (2) Periodic evaluation of the effectiveness of the business ethics awareness and compliance program and internal control system, especially if criminal conduct has been detected; and
- (3) Periodic assessment of the risk of criminal conduct, with appropriate steps to design, implement, or modify the business ethics awareness and compliance program and the internal control system as necessary to reduce the risk of criminal conduct identified through this process.

(D) An internal reporting mechanism, such as a hotline, which allows for anonymity or confidentiality, by which employees may report suspected instances of improper conduct, and instructions that encourage employees to make such reports.

(E) Disciplinary action for improper conduct or for failing to take reasonable steps to prevent or detect improper conduct.

(F) Timely disclosure, in writing, to the agency OIG, with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of any Government contract performed by the Contractor or a subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed a violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 U.S.C. or a violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(1) If a violation relates to more than one Government contract, the Contractor may make the disclosure to the agency OIG and Contracting Officer responsible for the largest dollar value contract impacted by the violation.

(2) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract, and the respective agencies contracting officers.

(3) The disclosure requirement for an individual contract continues until at least 3 years after final payment on the contract.

(4) The Government will safeguard such disclosures in accordance with paragraph (b)(3)(ii) of this clause.

(G) Full cooperation with any Government agencies responsible for audits, investigations, or corrective actions.

(d) Subcontracts.

(1) The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts that exceed the threshold specified in FAR 3.1004(a) on the date of subcontract award and a performance period of more than 120 days.

(2) In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(End of clause)

I-168 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS DEC/2014
The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

I-169 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS NOV/2021
(a) Definitions. As used in this clause--

"Covered contractor information system" means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

"Federal contract information" means information, not intended for public release, that is provided by or generated for the Government

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under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public Web sites) or simple transactional information, such as necessary to process payments.

"Information" means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

"Information system" means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

"Safeguarding" means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

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I-170 52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO NOV/2021
SURVEILLANCE SERVICES OR EQUIPMENT

(a) Definitions. As used in this clause--

"Backhaul" means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

"Covered foreign country" means The Peoples Republic of China.

"Covered telecommunications equipment or services" means--

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

"Critical technology" means--

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

"Interconnection arrangements" means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

"Reasonable inquiry" means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

"Roaming" means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

"Substantial or essential component" means any component necessary for the proper function or performance of a piece of equipment, system, or service.

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(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) Exceptions. This clause does not prohibit contractors from providing--

- (1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
- (2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement. (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil> . For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil> .

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I-171 52.204-27 Prohibition on a ByteDance Covered Application (Jun 2023) JUN/2023
(a) Definitions. As used in this clause

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use

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- (i) Of that equipment; or
- (ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;
- (2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but
- (3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

(b) Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, No TikTok on Government Devices Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractors employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I-172 52.215-11 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA-- OCT/2021
MODIFICATIONS (DEVIATION 2022-00001)

(a) This clause shall become operative only for any modification to this contract involving a pricing adjustment expected to exceed \$2 million on the date of execution of the modification, except that this clause does not apply to any modification if an exception under Federal Acquisition Regulation (FAR) 15.403-1(b) applies.

(b) If any price, including profit or fee, negotiated in connection with any modification under this clause, or any cost reimbursable under this contract, was increased by any significant amount because--

(1) The Contractor or a subcontractor furnished certified cost or pricing data that were not complete, accurate, and current as certified in its Certificate of Current Cost or Pricing Data;

(2) A subcontractor or prospective subcontractor furnished the Contractor certified cost or pricing data that were not complete, accurate, and current as certified in the Contractors Certificate of Current Cost or Pricing Data; or

(3) Any of these parties furnished data of any description that were not accurate, the price or cost shall be reduced accordingly and the contract shall be modified to reflect the reduction. This right to a price reduction is limited to that resulting from defects in data relating to modifications for which this clause becomes operative under paragraph (a) of this clause.

(c) Any reduction in the contract price under paragraph (b) of this clause due to defective data from a prospective subcontractor that was not subsequently awarded the subcontract shall be limited to the amount, plus applicable overhead and profit markup, by which--

(1) The actual subcontract price; or

(2) The actual cost to the Contractor, if there was no subcontract awarded, was less than the prospective subcontract cost estimate submitted by the Contractor; provided, that the actual subcontract price was not itself affected by defective certified cost or pricing data.

(d)(1) If the Contracting Officer determines under paragraph (b) of this clause that a price or cost reduction should be made, the Contractor agrees not to raise the following matters as a defense:

(i) The Contractor or subcontractor was a sole source supplier or otherwise was in a superior bargaining position and thus the price of the contract would not have been modified even if accurate, complete, and current certified cost or pricing data had been submitted.

(ii) The Contracting Officer should have known that the certified cost or pricing data in issue were defective even though the Contractor or subcontractor took no affirmative action to bring the character of the data to the attention of the Contracting Officer.

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(iii) The contract was based on an agreement about the total cost of the contract and there was no agreement about the cost of each item procured under the contract.

(iv) The Contractor or subcontractor did not submit a Certificate of Current Cost or Pricing Data.

(2)(i) Except as prohibited by subdivision (d)(2)(ii) of this clause, an offset in an amount determined appropriate by the Contracting Officer based upon the facts shall be allowed against the amount of a contract price reduction if--

(A) The Contractor certifies to the Contracting Officer that, to the best of the Contractors knowledge and belief, the Contractor is entitled to the offset in the amount requested; and

(B) The Contractor proves that the certified cost or pricing data were available before the as of date specified on its Certificate of Current Cost or Pricing Data, and that the data were not submitted before such date.

(ii) An offset shall not be allowed if--

(A) The understated data were known by the Contractor to be understated before the as of date specified on its Certificate of Current Cost or Pricing Data; or

(B) The Government proves that the facts demonstrate that the contract price would not have increased in the amount to be offset even if the available data had been submitted before the as of date specified on its Certificate of Current Cost or Pricing Data.

(e) If any reduction in the contract price under this clause reduces the price of items for which payment was made prior to the date of the modification reflecting the price reduction, the Contractor shall be liable to and shall pay the United States at the time such overpayment is repaid

(1) Interest compounded daily, as required by 26 U.S.C. 6622, on the amount of such overpayment to be computed from the date(s) of overpayment to the Contractor to the date the Government is repaid by the Contractor at the applicable underpayment rate effective for each quarter prescribed by the Secretary of the Treasury under 26 U.S.C. 6621(a)(2); and

(2) A penalty equal to the amount of the overpayment, if the Contractor or subcontractor knowingly submitted certified cost or pricing data that were incomplete, inaccurate, or noncurrent.

(End of clause)

I-173 52.215-13 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA--MODIFICATIONS OCT/2021
(DEVIATION 2022-00001)

(a) The requirements of paragraphs (b) and (c) of this clause shall--

(1) Become operative only for any modification to this contract involving a pricing adjustment expected to exceed \$2 million on the date of execution of the modification; and

(2) Be limited to such modifications.

(b) Before awarding any subcontract expected to exceed \$2 million, on the date of agreement on price or the date of award, whichever is later; or before pricing any subcontract modification involving a pricing adjustment expected to exceed \$2 million, the Contractor shall require the subcontractor to submit certified cost or pricing data (actually or by specific identification in writing), in accordance with Federal Acquisition Regulation (FAR) 15.408, Table 15-2 (to include any information reasonably required to explain the subcontractors estimating process such as the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data, and the nature and amount of any contingencies included in the price), unless an exception under FAR 15.403-1(b) applies. If the \$2 million threshold for submission of certified cost or pricing data is adjusted for inflation as set forth in FAR 1.109(a), then pursuant to FAR 1.109(d) the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment.

(c) The Contractor shall require the subcontractor to certify in substantially the form prescribed in FAR 15.406-2 that, to the best of its knowledge and belief, the data submitted under paragraph (b) of this clause were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract or subcontract modification.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in each subcontract that exceeds \$2 million on the date of agreement on price or the date of award, whichever is later.

(End of clause)

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I-174 52.215-19 NOTIFICATION OF OWNERSHIP CHANGES OCT/1997

- (a) The Contractor shall make the following notifications in writing:
- (1) When the Contractor becomes aware that a change in its ownership has occurred, or is certain to occur, that could result in changes in the valuation of its capitalized assets in the accounting records, the Contractor shall notify the Administrative Contracting Officer (ACO) within 30 days.
- (2) The Contractor shall also notify the ACO within 30 days whenever changes to asset valuations or any other cost changes have occurred or are certain to occur as a result of a change in ownership.
- (b) The Contractor shall --
- (1) Maintain current, accurate, and complete inventory records of assets and their costs;
- (2) Provide the ACO or designated representative ready access to the records upon request;
- (3) Ensure that all individual and grouped assets, their capitalized values, accumulated depreciation or amortization, and remaining useful lives are identified accurately before and after each of the Contractors ownership changes; and
- (4) Retain and continue to maintain depreciation and amortization schedules based on the asset records maintained before each Contractor ownership change.
- (c) The Contractor shall include the substance of this clause in all subcontracts under this contract that meet the applicability requirement of FAR 15.408(k).

(End of Clause)

I-175 52.219-4 NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022) OCT/2022

- (a) Evaluation preference. (1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-
- (i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and
- (ii) Otherwise successful offers from small business concerns.
- (2) The factor of 10 percent shall be applied on a line item basis or to any group of items on which award may be made. Other evaluation factors described in the solicitation shall be applied before application of the factor.
- (3) When the two highest rated offerors are a HUBZone small business concern and a large business, and the evaluated offer of the HUBZone small business concern is equal to the evaluated offer of the large business after considering the price evaluation preference, award will be made to the HUBZone small business concern.
- (b) Waiver of evaluation preference. A HUBZone small business concern may elect to waive the evaluation preference, in which case the factor will be added to its offer for evaluation purposes.
- ___ Offeror elects to waive the evaluation preference.
- (c) Joint venture. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of clause)

I-176 52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REPRESENTATION (JAN 2025) JAN/2025

(a) Definitions. As used in this clause

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months

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under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.
- (2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.
- (b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:
- (1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.
- (2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.
- (3) For long-term contracts-
- (i) Within 60 to 120 days prior to the end of the fifth year of the contract; and
- (ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.
- (c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)
- (1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);
- (2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);
- (3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and
- (4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).
- (d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards> .
- (e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition
- (1) Was set aside for small business and has a value above the simplified acquisition threshold;
- (2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or
- (3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

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(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it __ is, __ is not a small business concern under NAICS Code ____ assigned to contract number ____.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it __ is, __ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it __ is, __ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __ .]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it __ is, __ is not a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it __ is, __ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that

(i) It __ is, __ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It __ is, __ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title._____]

(End of clause)

I-177 52.222-19 CHILD LABOR--COOPERATION WITH AUTHORITIES AND REMEDIES (JAN 2025) JAN/2025
0(a) Applicability. This clause does not apply to the extent that the Contractor is supplying end products mined, produced, or manufactured in--

(1) Israel, and the anticipated value of the acquisition is \$50,000 or more;

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(2) Mexico, and the anticipated value of the acquisition is \$102,280 or more; or

(3) Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Italy, Japan, Korea, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or the United Kingdom and the anticipated value of the acquisition is \$174,000 or more.

(b) Cooperation with Authorities. To enforce the laws prohibiting the manufacture or importation of products mined, produced, or manufactured by forced or indentured child labor, authorized officials may need to conduct investigations to determine whether forced or indentured child labor was used to mine, produce, or manufacture any product furnished under this contract. If the solicitation includes the provision 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products, or the equivalent at 52.212-3(i), the Contractor agrees to cooperate fully with authorized officials of the contracting agency, the Department of the Treasury, or the Department of Justice by providing reasonable access to records, documents, persons, or premises upon reasonable request by the authorized officials.

(c) Violations. The Government may impose remedies set forth in paragraph (d) for the following violations:

(1) The Contractor has submitted a false certification regarding knowledge of the use of forced or indentured child labor for listed end products.

(2) The Contractor has failed to cooperate, if required, in accordance with paragraph (b) of this clause, with an investigation of the use of forced or indentured child labor by an Inspector General, Attorney General, or the Secretary of the Treasury.

(3) The Contractor uses forced or indentured child labor in its mining, production, or manufacturing processes.

(4) The Contractor has furnished under the contract end products or components that have been mined, produced, or manufactured wholly or in part by forced or indentured child labor. (The Government will not pursue remedies at paragraph (d)(2) or paragraph (d)(3) of this clause unless sufficient evidence indicates that the Contractor knew of the violation.)

(d) Remedies.

(1) The Contracting Officer may terminate the contract.

(2) The suspending and debarring official may suspend the Contractor in accordance with procedures in FAR subpart 9.4.

(3) The suspending and debarring official may debar the Contractor for a period not to exceed 3 years in accordance with the procedures in FAR subpart 9.4.

(End of clause)

I-178 52.222-35 EQUAL OPPORTUNITY FOR VETERANS
(a) Definitions. As used in this clause--

JUN/2020

"Active duty wartime or campaign badge veteran," "Armed Forces service medal veteran," "disabled veteran," "protected veteran," "qualified disabled veteran," and "recently separated veteran" have the meanings given at Federal Acquisition Regulation (FAR) 22.1301.

(b) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

(c) Subcontracts. The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR 22.1303(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-179 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES
(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires

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affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-180 52.223-3 HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (FEB 2021) FEB/2021

(a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b)The Offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Safety Data Sheet submitted under this contract.

Material (if none, insert None)	Identification No.

(c)This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d)The apparently successful offeror agrees to submit, for each item as required prior to award, a Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e)If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f)Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g)Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to --

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of Clause)

I-181	52.223-11	OZONE-DEPLETING SUBSTANCES AND HIGH GLOBAL WARMING POTENTIAL HYDROFLUOROCARBONS (MAY 2024)	MAY/2024
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(a) Definitions. As used in this clause--

"Global warming potential" means how much a given mass of a chemical contributes to global warming over a given time period compared to the same mass of carbon dioxide. Carbon dioxide's global warming potential is defined as 1.0.

"High global warming potential hydrofluorocarbons" means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables of alternatives available at <https://www.epa.gov/snap/>.

"Hydrofluorocarbons" means compounds that only contain hydrogen, fluorine, and carbon.

"Ozone-depleting substance" means any substance the Environmental Protection Agency designates in 40 CFR part 82 as--

- (1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or
- (2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) The Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j (b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

Warning: Contains (or manufactured with, if applicable) *_____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(c) The Contractor shall refer to EPA's SNAP program to identify alternatives. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables available at <https://www.epa.gov/snap/>.

(End of clause)

I-182	52.223-20	AEROSOLS (MAY 2024)	MAY/2024
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(a) Definitions. As used in this clause--

"Global warming potential" means how much a given mass of a chemical contributes to global warming over a given time period compared to the same mass of carbon dioxide. Carbon dioxide's global warming potential is defined as 1.0.

"High global warming potential hydrofluorocarbons" means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables of alternatives available at <https://www.epa.gov/snap/>).

"Hydrofluorocarbons" means compounds that contain only hydrogen, fluorine, and carbon.

(b) Unless otherwise specified in the contract, the Contractor shall reduce its use, release, or emissions of high global warming potential hydrofluorocarbons, when feasible, from aerosol propellants or solvents under this contract. When determining feasibility of using a particular alternative, the Contractor shall consider environmental, technical, and economic factors such as--

- (1) In-use emission rates, energy efficiency;
- (2) Safety, such as flammability or toxicity;
- (3) Ability to meet technical performance requirements; and
- (4) Commercial availability at a reasonable cost.

(c) The Contractor shall refer to EPA's SNAP program to identify alternatives. The SNAP list of alternatives is found at 40 CFR part 82,

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subpart G, with supplemental tables available at <https://www.epa.gov/snap/>

(End of clause)

I-183 52.223-21 FOAMS (MAY 2024)
(a) Definitions. As used in this clause--

MAY/2024

"Global warming potential" means how much a given mass of a chemical contributes to global warming over a given time period compared to the same mass of carbon dioxide. Carbon dioxide's global warming potential is defined as 1.0.

"High global warming potential hydrofluorocarbons" means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables of alternatives available at <http://www.epa.gov/snap/>.

"Hydrofluorocarbons" means compounds that contain only hydrogen, fluorine, and carbon.

(b) Unless otherwise specified in the contract, the Contractor shall reduce its use, release, and emissions of high global warming potential hydrofluorocarbons and refrigerant blends containing hydrofluorocarbons, when feasible, from foam blowing agents, under this contract. When determining feasibility of using a particular alternative, the Contractor shall consider environmental, technical, and economic factors such as--

- (1) In-use emission rates, energy efficiency, and safety;
- (2) Ability to meet performance requirements; and
- (3) Commercial availability at a reasonable cost.

(c) The Contractor shall refer to EPA's SNAP program to identify alternatives. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables available at <http://www.epa.gov/snap/>.

(End of clause)

I-184 52.230-2 COST ACCOUNTING STANDARDS

JUN/2020

(a) Unless the contract is exempt under 48 CFR 9903.201-1 and 9903.201-2, the provisions of 48 CFR Part 9903 are incorporated herein by reference and the Contractor, in connection with this contract, shall--

(1) (CAS-covered Contracts Only) By submission of a Disclosure Statement, disclose in writing the Contractors cost accounting practices as required by 48 CFR 9903.202-1 through 9903.202-5, including methods of distinguishing direct costs from indirect costs and the basis used for allocating indirect costs. The practices disclosed for this contract shall be the same as the practices currently disclosed and applied on all other contracts and subcontracts being performed by the Contractor and which contain a Cost Accounting Standards (CAS) clause. If the Contractor has notified the Contracting Officer that the Disclosure Statement contains trade secrets and commercial or financial information which is privileged and confidential, the Disclosure Statement shall be protected and shall not be released outside of the Government.

(2) Follow consistently the Contractors cost accounting practices in accumulating and reporting contract performance cost data concerning this contract. If any change in cost accounting practices is made for the purposes of any contract or subcontract subject to CAS requirements, the change must be applied prospectively to this contract and the Disclosure Statement must be amended accordingly. If the contract price or cost allowance of this contract is affected by such changes, adjustment shall be made in accordance with paragraph (a)(4) or (a)(5) of this clause, as appropriate.

(3) Comply with all CAS, including any modifications and interpretations indicated thereto contained in 48 CFR Part 9904, in effect on the date of award of this contract or, if the Contractor has submitted certified cost or pricing data, on the date of final agreement on price as shown on the Contractors signed certificate of current cost or pricing data. The Contractor shall also comply with any CAS (or modifications to CAS) which hereafter become applicable to a contract or subcontract of the Contractor. Such compliance shall be required prospectively from the date of applicability to such contract or subcontract.

(4)(i) (Agree to an equitable adjustment as provided in the Changes clause of this contract if the contract cost is affected by a change which, pursuant to paragraph (a)(3) of this clause, the Contractor is required to make to the Contractors established cost accounting practices.

(ii) Negotiate with the Contracting Officer to determine the terms and conditions under which a change may be made to a cost

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accounting practice, other than a change made under other provisions of paragraph (a)(4) of this clause; provided that no agreement may be made under this provision that will increase costs paid by the United States.

(iii) When the parties agree to a change to a cost accounting practice, other than a change under subdivision (a)(4)(i) of this clause, negotiate an equitable adjustment as provided in the Changes clause of this contract.

(5) Agree to an adjustment of the contract price or cost allowance, as appropriate, if the Contractor or a subcontractor fails to comply with an applicable Cost Accounting Standard, or to follow any cost accounting practice consistently and such failure results in any increased costs paid by the United States. Such adjustment shall provide for recovery of the increased costs to the United States, together with interest thereon computed at the annual rate established under section 6621(a)(2) of the Internal Revenue Code of 1986 (26 U.S.C. 6621(a)(2)) for such period, from the time the payment by the United States was made to the time the adjustment is effected. In no case shall the Government recover costs greater than the increased cost to the Government, in the aggregate, on the relevant contracts subject to the price adjustment, unless the Contractor made a change in its cost accounting practices of which it was aware or should have been aware at the time of price negotiations and which it failed to disclose to the Government.

(b) If the parties fail to agree whether the Contractor or a subcontractor has complied with an applicable CAS in 48 CFR 9904 or a CAS rule or regulation in 48 CFR 9903 and as to any cost adjustment demanded by the United States, such failure to agree will constitute a dispute under 41 U.S.C. chapter 71, Contract Disputes.

(c) The Contractor shall permit any authorized representatives of the Government to examine and make copies of any documents, papers, or records relating to compliance with the requirements of this clause.

(d) The Contractor shall include in all negotiated subcontracts which the Contractor enters into, the substance of this clause, except paragraph (b), and shall require such inclusion in all other subcontracts, of any tier, including the obligation to comply with all CAS in effect on the subcontractors award date or if the subcontractor has submitted certified cost or pricing data, on the date of final agreement on price as shown on the subcontractors signed Certificate of Current Cost or Pricing Data. If the subcontract is awarded to a business unit which pursuant to 48 CFR 9903.201-2 is subject to other types of CAS coverage, the substance of the applicable clause set forth in subsection 30.201-4 of the Federal Acquisition Regulation (FAR) shall be inserted. This requirement shall apply only to negotiated subcontracts in excess of the lower CAS threshold specified in FAR 30.201-4(b) on the date of subcontract award, except that the requirement shall not apply to negotiated subcontracts otherwise exempt from the requirement to include a CAS clause as specified in 48 CFR 9903.201-1.

(End of clause)

I-185 52.252-2 CLAUSES INCORPORATED BY REFERENCE (Feb 1998) FEB/1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of Clause)

I-186 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (Nov 2020) NOV/2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DoD Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

I-187 252.223-7001 HAZARD WARNING LABELS DEC/1991

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(a) Hazardous material, as used in this clause, is defined in the Hazardous Material Identification and Material Safety Data clause of this contract.

(b) The Contractor shall label the item package (unit container) of any hazardous material to be delivered under this contract in accordance with the Hazard Communication Standard (29 CFR 1910.1200 et seq). The Standard requires that the hazard warning label conform to the requirements of the standard unless the material is otherwise subject to the labeling requirements of one of the following statutes:

- (1) Federal Insecticide, Fungicide and Rodenticide Act;
- (2) Federal Food, Drug and Cosmetics Act;
- (3) Consumer Product Safety Act;
- (4) Federal Hazardous Substances Act; or
- (5) Federal Alcohol Administration Act.

(c) The Offeror shall list which hazardous material listed in the Hazardous Material Identification and Material Safety Data clause of this contract will be labeled in accordance with one of the Acts in paragraphs (b)(1) through (5) of this clause instead of the Hazard Communication Standard. Any hazardous material not listed will be interpreted to mean that a label is required in accordance with the Hazard Communication Standard.

MATERIAL (If None, Insert None.)	ACT

(d) The apparently successful Offeror agrees to submit, before award, a copy of the hazard warning label for all hazardous materials not listed in paragraph (c) of this clause. The Offeror shall submit the label with the Material Safety Data Sheet being furnished under the Hazardous Material Identification and Material Safety Data clause of this contract.

(e) The Contractor shall also comply with MIL-STD-129, Marking for Shipment and Storage (including revisions adopted during the term of this contract).

(End of clause)

I-188252.225-7013DUTY-FREE ENTRYNOV/2023

Definitions. As used in this clause

"Component," means any item supplied to the Government as part of an end product or of another component.

"Customs territory of the United States" means the 50 States, the District of Columbia, and Puerto Rico.

"Eligible product" means

- (1) "Designated country end product," as defined in the Trade Agreements (either basic or alternate) clause of this contract;
 - (2)Free Trade Agreement country end product,other than aend product,aMoroccan end product,aPanamanian end product,or aPeruvian end product,as defined in the Buy AmericanFree Trade AgreementsBalance of Payments Program (either basic or alternate II) clause of this contract; or
 - (3)Free Trade Agreement country end productother than aend product, Korean end product,Moroccan end product, Panamanian end product,orPeruvian end product,as defined in the Buy AmericanFree Trade AgreementsBalance of Payments Program (either alternate IV or alternate V) clause of this contract.
- "Qualifying country" and "qualifying country end product" have the meanings given in the Trade Agreements clause, the Buy American and Balance of Payments Program clause, or the Buy AmericanFree Trade AgreementsBalance of Payments Program clause of this contract, basic or alternate.

(b) Except as provided in paragraph (i) of this clause, or unless supplies were imported into the customs territory of the United States before the date of this contract or the applicable subcontract, the price of this contract shall not include any amount for duty on

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- (1) End items that are eligible products or qualifying country end products;
- (2) Components (including, without limitation, raw materials and intermediate assemblies) produced or made in qualifying countries, that are to be incorporated in U.S.- made end products to be delivered under this contract; or
- (3) Other supplies for which the Contractor estimates that duty will exceed \$300 per shipment into the customs territory of the United States.
- (c) The Contractor shall
- (1) Claim duty-free entry only for supplies that the Contractor intends to deliver to the Government under this contract, either as end items or components of end items; and
- (2) Pay duty on supplies, or any portion thereof, that are diverted to nongovernmental use, other than
- (i) Scrap or salvage; or
- (ii) Competitive sale made, directed, or authorized by the Contracting Officer.
- (d) Except as the Contractor may otherwise agree, the Government will execute duty-free entry certificates and will afford such assistance as appropriate to obtain the duty-free entry of supplies
- (1) For which no duty is included in the contract price in accordance with paragraph
- (b) of this clause; and
- (2) For which shipping documents bear the notation specified in paragraph (e) of this clause.
- (e) For foreign supplies for which the Government will issue duty-free entry certificates in accordance with this clause, shipping documents submitted to Customs shall
- (1) Consign the shipments to the appropriate
- (i) Military department in care of the Contractor, including the Contractor's delivery address; or
- (ii) Military installation; and
- (2) Include the following information:
- (i) Prime contract number and, if applicable, delivery order number.
- (ii) Number of the subcontract for foreign supplies, if applicable.
- (iii) Identification of the carrier.
- (iv)(A) For direct shipments to a U.S. military installation, the notation: "UNITED STATES GOVERNMENT, DEPARTMENT OF DEFENSE Duty-Free Entry to be claimed pursuant to Section XXII, Chapter 98, Subchapter VIII, Item 9808.00.30 of the Harmonized Tariff Schedule of the United States. Upon arrival of shipment at the appropriate port of entry, District Director of Customs, please release shipment under 19 CFR part 142 and notify Defense Contract Management Agency (DCMA) St. Louis, St. Louis, MO, ATTN: Duty Free Entry Team, 1222 Spruce Street, Room 9.300, St. Louis, MO 63103-2812, for execution of Customs Form 7501, 7501A, or 7506 and any required duty-free entry certificates."
- (B) If the shipment will be consigned to other than a military installation, e.g., a domestic contractor's plant, the shipping document notation shall be altered to include the name and address of the contractor, agent, or broker who will notify DCMA St. Louis, Duty Free Entry Team, for execution of the duty-free entry certificate. (If the shipment will be consigned to a contractor's plant and no duty-free entry certificate is required due to a trade agreement, the Contractor shall claim duty-free entry under the applicable trade agreement and shall comply with the U.S. Customs Service requirements. No notification to DCMA St. Louis, Duty Free Entry Team, is required.)
- (v) Gross weight in pounds (if freight is based on space tonnage, state cubic feet in addition to gross shipping weight).
- (vi) Estimated value in U.S. dollars.
- (vii) Activity address number of the contract administration office administering the prime contract, e.g., for DCMA Dayton, S3605A.

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- (f)Preparation of customs forms.
- (1)(i) Except for shipments consigned to a military installation, the Contractor shall
- (A) Prepare any customs forms required for the entry of foreign supplies into the customs territory of the United States in connection with this contract; and
- (B) Submit the completed customs forms to the District Director of Customs, with a copy to DCMA St. Louis, Duty Free Entry Team for execution of any required duty-free entry certificates.
- (ii) Shipments consigned directly to a military installation will be released in accordance with sections 10.101 and 10.102 of the U.S. Customs regulations.
- (2) For shipments containing both supplies that are to be accorded duty-free entry and supplies that are not, the Contractor shall identify on the customs forms those items that are eligible for duty-free entry.
- (g) The Contractor shall
- (1) Prepare (if the Contractor is a foreign supplier), or shall instruct the foreign supplier to prepare, a sufficient number of copies of the bill of lading (or other shipping document) so that at least two of the copies accompanying the shipment will be available for use by the District Director of Customs at the port of entry;
- (2) Consign the shipment as specified in paragraph (e) of this clause; and
- (3) Mark on the exterior of all packages
- (i) "UNITED STATES GOVERNMENT, DEPARTMENT OF DEFENSE"; and
- (ii) The activity address number of the contract administration office administering the prime contract.
- (h) The Contractor shall notify the Administrative Contracting Officer (ACO) in writing of any purchase of eligible products or qualifying country supplies to be accorded duty-free entry, that are to be imported into the customs territory of the United States for delivery to the Government or for incorporation in end items to be delivered to the Government. The Contractor shall furnish the notice to the ACO immediately upon award to the supplier and shall include in the notice
- (1) The Contractor's name, address, and Commercial and Government Entity (CAGE) code;
- (2) Prime contract number and, if applicable, delivery order number;
- (3) Total dollar value of the prime contract or delivery order;
- (4) Date of the last scheduled delivery under the prime contract or delivery order;
- (5) Foreign supplier's name and address;
- (6) Number of the subcontract for foreign supplies;
- (7) Total dollar value of the subcontract for foreign supplies;
- (8) Date of the last scheduled delivery under the subcontract for foreign supplies;
- (9) List of items purchased;
- (10) An agreement that the Contractor will pay duty on supplies, or any portion thereof, that are diverted to nongovernmental use other than
- (i) Scrap or salvage; or
- (ii) Competitive sale made, directed, or authorized by the Contracting Officer;
- (11) Country of origin; and
- (12) Scheduled delivery date(s).
- (i) This clause does not apply to purchases of eligible products or qualifying country supplies in connection with this contract if

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- (1) The supplies are identical in nature to supplies purchased by the Contractor or any subcontractor in connection with its commercial business; and
- (2) It is not economical or feasible to account for such supplies so as to ensure that the amount of the supplies for which duty-free entry is claimed does not exceed the amount purchased in connection with this contract.
- (j) The Contractor shall
- (1) Insert the substance of this clause, including this paragraph (j), in all subcontracts for
- (i) Qualifying country components; or
- (ii) Nonqualifying country components for which the Contractor estimates that duty will exceed \$200 per unit;
- (2) Require subcontractors to include the number of this contract on all shipping documents submitted to Customs for supplies for which duty-free entry is claimed pursuant to this clause; and
- (3) Include in applicable subcontracts
- (i) The name and address of the ACO for this contract;
- (ii) The name, address, and activity address number of the contract administration office specified in this contract; and
- (iii) The information required by paragraphs (h)(1), (2), and (3) of this clause.
- (End of clause)

I-189	252.225-7972	PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS (DEVIATION 2024-00014)	AUG/2024
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- (a) Definition. As used in this clause
- Covered foreign country means any of the following:
- (1) The Peoples Republic of China.
- (2) The Russian Federation.
- (3) The Islamic Republic of Iran.
- (4) The Democratic Peoples Republic of Korea.
- (b) Prohibition. In accordance with section 848 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2020 and section 817 of the NDAA for FY 2023, the Contractor shall not
- (1) Provide or use an unmanned aircraft system (UAS), or any related services or equipment, that
- (i) Is manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;
- (ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;
- (iii) Uses a ground control system or operating software developed in a covered foreign country, or by an entity domiciled in a covered foreign country; or
- (iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, a covered foreign country;
- (2) Provide or use a system for the detection or identification of a UAS, or any related services or equipment, that is manufactured in a covered foreign country or by an entity domiciled in a covered foreign country; or
- (3) On or after October 1, 2024, be an entity that operates equipment, as determined by the Secretary of Defense, from
- (i) Da-Jiang Innovations, or any subsidiary or affiliate of Da-Jiang Innovations;
- (ii) Any entity that produces or provides unmanned aircraft systems and is included on the Consolidated Screening List maintained by the International Trade Administration of the Department of Commerce (<https://www.trade.gov/consolidated-screening-list>); or
- (iii) Any entity that produces or provides unmanned aircraft systems and
- (A) Is domiciled in a covered foreign country; or
- (B) Is subject to unmitigated foreign ownership, control, or influence by a covered foreign country, as determined by the Secretary of Defense in accordance with the National Industrial Security Program.

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(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts or other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(End of clause)

I-190 252.225-7995 CONTRACTOR PERSONNEL PERFORMING IN THE UNITED STATES CENTRAL COMMAND SEP/2017
AREA OF RESPONSIBILITY (DEVIATION 2017-00004)

(a) Definitions. As used in this clause--

"Combatant Commander" means the Commander of the United States Central Command Area of Responsibility.

"Contractors authorized to accompany the Force," or "CAAF," means contractor personnel, including all tiers of subcontractor personnel, who are authorized to accompany U.S. Armed Forces in applicable operations and have been afforded CAAF status through a letter of authorization. CAAF generally include all U.S. citizen and third-country national employees not normally residing within the operational area whose area of performance is in the direct vicinity of U.S. Armed Forces and who routinely are collocated with the U.S. Armed Forces (especially in non-permissive environments). Personnel collocated with U.S. Armed Forces shall be afforded CAAF status through a letter of authorization. In some cases, Combatant Commander subordinate commanders may designate mission-essential host nation or local national contractor employees (e.g., interpreters) as CAAF. CAAF includes contractors previously identified as contractors deploying with the U.S. Armed Forces. CAAF status does not apply to contractor personnel in support of applicable operations within the boundaries and territories of the United States.

"Designated reception site" means the designated place for the reception, staging, integration, and onward movement of contractors deploying during a contingency. The designated reception site includes assigned joint reception centers and other Service or private reception sites.

"Law of war" means that part of international law that regulates the conduct of armed hostilities. The law of war encompasses all international law for the conduct of hostilities binding on the United States or its individual citizens, including treaties and international agreements to which the United States is a party, and applicable customary international law.

"Non-CAAF" means personnel who are not designated as CAAF, such as local national (LN) employees and non-LN employees who are permanent residents in the operational area or third-country nationals not routinely residing with U.S. Armed Forces (and third-country national expatriates who are permanent residents in the operational area) who perform support functions away from the close proximity of, and do not reside with, U.S. Armed Forces. Government-furnished support to non-CAAF is typically limited to force protection, emergency medical care, and basic human needs (e.g., bottled water, latrine facilities, security, and food when necessary) when performing their jobs in the direct vicinity of U.S. Armed Forces. Non-CAAF status does not apply to contractor personnel in support of applicable operations within the boundaries and territories of the United States.

"Subordinate joint force commander" means a sub-unified commander or joint task force commander.

(b) General.

(1) This clause applies to both CAAF and non-CAAF when performing in the United States Central Command (USCENTCOM) Area of Responsibility (AOR).

(2) Contract performance in USCENTCOM AOR may require work in dangerous or austere conditions. Except as otherwise provided in the contract, the Contractor accepts the risks associated with required contract performance in such operations.

(3) When authorized in accordance with paragraph (j) of this clause to carry arms for personal protection, contractor personnel are only authorized to use force for individual self-defense.

(4) Unless immune from host nation jurisdiction by virtue of an international agreement or international law, inappropriate use of force by contractor personnel authorized to accompany the U.S. Armed Forces can subject such personnel to United States or host nation prosecution and civil liability (see paragraphs (d) and (j)(3) of this clause).

(5) Service performed by contractor personnel subject to this clause is not active duty or service under 38 U.S.C. 106 note.

(c) Support.

(1)(i) The Combatant Commander will develop a security plan for protection of contractor personnel in locations where there is not sufficient or legitimate civil authority, when the Combatant Commander decides it is in the interests of the Government to provide security because--

(A) The Contractor cannot obtain effective security services;

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(B) Effective security services are unavailable at a reasonable cost; or

(C) Threat conditions necessitate security through military means.

(ii) In appropriate cases, the Combatant Commander may provide security through military means, commensurate with the level of security provided DoD civilians.

(2)(i) Generally, CAAF will be afforded emergency medical and dental care if injured while supporting applicable operations. Additionally, non-CAAF employees who are injured while in the vicinity of U. S. Armed Forces will normally receive emergency medical and dental care. Emergency medical and dental care includes medical care situations in which life, limb, or eyesight is jeopardized. Examples of emergency medical and dental care include examination and initial treatment of victims of sexual assault; refills of prescriptions for life-dependent drugs; repair of broken bones, lacerations, infections; and traumatic injuries to the dentition. Hospitalization will be limited to stabilization and short-term medical treatment with an emphasis on return to duty or placement in the patient movement system.

(ii) When the Government provides emergency medical treatment or transportation of Contractor personnel to a selected civilian facility, the Contractor shall ensure that the Government is reimbursed for any costs associated with such treatment or transportation.

(iii) Medical or dental care beyond this standard is not authorized.

(3) Contractor personnel must have a Synchronized Predeployment and Operational Tracker (SPOT)-generated letter of authorization signed by the Contracting Officer in order to process through a deployment center or to travel to, from, or within the USCENTCOM AOR. The letter of authorization also will identify any additional authorizations, privileges, or Government support that Contractor personnel are entitled to under this contract. Contractor personnel who are issued a letter of authorization shall carry it with them at all times while deployed.

(4) Unless specified elsewhere in this contract, the Contractor is responsible for all other support required for its personnel engaged in the USCENTCOM AOR under this contract.

(d) Compliance with laws and regulations.

(1) The Contractor shall comply with, and shall ensure that its personnel performing in the USCENTCOM AOR are familiar with and comply with, all applicable--

(i) United States, host country, and third country national laws;

(ii) Provisions of the law of war, as well as any other applicable treaties and international agreements;

(iii) United States regulations, directives, instructions, policies, and procedures; and

(iv) Orders, directives, and instructions issued by the Combatant Commander, including those relating to force protection, security, health, safety, or relations and interaction with local nationals.

(2) The Contractor shall institute and implement an effective program to prevent violations of the law of war by its employees and subcontractors, including law of war training in accordance with paragraph (e)(1)(vii) of this clause.

(3) The Contractor shall ensure that CAAF and non-CAAF are aware--

(i) Of the DoD definition of "sexual assault" in DoDD 6495.01, Sexual Assault Prevention and Response Program;

(ii) That the offenses addressed by the definition are covered under the Uniform Code of Military Justice (see paragraph (e)(2)(iv) of this clause). Other sexual misconduct may constitute offenses under the Uniform Code of Military Justice, or another Federal law, such as the Military Extraterritorial Jurisdiction Act, or host nation laws; and

(iii) That the offenses not covered by the Uniform Code of Military Justice may nevertheless have consequences to the contractor employees (see paragraph (h)(1) of this clause).

(4) The Contractor shall report to the appropriate investigative authorities, identified in paragraph (d)(6) of this clause, any alleged offenses under--

(i) The Uniform Code of Military Justice (chapter 47 of title 10, United States Code) (applicable to contractors serving with or accompanying an armed force in the field during a declared war or contingency operations); or

(ii) The Military Extraterritorial Jurisdiction Act (chapter 212 of title 18, United States Code).

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(5) The Contractor shall provide to all contractor personnel who will perform work on a contract in the deployed area, before beginning such work, information on the following:

- (i) How and where to report an alleged crime described in paragraph (d)(4) of this clause.
- (ii) Where to seek victim and witness protection and assistance available to contractor personnel in connection with an alleged offense described in paragraph (d)(4) of this clause.
- (iii) This section does not create any rights or privileges that are not authorized by law or DoD policy.

(6) The appropriate investigative authorities to which suspected crimes shall be reported include the following--

- (i) US Army Criminal Investigation Command at <<http://www.cid.army.mil/index.html>>;
- (ii) Air Force Office of Special Investigations at <<http://www.osi.af.mil>>;
- (iii) Navy Criminal Investigative Service at <<http://www.ncis.navy.mil/Pages/publicdefault.aspx>>;
- (iv) Defense Criminal Investigative Service at <<http://www.dodig.mil/HOTLINE/index.html>>;
- (v) Any command of any supported military element or the command of any base.

(7) Personnel seeking whistleblower protection from reprisals for reporting criminal acts shall seek guidance through the DoD Inspector General hotline at 800-424-9098 or <www.dodig.mil/HOTLINE/index.html>. Personnel seeking other forms of victim or witness protections should contact the nearest military law enforcement office.

(8) The Contractor shall ensure that Contractor employees supporting the U.S. Armed Forces deployed outside the United States are aware of their rights to--

- (i) Hold their own identity or immigration documents, such as passport or drivers license;
- (ii) Receive agreed upon wages on time;
- (iii) Take lunch and work-breaks;
- (iv) Elect to terminate employment at any time;
- (v) Identify grievances without fear of reprisal;
- (vi) Have a copy of their employment contract in a language they understand;
- (vii) Receive wages that are not below the legal in-country minimum wage;
- (viii) Be notified of their rights, wages, and prohibited activities prior to signing their employment contract; and
- (ix) If housing is provided, live in housing that meets host-country housing and safety standards.

(e) Preliminary personnel requirements.

(1) The Contractor shall ensure that the following requirements are met prior to deploying CAAF (specific requirements for each category will be specified in the statement of work or elsewhere in the contract):

- (i) All required security and background checks are complete and acceptable.
- (ii) All CAAF deploying in support of an applicable operation--
 - (A) Are medically, dentally, and psychologically fit for deployment and performance of their contracted duties;
 - (B) Meet the minimum medical screening requirements, including theater-specific medical qualifications as established by the geographic Combatant Commander (as posted to the Geographic Combatant Commanders website or other venue); and
 - (C) Have received all required immunizations as specified in the contract.

(1) During predeployment processing, the Government will provide, at no cost to the Contractor, any military-specific

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immunizations and/or medications not available to the general public.

(2) All other immunizations shall be obtained prior to arrival at the deployment center.

(3) All CAAF and, as specified in the statement of work, select non-CAAF shall bring to the USCENTCOM AOR a copy of the U.S. Centers for Disease Control and Prevention (CDC) Form 731, International Certificate of Vaccination or Prophylaxis as approved by the World Health Organization, (also known as "shot record" or "Yellow Card") that shows vaccinations are current.

(iii) Deploying personnel have all necessary passports, visas, and other documents required to enter and exit the USCENTCOM AOR and have a Geneva Conventions identification card, or other appropriate DoD identity credential, from the deployment center.

(iv) Special area, country, and theater clearance is obtained for all personnel deploying. Clearance requirements are in DoD Directive 4500.54E, DoD Foreign Clearance Program. For this purpose, CAAF are considered non-DoD contractor personnel traveling under DoD sponsorship.

(v) All deploying personnel have received personal security training. At a minimum, the training shall--

(A) Cover safety and security issues facing employees overseas;

(B) Identify safety and security contingency planning activities; and

(C) Identify ways to utilize safety and security personnel and other resources appropriately.

(vi) All personnel have received isolated personnel training, if specified in the contract, in accordance with DoD Instruction 1300.23, Isolated Personnel Training for DoD Civilian and Contractors.

(vii) Personnel have received law of war training as follows:

(A) Basic training is required for all CAAF. The basic training will be provided through--

(1) A military-run training center; or

(2) A web-based source, if specified in the contract or approved by the Contracting Officer.

(B) Advanced training, commensurate with their duties and responsibilities, may be required for some Contractor personnel as specified in the contract.

(2) The Contractor shall notify all personnel who are not a host country national, or who are not ordinarily resident in the host country, that such employees, and dependents residing with such employees, who engage in conduct outside the United States that would constitute an offense punishable by imprisonment for more than one year if the conduct had been engaged in within the special maritime and territorial jurisdiction of the United States, may potentially be subject to the criminal jurisdiction of the United States in accordance with the Military Extraterritorial Jurisdiction Act of 2000 (18 U.S.C. 3261, et seq.);

(3) The Contractor shall notify all personnel that--

(i) Pursuant to the War Crimes Act (18 U.S.C. 2441), Federal criminal jurisdiction also extends to conduct that is determined to constitute a war crime;

(ii) Other laws may provide for prosecution of U.S. nationals who commit offenses on the premises of U.S. diplomatic, consular, military or other U.S. Government missions outside the United States (18 U.S.C. 7(9)) or non-U.S. nationals who commit crimes against U.S. nationals in those places; and

(iii) In time of declared war or a contingency operation, CAAF are subject to the jurisdiction of the Uniform Code of Military Justice under 10 U.S.C. 802(a)(10).

(iv) Such employees are required to report offenses alleged to have been committed by or against contractor personnel to appropriate investigative authorities.

(v) Such employees will be provided victim and witness protection and assistance.

(f) Processing and departure points. CAAF shall--

(1) Process through the deployment center designated in the contract, or as otherwise directed by the Contracting Officer, prior to deploying. The deployment center will conduct deployment processing to ensure visibility and accountability of contractor personnel and to ensure that all deployment requirements are met, including the requirements specified in paragraph (e)(1) of this clause;

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(2) Use the point of departure and transportation mode directed by the Contracting Officer; and

(3) Process through a designated reception site (DRS) upon arrival at the deployed location. The DRS will validate personnel accountability, ensure that specific USCENTCOM AOR entrance requirements are met, and brief contractor personnel on theater-specific policies and procedures.

(g) Contractor Accountability and Personnel Data.

The Synchronized Predeployment and Operational Tracker (SPOT) is the joint web-based database to assist the Combatant Commanders in maintaining awareness of the nature, extent, and potential risks and capabilities associated with contracted support for contingency operations, humanitarian assistance and peacekeeping operations, or military exercises designated by USCENTCOM.

(1) Contractors shall account for all CAAF and non-CAAF personnel in SPOT by name.

(2) Registration. The Contractor shall comply with SPOT registration requirements.

(i) Contractor appointed company administrators for unclassified contracts shall register for a SPOT account at <<https://spot.dmdc.mil>>. For classified contracts, users shall access SPOT at <<https://spot.dmdc.osd.smil.mil>>.

(ii) Register in SPOT using one of the following log-in methods--

(A) A Common Access Card (CAC) or a SPOT-approved digital certificate; or

(B) A Government-sponsored SPOT user ID and password. This type of log-in method is only allowed for those individuals who are not authorized to obtain a CAC or an external digital certificate, and requires SPOT Program Management Office approval.

(iii) The SPOT Customer Support Team must validate user need. This process may take 2 business days. Contractor representatives will be contacted to validate contractor administrator account requests and determine the appropriate level of user access.

(iv) Refer to the OSD Program Support website at <<http://www.acq.osd.mil/log/PS/spot.html>> for the SPOT Business Rules, additional training resources, documentation regarding registration, and use of SPOT.

(3) Compliance with SPOT.

(i) The Contractor shall comply with the SPOT Business Rules located at <<http://www.acq.osd.mil/log/PS/spot.html>>.

(A) The Contractor shall enter into the SPOT web-based system the required information on Contractor personnel prior to deployment to the designated operational area and shall continue to use the SPOT web-based system to maintain accurate, up-to-date information throughout the deployment for applicable Contractor personnel.

(B) The Contractor shall ensure the in-theater arrival date (ITAD), deployment closeout dates and changes to the status of individual Contractor personnel relating to their ITAD and their duty location, to include closing out the deployment with their proper status (e.g., mission complete, killed, wounded) are updated in the system in accordance with the processes and timelines established in the SPOT business rules.

(ii) SPOT non-compliance and deficiencies will be relevant to past performance evaluations for future contract opportunities in accordance with FAR subpart 42.15, Contractor Performance Information.

(h) Contractor personnel.

(1) The Contracting Officer may direct the Contractor, at its own expense, to remove and replace any contractor personnel who jeopardize or interfere with mission accomplishment or who fail to comply with or violate applicable requirements of this contract. Such action may be taken at the Governments discretion without prejudice to its rights under any other provision of this contract, including the Termination for Default clause.

(2) The Contractor shall identify all personnel who occupy a position designated as mission essential and ensure the continuity of essential Contractor services during designated operations, unless, after consultation with the Contracting Officer, Contracting Officers representative, or local commander, the Contracting Officer directs withdrawal due to security conditions.

(3) The Contractor shall ensure that contractor personnel follow the guidance at paragraph (e)(2)(v) of this clause and any specific Combatant Commander guidance on reporting offenses alleged to have been committed by or against contractor personnel to appropriate investigative authorities.

(4) Contractor personnel shall return all U.S. Government-issued identification, to include the Common Access Card, to appropriate U.S. Government authorities at the end of their deployment (or, for non-CAAF, at the end of their employment under this contract).

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- (i) Military clothing and protective equipment.
 - (1) Contractor personnel are prohibited from wearing military clothing unless specifically authorized in writing by the Combatant Commander. If authorized to wear military clothing, contractor personnel must--
 - (i) Wear distinctive patches, arm bands, nametags, or headgear, in order to be distinguishable from military personnel, consistent with force protection measures; and
 - (ii) Carry the written authorization with them at all times.
 - (2) Contractor personnel may wear military-unique organizational clothing and individual equipment (OCIE) required for safety and security, such as ballistic, nuclear, biological, or chemical protective equipment.
 - (3) The deployment center, or the Combatant Commander, shall issue OCIE and shall provide training, if necessary, to ensure the safety and security of contractor personnel.
 - (4) The Contractor shall ensure that all issued OCIE is returned to the point of issue, unless otherwise directed by the Contracting Officer.
- (j) Weapons.
 - (1) If the Contractor requests that its personnel performing in the USCENTCOM AOR be authorized to carry weapons for individual self-defense, the request shall be made through the Contracting Officer to the Combatant Commander, in accordance with DoD Instruction 3020.41. The Combatant Commander will determine whether to authorize in-theater contractor personnel to carry weapons and what weapons and ammunition will be allowed.
 - (2) If contractor personnel are authorized to carry weapons in accordance with paragraph (j)(1) of this clause, the Contracting Officer will notify the Contractor what weapons and ammunition are authorized.
 - (3) The Contractor shall ensure that its personnel who are authorized to carry weapons--
 - (i) Are adequately trained to carry and use them--
 - (A) Safely;
 - (B) With full understanding of, and adherence to, the rules of the use of force issued by the Combatant Commander; and
 - (C) In compliance with applicable agency policies, agreements, rules, regulations, and other applicable law;
 - (ii) Are not barred from possession of a firearm by 18 U.S.C. 922;
 - (iii) Adhere to all guidance and orders issued by the Combatant Commander regarding possession, use, safety, and accountability of weapons and ammunition;
 - (iv) Comply with applicable Combatant Commander and local commander force-protection policies; and
 - (v) Understand that the inappropriate use of force could subject them to U.S. or host-nation prosecution and civil liability.
 - (4) Whether or not weapons are Government-furnished, all liability for the use of any weapon by contractor personnel rests solely with the Contractor and the Contractor employee using such weapon.
 - (5) Upon redeployment or revocation by the Combatant Commander of the Contractors authorization to issue firearms, the Contractor shall ensure that all Government-issued weapons and unexpended ammunition are returned as directed by the Contracting Officer.
- (k) Vehicle or equipment licenses. Contractor personnel shall possess the required licenses to operate all vehicles or equipment necessary to perform the contract in the USCENTCOM AOR.
- (l) Purchase of scarce goods and services. If the Combatant Commander has established an organization for the USCENTCOM AOR whose function is to determine that certain items are scarce goods or services, the Contractor shall coordinate with that organization local purchases of goods and services designated as scarce, in accordance with instructions provided by the Contracting Officer.
- (m) Evacuation.
 - (1) If the Combatant Commander orders a mandatory evacuation of some or all personnel, the Government will provide assistance, to the

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extent available, to United States and third country national contractor personnel.

(2) In the event of a non-mandatory evacuation order, unless authorized in writing by the Contracting Officer, the Contractor shall maintain personnel on location sufficient to meet obligations under this contract.

(n) Next of kin notification and personnel recovery.

(1) The Contractor shall be responsible for notification of the employee-designated next of kin in the event an employee dies, requires evacuation due to an injury, or is isolated, missing, detained, captured, or abducted.

(2) The Government will assist in personnel recovery actions in accordance with DoD Directive 3002.01E, Personnel Recovery in the Department of Defense.

(o) Mortuary affairs. Contractor personnel who die while in support of the U.S. Armed Forces shall be covered by the DoD mortuary affairs program as described in DoD Directive 1300.22, Mortuary Affairs Policy, and DoD Instruction 3020.41, Operational Contractor Support.

(p) Changes. In addition to the changes otherwise authorized by the Changes clause of this contract, the Contracting Officer may, at any time, by written order identified as a change order, make changes in the place of performance or Government-furnished facilities, equipment, material, services, or site. Any change order issued in accordance with this paragraph (p) shall be subject to the provisions of the Changes clause of this contract.

(q) Subcontracts. The Contractor shall incorporate the substance of this clause, including this paragraph (q), in all subcontracts when subcontractor personnel are performing in the USCENTCOM AOR.

(End of clause)

I-191 252.243-7999 SECTION 3610 REIMBURSEMENT
(a) Definitions. As used in this clause--

AUG/2020

"Affected contractor" means a contractor that has incurred costs to provide paid leave for its employees or subcontractors to maintain its workforce in a ready state and otherwise meets all the requirements of section 3610 of the Coronavirus Aid, Relief, and Economic Security Act (CARES Act) (Pub. L. 116136).

(b) Reduction for credits or loan forgiveness.

(1) Section 3610 of the CARES Act requires that the maximum reimbursement to affected contractors authorized by section 3610 shall be reduced by the amount of any credits received pursuant to Division G of Public Law 116-127 and any applicable credits a contractor is allowed under the CARES Act. The Contracting Officer will reduce the amount of the funds authorized under section 3610 and provided by modification, commensurate with the amount of any credits or loan forgiveness received.

(2) Should the timing of any other reimbursements be such that the Contractor is unable to provide notification to the contracting officer prior to execution of a contract modification resulting from the Contractors section 3610 reimbursement request, the Contractor shall notify the contracting officer, as provided in paragraph (c), and agrees that the Government will modify the contract to reduce the reimbursed amount by the credit or loan forgiveness amount received.

(c) Notice of receipt of credits or loan forgiveness.

(1) The Contractor shall notify the Contracting Officer in writing within 30 days of receiving--

(i) Loan forgiveness pursuant to--

(A) Division G of the Families First Coronavirus Response Act (Pub. L. 116127); or

(B) The Coronavirus Aid, Relief, and Economic Security Act (CARES Act) (Pub. L. 116136); and

(ii) Any other credit allowed by law (including State and local laws that are specifically identifiable with the public health emergency declared on January 31, 2020, for COVID-19).

(2) Include in the notice to the Contracting Officer the amount of any credits or loan forgiveness received along with supporting information necessary to facilitate calculation of the required reductions of reimbursement provided under any contract modification pursuant to section 3610 reimbursement to offset credits or loan forgiveness received under paragraph (c)(1).

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(d) Audit. The Government reserves the right to audit the Contractors billed costs reimbursed under section 3610 of the CARES Act to ensure accuracy and compliance with law and any applicable regulations.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e), in any subcontract modification that involves the reimbursement of paid leave under section 3610 of the CARES Act to affected subcontractors, including subcontracts for the acquisition of commercial items.

(End of clause)

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SECTION J - LIST OF ATTACHMENTS

List of Addenda	Title	Date	Number of Pages	Transmitted By
Exhibit A	CONTRACT DATA REQUIREMENTS LIST	06-FEB-2026	001	DATA
Attachment 0001	RESERVED	10-DEC-2025	001	DATA
Attachment 0002	CSDR PLAN REQUIREMENTS	04-FEB-2026	001	DATA
Attachment 0003	RESOURCE DISTRIBUTION TABLE	04-FEB-2026	001	DATA
Attachment 0004	AMPV DEPROCESSING CHECKLIST	04-FEB-2026	001	DATA
Attachment 0005	BRADLEY M2A4 AND M7A4 TI DEPROCESSING CHECKLIST	04-FEB-2026	001	DATA
Attachment 0006	MASTER M88A2 DEPROCESSING CHECKLIST	04-FEB-2026	001	DATA
Attachment 0007	CUI -TM 9-2350-418-10 (VOLUMES 1-2) OPERATOR MANUAL FOR AMPV GENERAL PURPOSE CARRIER M1283	04-FEB-2026	984	DATA
Attachment 0008	CUI -TM 9-2350-414-10 (VOLUMES 1-2) OPERATOR MANUAL FOR AMPV MEDICAL EVACUATION M1284	04-FEB-2026	001	DATA
Attachment 0009	CUI -TM 9-2350-415-10 (VOLUMES 1-2) OPERATOR MANUAL FOR AMPV MEDICAL TREATMENT M1285	04-FEB-2026	001	DATA
Attachment 0010	CUI -TM 9-2350-417-10 (VOLUMES 1-2) OPERATOR MANUAL FOR AMPV MORTAR CARRIER M1287	04-FEB-2026	001	DATA
Attachment 0011	CUI -TM 9-2350-416-10 (VOLUMES 1-2) OPERATOR MANUAL FOR AMPV MISSION COMMAND M1286	04-FEB-2026	001	DATA
Attachment 0012	CUI -TM 9-2350-457-10 C1, NETWORKING PROCEDURES AMPV MISSION COMMAND XM1286	04-FEB-2026	001	DATA
Attachment 0013	CUI -TM 9-2350-461-10, OPERATOR MANUAL FOR NETWORK EVOLUTION 2.0 M1286	04-FEB-2026	001	DATA
Attachment 0014	CUI -TM 9-2350-459-10, OPERATOR MANUAL FOR AMPV OBJECTIVE COMMANDER WEAPON STATION M1283, M1287, M1284,M1285, AND M1286	04-FEB-2026	001	DATA
Attachment 0015	CUI -TM 9-2350-292-23P (VOLUMES 1-2)	04-FEB-2026	001	DATA
Attachment 0016	CUI -TM 9-2350-441-10 (VOLUMES 1-2) OPERATING MANUAL FOR FIGHTING VEHICLE, INFANTRY	04-FEB-2026	001	DATA
Attachment 0017	CUI -TM 9-2350-439-10 OPERATOR MANUAL FOR FIGHTING VEHICLE A3 BFIST W/FS3	04-FEB-2026	001	DATA
Attachment 0018	CUI -TM 9-2350-442-10 (VOLUMES 1-2) OPERATING MANUAL FOR BRADLEY FIRE SUPPORT M7A4 BFIST	04-FEB-2026	001	DATA
Attachment 0019	CUI -TM 9-2350-256-10, OPERATOR'S MANUAL FOR RECOVERY VEHICLE, FULL TRACKED: MEDIUM M88A1	04-FEB-2026	001	DATA
Attachment 0020	CUI -TM 9-2350-438-10 OPERATOR MANUAL FOR FIGHTING VEHICLE, INFANTRY M2A3 (NSN 2350-01-436-0005)	04-FEB-2026	001	DATA
Attachment 0021	CUI -TM 9-2350-438-20&P (VOLUMES 1-9) INFANTRY M2A3 AND M2ODSA	04-FEB-2026	001	DATA
Attachment 0022	CUI- TM 9-2350-439-20&P (VOLUMES 1-11)	04-FEB-2026	001	DATA
Attachment 0023	CUI -TM 9-2350-292-10 OPERATOR MANUAL FOR RECOVERY VEHICLE, FULL TRACKED; HEAVY M88A2	04-FEB-2026	001	DATA
Attachment 0024	CUI -TM 9-2350-256-23 (VOLUMES 1-6)FIELD MAINTENANCE MANUAL FOR RECOVERY VEHICLE, FULL TRACKED; MEDIUM M88A1	04-FEB-2026	001	DATA
Attachment 0025	CUI -TM 9-2350-292-23 (VOLUMES 1-6), FIELD MAINTENANCE MANUAL FOR RECOVERY VEHICLE, FULL TRACKED; HEAVY M88A2	04-FEB-2026	001	DATA
Attachment 0026	CUI -TM 9-2350-256-23 (VOLUMES 1-4), FIELD MAINTENANCE MANUAL FOR RECOVERY VEHICLE, FULL TRACKED; MEDIUM M88A1	04-FEB-2026	001	DATA
Attachment 0027	CUI -TM 9-2350-256-23P (VOLUMES 1-2), FIELD MAINTENANCE MANUAL REPAIR PARTS AND SPECIAL TOOLS LIST FOR RECOVERY VEHICLE, FULL TRACKED; MEDIUM M88A1	04-FEB-2026	001	DATA
Attachment 0028	CUI -TM 9-2350-256-10, OPERATOR'S MANUAL FOR RECOVERY VEHICLE, FULL TRACKED: MEDIUM M88A1	04-FEB-2026	001	DATA
Attachment 0029	CUI -IETM ATTACHMENTS	04-FEB-2026	001	DATA
Attachment 0030	CUI -WELDING STANDARDS TABLE REV 10	04-FEB-2026	001	DATA
Attachment 0031	CUI -MAV STEEL DOCUMENT	04-FEB-2026	001	DATA
Attachment 0032	CUI -MAV ALUMINUM DOCUMENT	04-FEB-2026	001	DATA
Attachment 0033	SOLICITATION DD254	04-FEB-2026	001	DATA
Attachment 0034	CUI -PM MAV OPSEC PLAN	04-FEB-2026	001	DATA
Attachment 0035	CUI -AMPV SECURITY CLASSIFICATION GUIDE	04-FEB-2026	001	DATA
Attachment 0036	CUI -M88 SECURITY CLASSIFICATION GUIDE	04-FEB-2026	001	DATA
Attachment 0037	CUI -BRADLEY SECURITY CLASSIFICATION GUIDE	04-FEB-2026	001	DATA

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List of Addenda	Title	Date	Number of Pages	Transmitted By
Attachment 0038	GOVERNMENT FORMAT PRICING MODEL	04-FEB-2026	001	DATA
Attachment 0039	GOVERNMENT FORMAT PRICING MODEL - SUB CONTRACTORS	04-FEB-2026	001	DATA
Attachment 0040	SMALL BUSINESS PARTICIPATION FACTOR WORKBOOK	04-FEB-2026	001	DATA
Attachment 0041	SMALL BUSINESS PARTICIPATION FACTOR WORKBOOK INSTRUCTOR	04-FEB-2026	001	DATA
Attachment 0042	CERTIFICATION FORM (VERIFYING SB SIZE AND STANDARD)	04-FEB-2026	001	DATA
Attachment 0043	DCAA PRE-AWARD SURVEY OF PROSPECTIVE CONTRACTOR ACCOUNTING SYSTEM CHECKLIST	04-FEB-2026	001	DATA
Attachment 0044	PAST PERFORMANCE QUESTIONNAIRE	04-FEB-2026	001	DATA
Attachment 0045	WAGE DETERMINATION 2015-0025, CONTRACT FIELD TEAMS, NATIONWIDE REVISION 39	04-FEB-2026	001	DATA
Attachment 0046	WAGE DETERMINATION 1988-0407, INSPECTOR, NATIONWIDE REVISION 69	04-FEB-2026	001	DATA
Attachment 0047	RESERVED FOR COMPOSITE LABOR RATE	04-FEB-2026	001	DATA

J-1 CONTRACT DATA REQUIREMENTS LIST (CDRL)

A001 MEETING MINUTES
 A002 BRIEFING MATERIAL
 A003 MANHOUR ESTIMATE, TECHNICAL COST PROPOSALS
 A004 FIELDING HAND-OFF DOCUMENTATION/DA FORM 5682 SUBMITTAL
 A005 RESOURCE DISTRIBUTION TABLE
 A006 COST AND HOUR REPORT (FLEXFILE)
 A007 MAINTENANCE AND REPAIR PARTS DATA REPORT
 A008 CONTRACT FIELD SERVICE SUPPORT STATUS REPORT
 A009 PROJECT STATUS REPORT
 A010 PERFORMANCE AND COST REPORT
 A011 CONTRACT FUNDS STATUS REPORT
 A012 REACHBACK REPORT
 A013 TECHNICAL PUBLICATIONS AND RECOMMENDED CHANGES
 A014 GOVERNMENT PROPERTY AND INVENTORY REPORT
 A015 PRODUCT QUALITY DEFICIENCY REPORT, FIELD/CUSTOMER GENERATED
 A016 FIELDING HAND-OFF DOCUMENTATION REPORT
 A017 DEFICIENCY REPORT
 A018 RECORD VEHICLE SHIPMENTS
 A019 FIELDING REPORT
 A020 SUPPLY DISCREPANCY REPORT
 A021 INSPECTION AND MAINTENANCE REPORT
 A022 MAINTENANCE RECORDS
 A023 WHOLESALE SUPPLY SYSTEM TRANSACTIONS REPORT
 A024 PARTS HISTORY REPORT FOR OFF-LINE REQUISITIONS
 A025 DEPROCESSING AND PFI ON DD 2404
 A026 CERTIFIED DEPLOYMENT PLAN CHECKLIST
 A027 ESTIMATE OF COST TO REPAIR
 A028 NET PLAN AND TRAINING SUPPORT PACKAGE
 A029 TRAINING COMPLETION REPORT
 A030 TRAINING CERTIFICATE
 A031 RESERVED
 A032 MWO KITS SCHEDULE
 A033 TECHNICAL INSPECTION PACKAGE
 A034 MODIFICATION MANAGEMENT INFORMATION SYSTEM
 A035 CONTRACTOR ACQUIRED PROPERTY REPORT
 A036 CEILING AND FIXED FEE COMPLIANCE REPORT
 A037 OPSEC TRAINING REPORT
 A038 OPSEC AWARENESS (LEVEL 1) TRAINING REPORT
 A039 ANTITERRORISM LEVEL 1 TRAINING REPORT
 A040 iWATCH TRAINING REPORT

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- A041 CONTRACTOR'S RECORD OF TEIR 1 LEVEL SUPPLIERS RECEIVING/DEVELOPING COVERED DEFENSE INFORMATION
- A042 CONTRACTOR'S SYSTEMS SECURITY PLAN AND ASSOCIATED PLANS OF ACTION TO IMPLEMENT NIST SP 800-171
ON A CONTRACTOR'S INTERNAL UNCLASSIFIED INFORMATION SYSTEM
- A043 DESKTOP METRICS-PROJECT SCHEDULE
- A044 LOGISTICS MAINTENANCE AND REPAIR PARTS DATA REPORT

*** END OF NARRATIVE J0001 ***

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SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

	Regulatory Cite	Title	Date
K-1	52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures (Dec 2023)	DEC/2023
K-2	252.203-7005	REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (Sep 2022)	SEP/2022
K-3	252.204-7008	COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS	OCT/2016
K-4	252.225-7055	Representation Regarding Business Operations with the Maduro Regime	MAY/2022
K-5	252.204-7007	ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025)	OCT/2025

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

- ☐ (i) Paragraph (e) applies.
- ☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

- ☐ (i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.
- ☐ (ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.
- ☐ (iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.
- ☐ (iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.
- ☐ (v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.
- ☐ (vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations and contracts when contract performance will be in Italy.
- ☐ (vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:

- ☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.
- ☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.
- ☐ (iii) 252.225-7020, Trade Agreements Certificate.
- ☐ Use with Alternate I.
- ☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

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- ___ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.
- ___ Use with Alternate I.
- ___ Use with Alternate II.
- ___ Use with Alternate III.
- ___ Use with Alternate IV.
- ___ Use with Alternate V.
- ___ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.
- ___ (vii) 252.232-7015, Performance-Based Payments--Representation.

(e)The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> . After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.2048(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
_____	_____	_____	_____
_____	_____	_____	_____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

K-6 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT NOV/2021

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Items.

(a) Definitions. As used in this provision--

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-

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232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation

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in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

- (i) For covered equipment--
 - (A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);
 - (B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and
 - (C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.
- (ii) For covered services--
 - (A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or
 - (B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

K-7 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS OCT/2018

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means--

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

- (b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.
- (c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

- (1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:
 - (i) In a criminal proceeding, a conviction.
 - (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
 - (iii) In an administrative proceeding, a finding of fault and liability that results in--
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or

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- (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
- (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
- (2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.
- (d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> .
- (End of provision)

- K-8 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS--CERTIFICATION NOV/2021
- (a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.
- (b) Certification. [Offeror shall check either (1) or (2).]
- __ (1) The Offeror certifies that
- (i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and
- (ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or
- __ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.
- (c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.
- (1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.
- (2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:
- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.
- (3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review

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the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) Remedies. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

K-9

52.230-1

COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION

JUN/2020

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, Part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. Disclosure Statement-Cost Accounting Practices and Certification

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.201-4(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offerors proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of Part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

☐ (1) Certificate of Concurrent Submission of Disclosure Statement. The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:

(i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and

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(ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or Federal Official Where Filed: _____.

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

[] (2) Certificate of Previously Submitted Disclosure Statement. The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or Federal Official Where Filed: _____.

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

[] (3) Certificate of Monetary Exemption. The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

[] (4) Certificate of Interim Exemption. The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under paragraph (c)(1) or (c)(2) of Part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. Cost Accounting Standards-Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

[] The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with paragraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

[] Yes [] No

(End of provision)

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K-10 252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION MAY/2021

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. Covered defense telecommunications equipment or services, covered mission, critical technology, and substantial or essential component, as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

K-11 252.225-7973 PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS--REPRESENTATION (DEVIATION 2024-00014) AUG/2024

(a) Definition. As used in this provision, covered foreign country has the meaning given in the 252.225-7972, Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems (DEVIATION 2024-00014), clause of this solicitation.

(b) Prohibition. Section 848 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2020 (Pub. L. 116-92) and section 817 of the NDAA for FY 2023 (Pub. L. 117-263) prohibit DoD from

(1) Using or procuring an unmanned aircraft system (UAS), or any related services or equipment, that

(i) Is manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;

(ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;

(iii) Uses a ground control system or operating software developed in a covered foreign country, or by an entity domiciled in a covered foreign country; or

(iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, a covered foreign country;

(2) Using or procuring a system for the detection or identification of a UAS, or any related services or equipment, that is manufactured

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in a covered foreign country or by an entity domiciled in a covered foreign country; or

(3) On or after October 1, 2024, entering into or renewing a contract with an entity that operates, as determined by the Secretary of Defense, equipment from

(i) Da-Jiang Innovations (or any subsidiary or affiliate of Da-Jiang Innovations);

(ii) Any entity that produces or provides unmanned aircraft systems and is included on the Consolidated Screening List maintained by the International Trade Administration of the Department of Commerce ([https://www.trade.gov/consolidated \ '02screening-list](https://www.trade.gov/consolidated%20screening-list)); or

(iii) Any entity that produces or provides unmanned aircraft systems and

(A) Is domiciled in a covered foreign country; or

(B) Is subject to unmitigated foreign ownership, control, or influence by a covered foreign country, as determined by the Secretary of Defense in accordance with the National Industrial Security Program.

(c) Representations.

(1) By submission of its offer, the Offeror represents that

(i) It will not provide or use a UAS, as described in paragraph (b)(1) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation; and

(ii) It will not provide or use a system for the detection or identification of a UAS, as described in paragraph (b)(2) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation.

(2) It is not an entity described in paragraph (b)(3) of this provision.

(End of provision)

K-12	252.239-7098	PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN WEBSITES--REPRESENTATION (DEVIATION 2021-00003)	APR/2021
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(a) In accordance with section 8116 of Division C of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions, none of the funds appropriated (or otherwise made available) by this or any other Act for DoD may be used to enter into a contract to maintain or establish a computer network unless such network is designed to block access to pornography websites. This prohibition does not limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities, or for any activity necessary for the national defense, including intelligence activities.

(b) Representation. By submission of its offer, the Offeror represents that it is not providing as part of its offer a proposal to maintain or establish a computer network unless such network is designed to block access to pornography websites.

(End of provision)

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SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
L-1	52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG/2020
L-2	52.204-22	ALTERNATIVE LINE ITEM PROPOSAL	JAN/2017
L-3	52.215-1	INSTRUCTIONS TO OFFERORS--COMPETITIVE ACQUISITION	NOV/2021
L-4	52.215-16	FACILITIES CAPITAL COST OF MONEY	JUN/2003
L-5	52.222-56	CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN	OCT/2020
L-6	52.237-1	SITE VISIT	APR/1984
L-7	52.237-10	IDENTIFICATION OF UNCOMPENSATED OVERTIME	MAR/2015
L-8	252.204-7019	NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS	NOV/2023
L-9	252.215-7008	ONLY ONE OFFER (DEC 2022)	DEC/2022
L-10	252.215-7010	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA--BASIC (MAY 2023)	MAY/2024
L-11	252.215-7013	SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)	JAN/2023
L-12	52.211-14	NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE	APR/2008

Any contract awarded as a result of this solicitation will be [] DX rated order; [X] D0 rated order; certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of Provision)

L-13	52.233-2	SERVICE OF PROTEST	SEP/2006
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(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from TACOM LCMC, ATTN: CCTA (Army Contracting Command Detroit Arsenal - Protest Coordinator, Mail Stop 315, 6501 E. 11 Mile Rd., Detroit Arsenal, MI 48397-5000).

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

L-14	252.215-7010	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA (MAY 2024)--ALTERNATE I (AUG 2024)	AUG/2024
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(a) Definitions. As used in this provision--

"Market prices" means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

"Non-Government sales" means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

"Relevant sales data" means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

"Sufficient non-Government sales" means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by FAR 15.404-1(b)(2)(ii)(B).

"Uncertified cost data" means the subset of "data other than certified cost or pricing data" (see FAR 2.101) that relates to cost.

(b) Exceptions from certified cost or pricing data. (1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described

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in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) Exception for prices set by law or regulation--Identification of the law or regulation establishing the prices offered. If the prices are controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) Commercial product or commercial service exception. For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for determining commerciality and evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include--

(A) For products or services previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For subsystems of a major weapon system and components and spare parts of a major weapon system or subsystem of a major weapon system that have not previously been determined to be commercial--

(1) The comparable commercial product the Offeror sells to the general public or nongovernmental entities;

(2) A comparison between the physical characteristics and functionality of the comparable commercial product and the subsystem, component, or spare part, including--

(i) For products under paragraph (3)(i) of the ``commercial product'' definition at FAR 2.101, a description of the modification and documentation to support that the modification is customarily available in the marketplace; or

(ii) For products under paragraph (3)(ii) of the ``commercial product'' definition at FAR 2.101, a detailed description of the modification and detailed technical data to demonstrate that the modification is minor (e.g., information on production processes and material differences); and

(3) The national stock number (NSN) for the comparable commercial product, if one is assigned, and the NSN for the subsystem, component, or spare part, if one is assigned; or

(4) If the Offeror does not sell a comparable commercial product to the general public or nongovernmental entities for purposes other than government purposes, the Offeror shall--

(i) Notify the Contracting Officer in writing that it does not sell such a comparable product; and

(ii) Provide the Contracting Officer with a comparison of the physical characteristics and functionality of the most comparable commercial product in the commercial market.

(C) For items priced based on a catalog--

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(D) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit the DoD to verify the accuracy of the description;

(E) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(F) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or

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subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(c) Requirements for certified cost or pricing data. If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

The Offeror shall submit certified cost or pricing data and supporting attachments in the following format:

In accordance with the instructions contained in Table 15-2 of FAR 15.408, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-2 are incorporated as a mandatory format to be used in this contract. The proposal submission shall include an electronic cost model with active formulas demonstrating the mathematical calculation of the proposed cost (in Excel or another format approved by the Contracting Officer). The electronic cost model shall include build-up by year of cost in total and by CLIN/subCLIN, consistent with the yearly breakout required by paragraph (d)(1) of this provision, or as directed by the Contracting Officer. If applicable, the electronic cost model shall link each Work Breakdown Structure (WBS) to the applicable CLINs. The electronic cost model shall roll up to an annual and total program summary by cost element. All information supporting each CLIN should be visible and verifiable in the electronic cost model. The formulas included in the electronic cost model shall not be locked, and the model shall be editable by the Government. Electronic spreadsheet files (workbooks) shall be Microsoft Excel 2007 compatible. Workbooks must be sent in a format that includes all formulas, functions, macros, computations, or equations used to compute the proposed amounts. All cell references (to data or files) must be linked to Excel files within the (Price/Cost) proposal. For each Workbook, all rows, columns, cells, and worksheets must be visible (object.Visible=True). Zero height, and zero width, rows and columns (in worksheets) are not acceptable. Hidden cells, rows, columns, and worksheets (tabs) are not acceptable. Worksheet cells formatted with the Font color equal to the Fill color are not acceptable. If Workbooks or Worksheets are password protected, the password(s) must be provided. Print image files, or pictures or files containing only values, are not acceptable. Files must not contain active links to live Internet sites or pages. All linked information must be contained within the electronic offer and be accessible offline. Any supporting narrative shall be in Microsoft Word 2007 compatible format, or any other format approved by the PCO (upon request).

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy to Government's expressed requirement in accordance with FAR 15.403-1(c)(1)(i).

(d) Requirements for data other than certified cost or pricing data. (1) Data other than certified cost or pricing data submitted in accordance with this provision shall include the minimum information necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in Defense Federal Acquisition Regulation Supplement (DFARS) 215.402(a)(i), 215.404-1(b), and 234.7002(e).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) If the Offeror redacts data that identifies the customer (see DFARS 234.7002(e)(2)), then the Offeror shall include, for each sale, the following signed statement with the data submitted:

''By submission of this data, the Offeror [Offeror insert company name] certifies that the customer was [Offeror insert one or more of the following as applicable: a government customer; a commercial customer purchasing the same or similar product for governmental purposes (e.g., Federal, state, local, or foreign government); or a commercial customer purchasing the same or similar product for a commercial, mixed, or unknown purpose].''

(4) Within 10 days of a written request from the Contracting Officer for additional information to permit an adequate evaluation of the proposed price in accordance with FAR 15.403-3 or DFARS 234.7002(e), the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(5) Subcontract price evaluation. (i) Offerors shall obtain from subcontractors the minimum information necessary to support a determination of price reasonableness, as described in FAR part 15 and

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DFARS part 215.

(ii) No cost data may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary--

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) Subcontracts. The Offeror shall insert the substance of this provision, including this paragraph (e), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of--

(1) Paragraph (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4; and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

L-15 252.215-7012 REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA JAN/2018

The Offeror shall submit the cost portion of the proposal via the following electronic media: Reference Section L.2.3.1

(End of provision)

L-16 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE FEB/1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of provision)

L-17 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS NOV/2020

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DoD FAR SUPPLEMENT (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

L-18 252.215-7009 PROPOSAL ADEQUACY CHECKLIST (MAR 2023) MAR/2023

252.215-7009 Proposal Adequacy Checklist.

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The offeror shall complete the following checklist, providing location of requested information, or an explanation of why the requested information is not provided. In preparation of the offerors checklist, offerors may elect to have their prospective subcontractors use the same or similar checklist as appropriate.

PROPOSAL ADEQUACY CHECKLIST

REFERENCES	SUBMISSION ITEM	PROPOSAL PAGE No.	If not provided EXPLAIN (may use continuation pages)
<u>GENERAL INSTRUCTIONS</u>			
1. FAR 15.408, Table 15-2 Section I Paragraph A	Is there a properly completed first page of the proposal per FAR 15.408 Table 15-2 I.A or as specified in the solicitation?	_____	
2. FAR 15.408 Table 15-2 Section I Paragraph A(7)	Does the proposal identify the need for Government- furnished material/tooling/ test equipment? Include the accountable contract number and contracting officer contact information if known.	_____	
3. FAR 15.408 Table 15-2 Section I Paragraph A(8)	Does the proposal identify and explain notifications of noncompliance with Cost Accounting Standards Board or Cost Accounting Standards (CAS); any proposal inconsistencies with your disclosed practices or applicable CAS; and inconsistencies with your established estimating and accounting principles and procedures?	_____	
4. FAR 15.408 Table 15-2 Section I Paragraph C(1) FAR 2.101 "Cost or pricing data"	Does the proposal disclose any other known activity that could materially impact the costs? This may include, but is not limited to, such factors as-- (1) Vendor quotations; (2) Nonrecurring costs; (3) Information on changes in production methods and in production or purchasing volume; (4) Data supporting projections of business prospects and objectives and related operations costs; (5) Unit-cost trends such as those associated with labor efficiency; (6) Make-or-buy decisions; (7) Estimated resources to attain business goals; and (8) Information on management decisions that could have a	_____	

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	significant bearing on costs.		
5.	FAR 15.408 Table 15-2, Section I Paragraph B	Is an Index of all certified cost or pricing data and information accompanying or identified in the proposal provided and appropriately referenced?	_____
6.	FAR 15.403-1(b)	Are there any exceptions to submission of certified cost or pricing data pursuant to FAR 15.403-1(b)? If so, is supporting documentation included in the proposal? (Note questions 18-20.)	_____
7.	FAR 15.408 Table 15-2 Section I Paragraph C(2) (i)	Does the proposal disclose the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data?	_____
8.	FAR 15.408, Table 15-2, Section I Paragraph C(2) (ii)	Does the proposal disclose the nature and amount of any contingencies included in the proposed price?	_____
9.	FAR 15.408 Table 15-2, Section II Paragraph A or B	Does the proposal explain the basis of all cost estimating relationships (labor hours or material) proposed on other than a discrete basis?	_____
10.	FAR 15.408, Table 15-2 Section I Paragraphs D and E	Is there a summary of total cost by element of cost and are the elements of cost cross-referenced to the supporting cost or pricing data? (Breakdowns for each cost element must be consistent with your cost accounting system, including breakdown by year.)	_____
11.	FAR 15.408, Table 15-2, Section I Paragraphs D and E	If more than one Contract Line Item Number (CLIN) or sub Contract Line Item Number (sub-CLIN) is proposed as required by the RFP, are there summary total amounts covering all line items for each element of cost and is it cross-referenced to the supporting cost or pricing data?	_____
12.	FAR 15.408, Table 15-2, Section I Paragraph F	Does the proposal identify any incurred costs for work performed before the submission of the proposal?	_____

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13. FAR 15.408,
Table 15-2,
Section I
Paragraph G
- Is there a Government forward pricing rate agreement (FPRA)? If so, the offeror shall identify the official submittal of such rate and factor data. If not, does the proposal include all rates and factors by year that are utilized in the development of the proposal and the basis for those rates and factors?

COST ELEMENTS

MATERIALS AND SERVICES

14. FAR 15.408,
Table 15-2,
Section II
Paragraph A
- Does the proposal include a consolidated summary of individual material and services, frequently referred to as a Consolidated Bill of Material (CBOM), to include the basis for pricing? The offerors consolidated summary shall include raw materials, parts, components, assemblies, subcontracts and services to be produced or performed by others, identifying as a minimum the item, source, quantity, and price.

SUBCONTRACTS (Purchased materials or services)

15. DFARS
215.404-3
- Has the offeror identified in the proposal those subcontractor proposals, for which the contracting officer has initiated or may need to request field pricing analysis?
16. FAR 15.404-3(c)
FAR 52.244-2
- Per the thresholds of FAR 15.404-3(c), Subcontract Pricing Considerations, does the proposal include a copy of the applicable subcontractors certified cost or pricing data?
17. FAR 15.408,
Table 15-2,
Note 1;
Section II
Paragraph A
- Is there a price/cost analysis establishing the reasonableness of each of the proposed subcontracts included with the proposal? If the offerors price/cost analyses are not provided with the proposal, does the proposal include a matrix identifying dates for receipt of subcontractor proposal, completion of fact finding for purposes of price/cost analysis, and submission of the price/cost

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analysis?

EXCEPTIONS TO CERTIFIED COST OR PRICING DATA

18. FAR 52.215-20 FAR 2.101, ``commercial product'' or ``commercial service''.

Has the offeror submitted an exception to the submission of certified cost or pricing data for commercial products proposed either at the prime or subcontractor level, in accordance with provision 52.215-20?.

a. Has the offeror specifically identified the type of commercial product claim (FAR 2.101 ``commercial product'' definition, and the basis on which the commercial product meets the definition?.

b. For modified commercial products (FAR 2.101 ``commercial product'' definition; did the offeror classify the modification(s) as either--.

i. A modification of a type customarily available in the commercial marketplace (paragraph (3)(i)); or.

ii. A minor modification (paragraph (3)(ii)) of a type not customarily available in the commercial marketplace made to meet Federal Government requirements not exceeding the thresholds in FAR 15.403-1(c)(3)(iii)(B)?.

c. For proposed commercial products ``of a type'', or ``evolved'' or modified (FAR 2.101 ``commercial product'' definition), did the contractor provide a technical description of the differences between the proposed item and the comparison item(s)?.
19. Reserved
20. FAR 15.408, Table 15-2, Section II Paragraph A(1)

Does the proposal support the degree of competition and the basis for establishing the source and reasonableness of price for each subcontract or purchase order priced on a competitive basis exceeding the threshold for certified cost or pricing data?

- INTERORGANIZATIONAL TRANSFERS
21. FAR 15.408, Table 15-2, Section II Paragraph A(2)

For inter-organizational transfers proposed at cost, does the proposal include a complete cost proposal in compliance with Table 15-2?

22. FAR 15.408, Table 15-2, Section II Paragraph A(1)

For inter-organizational transfers proposed at price in accordance with FAR 31.205-26(e), does the proposal provide an analysis by the prime that supports the exception from certified

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cost or pricing data in
accordance with FAR 15.403-1?

DIRECT LABOR

23. FAR 15.408,
Table 15-2,
Section II
Paragraph B
- Does the proposal include a time phased (i.e.; monthly, quarterly) breakdown of labor hours, rates and costs by category or skill level? If labor is the allocation base for indirect costs, the labor cost must be summarized in order that the applicable overhead rate can be applied.
24. FAR 15.408,
Table 15-2,
Section II
Paragraph B
- For labor Basis of Estimates (BOEs), does the proposal include labor categories, labor hours, and task descriptions, (e.g.; Statement of Work reference, applicable CLIN, Work Breakdown Structure, rationale for estimate, applicable history, and time-phasing)?
25. FAR Subpart
22.10
- If covered by the Service Contract Labor Standards statute (41 U.S.C. chapter 67), are the rates in the proposal in compliance with the minimum rates specified in the statute?

INDIRECT COSTS

26. FAR 15.408,
Table 15-2,
Section II
Paragraph C
- Does the proposal indicate the basis of estimate for proposed indirect costs and how they are applied? (Support for the indirect rates could consist of cost breakdowns, trends, and budgetary data.)

OTHER COSTS

27. FAR 15.408,
Table 15-2,
Section II
Paragraph D
- Does the proposal include other direct costs and the basis for pricing? If travel is included does the proposal include number of trips, number of people, number of days per trip, locations, and rates (e.g. airfare, per diem, hotel, car rental, etc)?
28. FAR 15.408,
Table 15-2
Section II
Paragraph E
- If royalties exceed \$1,500 does the proposal provide the information/data identified by Table 15-2?
29. FAR 15.408,
Table 15-2,
- When facilities capital cost of money is proposed, does

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Section II
Paragraph F

the proposal include
submission of Form CASB-CMF
or reference to an FPRA/FPRP
and show the calculation of
the proposed amount?

FORMATS FOR SUBMISSION OF LINE ITEM SUMMARIES

30. FAR 15.408,
Table 15-2,
Section III
- Are all cost element
breakdowns provided using the
applicable format prescribed
in FAR 15.408, Table 15-2 III?
(or alternative format if
specified in the request for
proposal)
31. FAR 15.408,
Table 15-2,
Section III
Paragraph B
- If the proposal is for a
modification or change order,
have cost of work deleted
(credits) and cost of work
added (debits) been provided
in the format described in
FAR 15.408, Table 15-2.III.B?
32. FAR 15.408,
Table 15-2
Section III
Paragraph C
- For price revisions/
redeterminations, does the
proposal follow the format in
FAR 15.408, Table 15-2.III.C?

OTHER

33. FAR 16.4
- If an incentive contract
type, does the proposal
include offeror proposed
target cost, target profit
or fee, share ratio, and,
when applicable, minimum/
maximum fee, ceiling price?
34. FAR 16.203-4
and FAR 15.408
Table 15-2,
Section II,
Paragraphs A,
B, C, and D
- If Economic Price Adjustments
are being proposed, does the
proposal show the rationale
and application for the
economic price adjustment?
35. FAR 52.232-28
- If the offeror is proposing
Performance-Based Payments
did the offeror comply with
FAR 52.232-28?
36. FAR 15.408(n)
FAR 52.215-22
FAR 52.215-23
- Excessive Pass-through
Charges-- Identification of
Subcontract Effort: If the
offeror intends to subcontract
more than 70% of the total
cost of work to be performed,
does the proposal identify:
(i) the amount of the
offerors indirect costs and
profit applicable to the work
to be performed by the
proposed subcontractor(s);
and (ii) a description of the
added value provided by the

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offeror as related to the
work to be performed by the
proposed subcontractor(s)?

(End of provision)

L.1 General Proposal Information

Offerors are cautioned to consult the Contracting Officer IN WRITING before submitting an offer that proposes any deviations or exceptions to any of the requirements, terms, and conditions of the solicitation because it may be cause for rejection of the proposal (See Section M.2).

L.1.1 The proposal, subject to the Submission, Modification, Revision, and Withdrawal paragraph of Competitive Acquisitions (FAR 52.215-1) contained in Section L of the solicitation, shall be submitted in the format and quantities set forth below. All information necessary for the review and evaluation of a proposal shall be contained in the proposal volumes set forth below. Section M of the solicitation sets forth the evaluation criteria and delineates the factors to be evaluated and their relative order of importance. The offeror's proposal, as required by this section, will be evaluated as set forth in Section M of this solicitation. The Government will not assume the offeror possesses any capability, understanding, or commitment not specified in its proposal. The offeror shall submit a well-written proposal, with adequately detailed information, which clearly demonstrates an understanding of and the ability to comply with the solicitation requirements to allow for a meaningful evaluation. The Government does not assume the duty to search for data to cure problems it finds in proposals.

L.1.2 Minimum Acceptance Period

Acceptance Period means the number of calendar days available to the Government for awarding a contract from the date specified in this solicitation for receipt of offers.

L.1.2.1 The Government specified minimum acceptance period is 240 calendar days.

L.1.2.2 The offeror shall state the proposal acceptance period in the Administrative volume of its proposal. Offerors may specify a longer acceptance period than the Government's minimum acceptance period.

L.1.2.3 An offeror allowing less than the Government's minimum acceptance period, or who fails to provide a proposal acceptance period, may be rejected. If the proposal's signed SF33 has a blank Box 12 (which defaults to a 60-day proposal acceptance period) and DOES NOT contain elsewhere in the Administrative Volume a clearly written statement of the proposal's acceptance period that meets the requirements of L.1.2, it may be grounds to reject the proposal.

L.2 Proposal Content, Format and Submission Instructions

L.2.1 Proposal Content

L.2.1.1 All proposals shall be in English (American Standard) and shall be in US dollars. Proposals not in English (American Standard) or in US Dollars may be rejected. The proposal shall include all information specified and shall address all requirements outlined in Section L. The offeror's proposal shall be submitted in separate volumes as set forth below. The offeror's proposal shall consist of the following volumes:

Volume Number	Title
Volume 1	Past Performance
Volume 2	Cost/Price Factor
Volume 3	Small Business Participation (SBP) Factor
Volume 4	Administrative Volume

L.2.1.2 Each volume shall include a (i) title page, (ii) table of contents, and (iii) list of tables and figures. When applicable, the title page, table of contents, and list of tables and figures are excluded from any page count limit established for a proposal volume. Each page of the proposal shall be numbered, and it is recommended each paragraph of the proposal have a reference number. A list of all attachments and substantiating data shall be provided in the table of contents. The table of contents shall include the following information for each factor, attachment, and for all substantiating data listed:

- (a) Cross-reference to related Section L paragraph number
- (b) Page number
- (c) File name

L.2.1.3 A Proposal Executive Summary or transmittal letter is optional. It will neither be considered as part of the volumes required, nor will it be evaluated. If a Proposal Executive Summary is submitted, it should be no more than five pages in length and be submitted as part of the Administrative volume.

L.2.2 Proposal Format

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The proposal shall be submitted in electronic format, as outlined in these instructions.

L.2.2.1 Electronic Files

Each proposal file shall be labeled so it is easily identifiable for evaluation purposes. The proposal's electronic files names shall not exceed 50 characters in length and shall not contain any periods (not including the file extension).

L.2.2.2 Acceptable File Formats

All electronic information provided in response to the solicitation shall be provided in Microsoft Office Suite 2016 compatible or Adobe Acrobat Reader 11 compatible format, unless otherwise noted in instructions for individual volumes. For files in PDF format, scanners should be set to 200 dots per inch. The offeror shall not embed sound or video (e.g., MPEG) files into its proposal files. The proposal shall not contain citations for, or active links to live Internet sites or pages. All information shall be contained within the electronic proposal. Any linked or referenced information that is not contained in the proposal will not be accepted.

L.2.2.3 Unless otherwise specified, the proposal shall be formatted for 8.5-inch x 11-inch paper with a minimum font size of 10 pt. and a minimum of 0.5-inch margins. Schedules, drawings, and other documents that are more appropriate to larger sizes shall be formatted for no larger than 8.5-inch x 14-inch dimensions.

L.2.2.4 The offeror shall provide spreadsheets that include all formulas, function, macros, computations, or equations used to compute the proposed amounts. For each workbook, all rows, columns, cells, and worksheets are to be visible. The offeror shall not include zero height and zero width rows and columns in worksheets. The offeror shall not format worksheet cells with the font color equal to the fill color. The offeror shall not password protect workbooks or worksheets. The offeror shall not submit print image files, pictures, or files containing only values. Failure to provide fully functional excel spreadsheets in the proposal may result in the offeror's proposal being rejected.

L.2.2.5 The offeror shall make every effort to ensure that the proposal is virus-free, to include, but not limited to, running an anti-virus scan, prior to proposal submission. Proposals (or portions thereof) submitted which indicate the presence of a virus, or which are otherwise rendered unreadable, shall be treated as unreadable as described in FAR 15.207(c).

L.2.3 Unclassified Proposal Submission Instructions

Proposals (including any modifications/revisions) shall be submitted IAW the below instructions. It is not anticipated that any requested proposal information will be classified. The below instructions are for unclassified proposals only.

L.2.3.1 Solicitation Module of the Procurement Integrated Enterprise Environment (PIEE)

The proposal shall be submitted through the Solicitation module of the PIEE suite at <https://piee.eb.mil>. For information on PIEE Solicitation, which includes information on how to submit a proposal, please refer to the web-based training at: <https://pieetraining.eb.mil/wbt/> and click on the Solicitation Module. The offeror shall contact the PIEE Help Desk to troubleshoot any technical issues experienced. The PCO and Contract Specialist will not assist with technical issues.

Once an offer is submitted in the Solicitation Module of PIEE, it cannot be modified or edited. The PIEE Solicitation Module allows an offeror to withdraw its offer and submit a new offer prior to the solicitation closing date/time.

L.2.3.1.1 The offeror shall be responsible for following the registration instructions found on the PIEE website.

Offeror points of contact shall be registered on the PIEE website based on the associated Commercial and Government Entity code, and it is advised that the proper roles are assigned well in advance of the solicitation closing date.

L.2.3.2 It is highly recommended the offeror print or save a screenshot of the submission confirmation to validate the submission was accepted in the PIEE Solicitation module in response to this solicitation. The Government is not obligated to search for incorrectly submitted proposals in PIEE.

L.2.3.3 In the event that the Solicitation Module is offline, the offeror shall obtain PCO approval to use an alternate submission method prior to the solicitation due date and time. Requests for approval of an alternate submission method shall be made a minimum of two hours before the closing time on the closing date of the RFP. Unless formally approved by the PCO, no alternate method of proposal submission is authorized.

L.2.3.4 Submission Due Date

The offeror shall ensure its proposal, in its entirety, reaches the required destination before the solicitation due date and time established in this solicitation. The lateness rules for submitted proposals are outlined in FAR 52.215-1 "Instructions to Offeror(s) Competitive Acquisitions" and are incorporated into this solicitation. When submitting through the PIEE Solicitation module, it may take time for the files to be uploaded and scanned, and digitally signed before submission completion; File size, network connection, connection type, and number of files are factors in the time needed to timely complete its submission; therefore offerors are strongly cautioned when submitting proposals to allow ample time for completion. Offerors should also take into account potential time needed to troubleshoot technical issues directly with the PIEE Help Desk prior to the solicitation closing date and time.

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Name of Offeror or Contractor:

L.2.4 Single Proposal Submission

Offerors are limited to submitting one proposal, with one approach to meeting the requirements of this solicitation. An offeror is defined as an entity competing independently that does not share a common parent with any other offeror or does not have a parent/subsidiary relationship with any other offeror, or is not affiliated with any other offeror. For the purposes of Section L.2.4 (Single Proposal Submission), the Government will consider affiliation to exist if associated business concerns or individuals, directly or indirectly, either controls the other or can control the other (control can exist through common ownership, common management, or a contractual relationship such as a joint venture, where members have the power to control performance of the contract), or if a third party controls or can control both.

L.2.5 Organizational Conflict of Interest

L.2.5.1 The provisions of FAR 9.5, Organizational Conflict of Interest (OCI), apply to any award under this RFP. Potential offerors shall review their current and planned participation in any other Government contracts, subcontracts, consulting, or teaming arrangements where they may be in a position of actual or perceived bias or unfair competitive advantage.

L.2.5.2 Offerors shall disclose any potential OCI situations to the PCO as soon as identified, including prior to proposal submission. The disclosure shall include the facts and an analysis of the actual or perceived conflict and a recommended approach to neutralize or mitigate the potential conflict. The preferred approach to potential conflicts is to negate and/or obviate the conflict. Mitigation is considered only if it is not practical to negate and/or obviate the conflict. The PCO will promptly respond to resolve any potential conflicts.

L.3 All or None

Offers in response to this solicitation shall be submitted for all the requirements identified in the solicitation. Offers submitted for less than all the requirements called for by this solicitation may be rejected or ineligible for award.

L.4 Evaluation Factors

Offeror proposals shall address the following factors:

- a. Past Performance Factor
- b. Cost/Price Factor
- c. SBP Factor

L.4.1 Volume 1: Past Performance Factor Proposal

L.4.1.1 The offeror shall provide information for a total of up to three recent contracts performed by the offeror as the prime contractor that the offeror considers having relevance. This may include a foreign, federal, state, local and private industry contract. The burden of providing thorough and complete past performance information remains with the offeror. The offeror shall submit detailed and complete information so the Government may evaluate its Past Performance Factor volume. The Government does not assume the duty to search for data to cure problems it finds in the offeror's proposals. The offeror shall provide thorough and complete past performance information; however, the Government may elect to consider data obtained from internal and external sources in the proposal. The instructions below are provided to advise offerors as to the information required by the Government to assess the contractor's recent and relevant past performance. Since this information constitutes a basis of the Government's review, it is imperative that the offeror present its past performance in a clear and complete manner. Failure to provide the information requested under paragraph L.4.1.3 and L.4.1.4 (if applicable) below may result in an assessment that the offeror does not possess a record of recent and relevant past performance.

For the purpose of this factor a contract is defined as a written instrument that requires the performance of a distinct effort and demonstrates the distinct effort was actually performed. Written instruments containing supplies or services that can be ordered but typically do not demonstrate actual performance, such as Indefinite Delivery Contracts (FAR 16.5), Basic Ordering Agreements (BOA), Blanket Purchase Agreements (BPA), and Federal Supply Schedules (FSS) do not meet the definition of a contract. Written instruments considered to demonstrate actual performance may include a single task or delivery order, a single WD, or a single definite quantity contract provided it demonstrates a distinct effort was actually performed. An offeror may submit, or the Government may require, written instruments that enhance the Government's understanding of the distinct effort actually performed if it is not identified on the contract itself. It is incumbent upon the offeror to demonstrate that a distinct effort was actually performed.

L.4.1.2 Recent contracts are those performed within five years of the date of issuance of this RFP.

L.4.1.3 Relevant contracts are those comparable in scope and magnitude of effort and complexity to the following statement of work requirements:

1. Field Service Representative Support: Provided Field Service Representative Support for 200 ground combat vehicles or vehicle platforms of similar complexity, in multiple locations, within a 12-month period.
2. Vehicle Deprocessing: Executed deprocessing procedures and activities for 200 ground combat vehicles or vehicle platforms of similar complexity within a four-month period.

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- 3. NET/DET: Taught NET/DET for military platforms or systems of similar complexity to 600 students, within a 12-month Period.
- 4. MWO Installation: Completed high complexity level MWO installations (described in C.10) for 200 military platforms or systems of similar complexity within a single three-month period.

L.4.1.4 Contract Information
Refer to the definition of a contract above (L.4.1.1). The offeror's proposal shall substantiate what distinct effort was required and actually performed under each of the proposed contract(s). For each contract(s) submitted, provide the following information:

L.4.1.4.1 Prime Contractor name and address;

L.4.1.4.2 Contract Number (and delivery/task order number if applicable);

L.4.1.4.3 Contract Type;

L.4.1.4.4 Total Value of the Contract (beginning & ending value);

L.4.1.4.5 Delivery or Performance Schedule and offeror's compliance to the schedule;

L.4.1.4.6 Government or private industry contracting activity address, telephone number and e-mail;

L.4.1.4.7 For Government contracts, provide the PCO and/or Contract Specialist's name, telephone number and e-mail, or for private industry provide the point of contact responsible for signing or administering the contract, telephone number and e-mail;

L.4.1.4.8 Government Defense Contract Management Agency (DCMA) or private industry ACO, COR, Performance Certifier, and/or Quality Assurance Representative, name, telephone number and e-mail;

L.4.1.4.9 Specify the Government or contractor point(s) of contact for which Attachment 0044, Past Performance Questionnaire was sent, and provide the date(s) it was sent.

L.4.1.4.10 A description of the work performed by the offeror, which shall include a narrative describing the similarities between (1) the relevant work performed under the statement of work requirements of the offeror's cited contract(s) and (2) the statement of work requirements identified in Section L.4.1.3. In its narrative, the offeror shall specify the location in the cited contract's statement of work (to include paragraph and page number) that substantiates the relevant work performed;

L.4.1.4.11 Contract PoP

L.4.1.4.12 Provide a brief self-assessment of contract performance. The self-assessment must address performance to meet technical and schedule requirements within the price of the contract; and

L.4.1.4.13 Copy of the complete Performance Work Statement or SOW for each of the submitted contracts. If the submitted contract was issued under or in connection with a related written instrument, that typically does not demonstrate actual performance (e.g. Indefinite Delivery Contracts, BOA, BPA, FSS), and the details of the distinct effort actually performed needed to establish relevancy on the proposed contract are further defined within the terms and conditions (e.g. SOW) of that related written instrument, provide that information and any other information necessary to establish this instrument's relationship to the proposed contract. (These documents can be submitted as stand-alone attachments within the proposal volume).

L.4.1.5 Associated Entity, Predecessor Company, and Joint Venture. Only contracts performed by the named offeror will be considered; however, the Government may consider the past performance of an associated entity, a predecessor company, or Joint Venture as explained below.

L.4.1.5.1 Individual Partners of a Joint Venture
If the offeror is a Joint Venture, the Government may consider past performance of each partner of the Joint Venture and any work performed by the Joint Venture itself previously. The offeror must successfully demonstrate meaningful involvement by the partner to the proposed effort.

L.4.1.5.1.1 The offeror shall provide the Government with a narrative that discloses the individual partners of the Joint Venture and shall provide documentation evidencing the Joint Venture.

L.4.1.5.1.2 The offeror shall provide the Government with a narrative that explains the meaningful involvement the Joint Venture partner will provide to the proposed effort. Meaningful involvement may include a description of the partner's resources, such as its workforce, facilities, and/or other resources that will be provided or relied upon in the proposed effort. A contract will not be considered unless the offeror successfully establishes meaningful involvement by the partner in the proposed effort.

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L.4.1.5.2 Associated Entity

The Government may consider the past performance of an associated entity if the offeror successfully demonstrates meaningful involvement by the associated entity in the proposed effort.

L.4.1.5.2.1 An associated entity may include a parent company, separate corporate division within the same parent company, subsidiary company, a legally affiliated company, etc. The offeror shall provide the Government with a narrative that explains the offeror's relationship to the associated entity. The offeror shall support the narrative with legal documentation, including but not limited to corporate papers, establishing the legal nexus between the offeror and the associated entity.

L.4.1.5.2.2 The offeror shall provide the Government with a narrative that explains the meaningful involvement the associated entity will provide to the proposed effort (i.e. the work to be performed by the associated entity). Meaningful involvement may include a description of the associated entity's resources, such as its workforce, facilities, and/or other resources that will be provided or relied upon in the proposed effort. A contract will not be considered unless the offeror successfully establishes meaningful involvement by the associated entity in the proposed effort.

L.4.1.5.3 Predecessor Company

The Government may consider the past performance of a predecessor company if the offeror demonstrates the experience of the predecessor company is reasonably predictive of the offeror's performance under the proposed effort.

L.4.1.5.3.1 A predecessor company may include a company which was acquired by the offeror or merged with the offeror. It may also include other instances where the predecessor company was reorganized, restructured, or otherwise altered. A predecessor company does not include an entity which remains separate and distinct from the offeror. The offeror shall provide the Government with a narrative that explains the offeror's relationship to the predecessor company. The offeror shall support the narrative with documentation evidencing the offeror's status as the successor company.

L.4.1.5.3.2 The offeror shall provide the Government with a narrative that explains why the predecessor's past performance is predictive of the offeror's performance under the proposed effort. Evidence may include, but is not limited to, continuity of operations such as the continued employment of the predecessor's employees and the transfer of assets including buildings, furnishings, and fixtures.

L.4.1.6 Past Performance Questionnaire

A Past Performance Questionnaire is provided in Attachment 0044. For each Government contract submitted by the offeror, the offeror shall send a copy of the Past Performance Questionnaire directly to the appropriate PCO and/or COR. For private industry contracts, the offeror shall send a copy of the Past Performance Questionnaire directly to the point of contact responsible for signing or administering the contract. The offeror shall request that these individuals complete the questionnaire and forward it electronically directly to the Government at darlamae.d.lasky.civ@army.mil and jill.t.wagner.civ@army.mil as soon as possible and prior to the RFP closing date (See Block #9 of the SF33 cover page to this solicitation) with the subject heading PAST PERFORMANCE INFORMATION FOR [offeror name].

Please be advised that if a completed Past Performance Questionnaire is not received in accordance with these instructions, it may result in the associated contract not being considered in the evaluation (See M.4.1.2).

L.4.2 Volume 2: Cost/Price Factor

Certified cost or pricing data is not required for the initial proposal submission. However, after the initial proposal submission, if only one offer is received, the Government reserves the right to request certified cost or pricing data.

The offeror shall not enter any proposed prices into Section B of the RFP.

L.4.2.1 General Information. The Cost/Price Factor volume preparation instructions set forth herein are applicable to the Prime offeror and any proposed Subcontractors.

L.4.2.1.1 Table of Contents. The offeror shall provide a table of contents showing each file submitted as part of the Cost/Price Factor with a short description of the contents of the file.

L.4.2.1.2 The Cost/Price Factor volume includes five parts, as follows:

Part One - Prime offeror Attachment 0038 - Government Format Pricing Model (GFPM)

Part Two Subcontractors Attachment 0039 Government Format Pricing Model Subcontractors (GFPM-Subs)

Part Three - Prime Offeror and Subcontractors - Cost Narrative including BOE for all proposed costs.

Part Four Prime Offeror - Offeror Format Pricing Model (OFPM) IAW the offeror's normal accounting practices. The offeror shall include a roadmap tracking differences between the OFPM and the GFPM.

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Part Five Prime Offeror and Subcontractors - DCAA and DCMA information.

L.4.2.1.3 The Government has established direct labor floor rates that are based on the SCA Wage Determination rates listed in Wage Determination No. 2015-0025 Revision 39 "Nationwide" and Wage Determination No. 1988-0407 Revision 69 "Nationwide." The GFPM and GFPM-Subs will auto-calculate the proposed direct labor rate as the floor rate in instances where the Prime Offeror or Subcontractor proposes a direct labor rate below the floor rate. If the GFPM or GFPM-Subs are modified in any way that results in corruption of the auto-calculation, any direct labor rates proposed below these Government established floor rates will be increased to the Government established floor rate through a cost realism adjustment.

L.4.2.1.4 The Government established direct labor floor rates are for evaluation purposes only and are not contractually binding. A successful offeror is allowed to hire and retain employees at salaries and resultant direct labor rates below the floor rates, but at or above any required Wage Determination rates established by the DOL (where applicable). The ceiling rates calculated within the Prime Offeror's proposal and GFPM are contractually binding. The successful contractor cannot exceed Prime and Subcontractor ceiling rates in performance. rpar

L.4.2.2 Proposal Structure

L.4.2.2.1 Offerors shall propose CPFF FBLR. Sufficient detail shall be included to allow the Government to evaluate the offeror's cost/price proposal for reasonableness and realism of the CPFF FBLRs. Prime offerors shall show complete development of the elements of its FBLRs in the GFPM and OFPM. Subcontractors shall show complete development of the elements of its FBLRs in the GFPM-Sub. Offerors may submit additional cost/price and financial information considered to be helpful in the Government's evaluation of the cost/price proposal.

L.4.2.2.2 The offeror shall provide all costs and prices in US dollars only, including costs and prices for the Prime offeror and any potential Subcontractors.

L.4.2.2.3 All formulas used in the GFPM (Microsoft Excel spreadsheets) shall be clearly visible in the individual cells and verifiable. Linking among the tabs of the GFPM workbook is allowable when necessary, however, use of external links (i.e., source data not provided) of any kind is prohibited. The GFPM, OFPM, and all other associated workbooks/files shall not be locked/protected or secured by passwords by the offeror.

L.4.2.2.4 The Government may use other resources in the evaluation of the Cost/Price Factor, including DCAA and DCMA. In addition to the information identified below, the Government reserves the right to request additional data or a more detailed price breakdown to support a determination of reasonableness or realism.

L.4.2.3 Part One - Government Format Pricing Model (GFPM) Workbook.

L.4.2.3.1 The Prime offeror shall complete Attachment 0038 - GFPM IAW the "Instructions" tab in the attachment.

L.4.2.3.2 Within the GFPM, on the "Minimum Qualifications" tab, Prime Offerors shall certify that they will provide employees (Prime and Subcontractor employees) that meet or exceed the minimum education/experience requirements identified by the Government for each labor category.

L.4.2.3.3 The Government requirement is for the direct labor categories necessary to complete the work required under this effort. These positions are divided between CONUS & OCONUS locations as described in the scope within Section C and the Minimum Qualifications within Section H.

L.4.2.3.4 Offerors may use what it considers commonly used formulas such as VLOOKUP, IF, IFERROR, COUNT, COUNTIF, SUMIF, SUMIFS, ROUND, and Inequalities, in its OFPM Spreadsheets; however, the GFPM should be self-contained in order for the Government evaluator to trace simple formulas and lower the risk of misinterpretation of the data provided. Simple formulas like "+, -, *, /, sum," etc. are preferred in order to assist the Government with understanding how the proposed costs were developed.

L.4.2.3.5 The GFPM is locked in certain areas where cells cannot be modified. There may be instances where the GFPM is not consistent with the offeror's accounting system in relation to application of indirect rates. In such cases, the offeror may submit additional cost data in its own format, along with its OFPM and Cost Narrative, to further justify the proposed single elements of costs. Offerors should also provide a roadmap demonstrating how the OFPM reconciles with the GFPM.

L.4.2.3.6 Offerors shall not alter the GFPM file formats except in cells reserved for the offeror (which are highlighted in "yellow" and are typically associated with developing the total proposed price).

L.4.2.3.7 Direct Labor Rates

The Government has established direct labor rate floor rates that are based on the SCA Wage Determination rates listed in Attachment 0045, Wage Determination No. 2015-0025 Revision 39 "Nationwide and Attachment 0046, Wage Determination No. 1988-0407 Revision 69 "Nationwide." The GFPM will auto-calculate the proposed direct labor rate as the floor rate in instances where the Prime offeror proposes a direct labor rate below the floor rate. If the GFPM is modified in any way that results in corruption of the auto-

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calculation, any direct labor rates proposed below these Government established floor rates will be increased to the Government established floor rate through a cost realism adjustment.

L.4.2.3.7.1 Proposed labor rates shall include all reportable wages and any non-discretionary incentives that the offeror determines is necessary and complies with FAR 31.205-6.

L.4.2.3.7.2 Recruitment and Retention Incentives for OCONUS labor categories, designed to recruit employees to posts where living conditions may be difficult or dangerous, are not included in Travel/ODC or Material and shall be proposed in labor costs. Post Hardship Differential and Danger Pay are considered recruitment and retention allowances. For proposal purposes, Offerors shall assume that the OCONUS location in the GFPM Attachment 0038 is Romania. Offerors shall consider all costs associated with this OCONUS location, as well as the resulting ceiling rates, when proposing direct labor.

L.4.2.3.7.3 The Government requires substantiation for all labor rates. The proposed rates shall be in line with justifying supporting data (incurred cost data for similar contract(s), redacted payroll data, salary survey data, Service Contract Act Wage Determination criteria, Forward Pricing Rate Proposals (FPRP), DCMA approved Forward Pricing Rate Recommendations (FPRR)/Forward Pricing Rate Agreements (FPRA), etc.) for each labor category. The offeror shall provide a detailed crosswalk between all provided justifying data and the labor categories requested under this effort.

L.4.2.3.8 Ceiling Rates

The Government is requiring a cost ceiling on offeror's proposed FBLRs, less fee, where the ceiling is equal to the proposed FBLR (less fee) plus 10% for each CONUS labor category or 20% for each OCONUS labor category.

L.4.2.3.8.1 Prime offeror proposed FBLRs, less fee, plus 10% CONUS or 20% OCONUS shall be Ceiling Rates for each designated PoP, and the successful offeror may not invoice rates that are higher than these ceiling rates in each PoP. The 'Prime Ceiling Rates' tab in Attachment 0038 GFPM will auto-calculate a ceiling using the Prime offeror proposed FBLR, less fee, and adding 10% for CONUS labor categories or 20% for OCONUS labor categories. Offerors should ensure that the Ceiling Rates can absorb any changes in Direct and Indirect Rates over the entire PoP.

L.4.2.3.8.2 Subcontractor proposed FBLRs, less fee, plus 10% CONUS or 20% OCONUS shall be Ceiling Rates for each designated PoP, and the successful offeror may not invoice rates that are higher than these ceiling rates in each PoP. The 'Subcontractor Ceiling Rates' tab in Attachment 0039, GFPM, will auto-calculate a ceiling using the Subcontractor proposed FBLR, less fee, and adding 10% for CONUS labor categories or 20% for OCONUS labor categories. In the event of unforeseen circumstances related to subcontractors, the ceiling rates calculated in the Attachment 0038 GFPM per labor category apply for any subcontractor who performs work under the proposed subcontractor allotted labor categories. Offerors should ensure that the Ceiling Rates can absorb any changes in Subcontractor rates over the entire PoP.

L.4.2.3.9 Subcontractors

If Subcontractor labor is proposed, the Prime offeror is responsible for ensuring that the Subcontractor provides a full and complete labor rate build that provides complete transparency for the direct labor rate component and each indirect rate applied to it along with profit or fee, regardless of contract type. The labor rate build shall be provided by all Subcontractors within Attachment 0039, GFPM-Subs, to include all formulas that demonstrate how the FBLR is computed. Subcontractors may submit their un-sanitized cost proposals electronically IAW L.2.3.

L.4.2.3.10 Escalation

For evaluation purposes only, the Government has pre-populated Prime direct labor escalation in Attachment 0038, GFPM using 2.6% for OPS 2-5. Offerors can propose alternative escalation factors, however, any proposed escalation less than the Government pre-populated factors for each OP is unallowable.

L.4.2.3.11 Material. The Government has provided Government plug numbers for Material and has pre-populated these amounts in the GFPM by OP. No profit or fee is allowable on Material expenses. These plug numbers will be included in the Total Evaluated Price.

L.4.2.3.11.1 The prime offeror may propose an indirect ceiling rate on the total Material cost that will auto calculate the amount of proposed indirect expense to be included in the Total Evaluated Price. This indirect rate is inclusive of any prime and subcontractor indirect expense that may be applied and reimbursed. Indirect rates for Material will be included in Section H of the resulting contract and will be inclusive of the ceiling rate that may be allocated to Material during the entire POP.

L.4.2.3.12 Travel/ODC. The Government has provided Government plug numbers for Travel/ODC and has pre-populated these amounts in the GFPM by OP. No profit or fee is allowable on Travel/ODC expenses. These plug numbers, less any discounts, will be included in the Total Evaluated Price.

L.4.2.3.12.1 Travel Discounts. Travel is divided into three Travel categories: 1) Travel - Lodging, 2) Travel - Meals & Incidental Expenses (M&IE), and 3) Travel/ODC - All Other Travel (including airfare, baggage, rental vehicles, etc., as applicable). The Government is seeking economies and requests that offerors propose discounts off JTR Rates that result in maximum allowable rates for lodging and M&IE.

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L.4.2.3.12.1.1 Travel - Lodging. The Government has used plug figures, per OP, to represent estimated total costs per year attributable to lodging. For proposal purposes, the offeror shall input its proposed discount percentage applied to lodging. The proposed discount percentage becomes part of the contract, applied to all lodging per diems, in the applicable travel location. Example: If the standard CONUS lodging rate is \$110.00 and the proposed discount on lodging is 15%, the maximum allowable lodging charge is \$93.50.

L.4.2.3.12.1.2 Travel - M&IE. The Government has used plug figures, per OP, to represent estimated total costs per year attributable to M&IE. For proposal purposes, the offeror shall input its proposed discount percentage applied to M&IE. The proposed discount percentage becomes part of the contract, applied to all M&IE per diems, in the applicable travel location. Example: If the standard CONUS M&IE rate is \$68.00 and the proposed discount on M&IE is 25%, the maximum allowable M&IE charge is \$51.00.

L.4.2.3.12.1.3 Travel/ODC - All Other Travel. The Government has used plug figures, per OP, to represent estimated total costs per year attributable to All Other Travel costs. No discount shall be applied to the All Other Travel plug figure.

L.4.2.3.12.2 The prime offeror may propose an indirect ceiling rate on the total Travel/ODC costs, less discounts, that will auto calculate the amount of proposed indirect expense to be included in the Total Evaluated Price. This indirect rate is inclusive of any prime and subcontractor indirect expense that may be applied and reimbursed. Indirect rates for Travel/ODC will be included in Section H of the resulting contract and will be inclusive of the ceiling rate that may be allocated to Travel/ODC during the entire POP.

L.4.2.3.12.3 The Travel/ODC plug figures include Cost of Living Allowance (COLA), Living Quarters Allowance, Transfer Allowance, and other costs as defined in SOW Section C. Allowable and allocable taxes arising from OCONUS work are also included in Travel/ODC and shall not be proposed in labor. Recruitment and Retention Incentives for OCONUS labor categories, designed to recruit employees to posts where living conditions may be difficult or dangerous, are not included in ODCs/Travel. Post Hardship Differential and Danger Pay are considered recruitment and retention allowances.

L.4.2.3.13 Defense Base Act (DBA) Insurance
DBA Insurance shall be proposed for all applicable OCONUS labor categories as part of the FBLR, as it is not included in the Travel/ODC or Material costs. Offerors with accounting practices that include DBA Insurance in its indirect rates shall, in its Cost Narrative and OFPM, provide evidence that DBA expenses are included as part of indirect costs within the proposed FBLR (i.e. identify the pool expense and indirect rate associated with DBA), showing how the DBA Insurance is accounted for. Offerors that customarily do not include DBA Insurance in its indirect rates shall utilize the DBA Insurance column in the OP tabs of the GFPM to propose its DBA Insurance cost as part of the FBLR for each applicable OCONUS labor category. All offerors shall provide a copy of its DBA Insurance Binder.

L.4.2.3.14 Reconciliation Differences. If reconciliation differences exist between the Prime Contractor's GFPM and any additional offeror format cost data (Prime Contractor or Subcontractor), the Government will utilize the data entered into the Prime Contractor's GFPM as the basis for evaluation.

L.4.2.4 Part Two Government Format Pricing Model Subcontractors (GFPM-Subs)

L.4.2.4.1 All Subcontractors shall complete Attachment 0039 GFPM-Subs IAW the "Instructions" tab in the attachment.

L.4.2.4.2 Direct Labor Rates

The Government has established direct labor rate floor rates that are based on the SCA Wage Determination rates listed in Attachment 0045, Wage Determination No. 2015-0025 Revision 39 "Nationwide and Attachment 0046, Wage Determination No. 1988-0407 Revision 69." Attachment 0039, GFPM-Subs will auto-calculate the proposed direct labor rate as the floor rate in instances where the Subcontractor proposes a direct labor rate below the floor rate. If the GFPM-Subs are modified in any way that results in corruption of the auto-calculation, any direct labor rates proposed below these Government established floor rates will be automatically increased to the Government established floor rate through a cost realism adjustment. Subcontractors SHALL NOT enter FBLRs into the direct labor (proposed) column of Attachment 0039. If an offeror enters a FBLR into the direct labor (proposed) column of Attachment 0039, then the prime offeror may be ineligible for award because the Government will be unable to confirm that the subcontractor has proposed direct labor rates at or above the floor rates.

L.4.2.4.2.1 Proposed labor rates shall include all reportable wages and any non-discretionary incentives that the Subcontractor determines is necessary and complies with FAR 31.205-6.

L.4.2.4.2.2 Recruitment and Retention Incentives for OCONUS labor categories, designed to recruit employees to posts where living conditions may be difficult or dangerous, are not included in Travel/ODC and shall be proposed in labor costs. Post Hardship Differential and Danger Pay are considered recruitment and retention allowances. For proposal purposes, Subcontractors shall assume that the OCONUS location in the GFPM-Subs Attachment 0039 is Romania. Subcontractors shall consider all costs associated with this OCONUS location when proposing direct labor.

L.4.2.4.2.3 The Government requires substantiation for all labor rates. The proposed rates shall be in line with justifying supporting data (incurred cost data for similar contract(s), redacted payroll data, salary survey data, SCA-Wage Determination criteria, FPRP, DCMA approved FPRR/FPRA, etc.) for each labor category. The offeror shall provide a detailed crosswalk between all data provided and the

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labor categories requested under this effort.

L.4.2.4.3 All proposed Subcontractors shall provide a full and complete labor rate build that provides complete transparency for the direct labor rate component and each indirect rate applied to it along with profit or fee, regardless of contract type. The labor rate build shall be provided by all Subcontractors within the GFPM-Subs to include all formulas that demonstrate how the fully burdened labor rate is computed.

L.4.2.4.4 Escalation

For evaluation purposes only, the Government has pre-populated Subcontractor direct labor escalation in Attachment 0039, GFPM-Subs using 2.6% for Ordering Periods (OP) 2-5. Subcontractors can propose alternative escalation factors, however, any proposed escalation less than the Government pre-populated factors for each OP is unallowable.

L.4.2.4.5 Defense Base Act (DBA) Insurance

DBA Insurance shall be proposed for all applicable OCONUS labor categories as part of the FBLR. Subcontractors with accounting practices that include DBA Insurance in its indirect rates shall, in its Cost Narrative and DBA tab of the GFPM-Subs, provide evidence that DBA expenses are included as part of indirect costs within the proposed FBLR (i.e. identify the pool expense and indirect rate associated with DBA), showing how the DBA Insurance is accounted for. Subcontractors that customarily do not include DBA Insurance in its indirect rates shall utilize the DBA Insurance column in the Subcontractor Labor Build tab of the GFPM-Subs to propose its DBA Insurance cost as part of the FBLR for each applicable OCONUS labor category. All subcontractors shall provide a copy of its DBA Insurance Binder, if applicable.

L.4.2.4.6 Subcontractors may submit their un-sanitized cost proposals electronically IAW L.2.3.

L.4.2.5 Part Three - Cost Narrative and Basis of Estimate

L.4.2.5.1 Prime Offerors and Subcontractors shall provide a cost narrative explaining their Basis of Estimate for the following:

L.4.2.5.1.1 All proposed labor rates including explanations for the various elements of cost proposed in the labor buildup on the Ordering Period tabs of the GFPM or GFPM-Subs.

L.4.2.5.1.2 All proposed indirect costs and rates used in the CPFF Prime Contractor labor build-up and in the Subcontractor Prime Add-Ons section (fringe benefits, including any paid time off, DBA Insurance, labor overhead, G&A, material handling, FCCOM, etc.) of the GFPM and all proposed indirect costs and rates used in the labor buildup of the GFPM-Subs.

L.4.2.5.1.2.1 Offerors (Prime & Sub) proposing indirect rates utilizing a FPRP, FPRR, or FPRA shall provide the FPRP/FPRR/FPRA rates and a copy of the official FPRP, FPRR, or FPRA. Any differences between the indirect rates included in the FPRP/FPRR/FPRA and the proposal shall be fully explained and supported.

L.4.2.5.1.2.2 Offerors (Prime & Sub) proposing indirect rates utilizing DCAA/DCMA established provisional billing rates shall provide (a) the approved rates; (b) a detailed narrative supporting how the approved rates were used to develop the proposed indirect rates; (c) the previous three years of incurred indirect rate data for each indirect rate; and (d) a copy of the official DCAA/DCMA letter head showing the established provisional billing rates.

L.4.2.5.1.2.3 For offerors (Prime & Sub) that are not basing the proposed indirect rates on an FPRP, FPRR, FPRA, or established provisional billing rates, the offeror shall provide the base and pool amount for each proposed indirect rate, and the previous three years of incurred indirect rate data (including all base and pools for each rate). Offerors shall provide narratives and supporting calculations on differences between the historical pool and base amounts and the projected pool and base amounts utilized within the proposed indirect rates. Pool amounts shall include a breakout of all individual expense pool elements of cost that equate to the total pool amount of each indirect rate. Base amounts shall include a breakout of all elements and amounts that equate to the total base of each indirect rate. Pool and base amounts within the proposed indirect rates, with the inclusion of any assumptions impacting business base and/or pool expenses, shall be traceable to historical pool and base amounts with supporting calculations. The offeror shall provide any assumptions it made when projecting its proposed indirect rates within its proposal. Examples include, but are not limited to, references to anticipated contracts with projected dollar values, historical probabilities of obtaining competitive awards, financial data, and supporting narratives to support pool and base estimates that deviate from historical incurred data.

L.4.2.5.1.2.4 The Prime offeror shall explain in its cost narrative the indirect rate ceiling that it proposed on Travel/ODC and Material. The Prime offeror shall acknowledge in its cost narrative that its Subcontractors will be reimbursed for actual costs and will share in any indirect rate that the Prime offeror receives based on the indirect rate ceilings proposed. In other words, the Prime offeror shall be responsible for covering any Subcontractor indirect expenses using the funds available from the Prime Contractor's indirect rate ceilings. The combination of Subcontractor and Prime Contractor indirect expenses may not exceed the proposed indirect rate ceiling. No Profit or Fee is allowable on Travel/ODC and Material expenses.

L.4.2.5.1.3 If the Prime offeror's proposed labor includes Subcontractor costs, the Prime offeror shall explain how the Subcontractor rates were determined to be reasonable and realistic. If more than one Subcontractor is proposed for a labor category, the Prime

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offeror shall explain how the rate was blended together, the identity of the Subcontractors, and the type of subcontract agreement with the Prime offeror.

L.4.2.5.1.4 There is no page limitation for the cost narrative. Spreadsheets supporting the development of indirect rates can be included in the OFPM or as a separate Excel Workbook.

L.4.2.6 Part Four OFPM

L.4.2.6.1 Prime Offeror shall submit a time-phased labor buildup in its own format, showing how the proposed CPFF rates were developed. The labor buildup should show the elements of cost (direct labor, fringe, DBA Insurance, overhead, G&A) used to develop the composite rate and also explain the Basis of Estimate in the Cost Narrative. Within the OFPM, Offerors shall provide clear evidence that depicts how indirect expenses will be allocated on the various allocation bases that the Prime offeror uses IAW its normal accounting procedures. If unexplained and unsupported reconciliation differences exist between the Prime offeror's GFPM and OFPM, the Government will utilize the Prime offeror's GFPM as the basis for evaluation and basis for calculating the total proposed price.

L.4.2.7 Part Five DCAA and DCMA Information

L.4.2.7.1 Offerors and Subcontractors shall include their points of contact for both DCAA and DCMA. Additionally, Offerors and Subcontractors shall include copies of any FPRP submitted to DCAA/DCMA, FPRR, FPRA, or DCAA/DCMA Provisional Billing Rates.

L.4.2.7.2 The DCAA/DCMA point of contact information shall be included as part of the offeror's cost narrative submission. Forward pricing data or provisional billing rate data may be submitted as part of the offeror's cost narrative or as a separate document (with supporting excel files) directly to the Government. Pool and base, or historical rate information, may be submitted as part of the OFPM or as a separate Microsoft Excel file directly to the Government.

L.4.2.8 Use of Existing GFP (if applicable).

L.4.2.8.1 If the Prime offeror is proposing to utilize GFP that it received on another Government contract, in performance of this contract, on a rent-free basis, then the offeror must provide a list of GFP that includes the following for each item:

- Acquisition cost;
- Age;
- Type of GFP;
- The accountable contract under which the property is held;
- The dates during which the property will be available for use (including the first, last, and all intervening months) and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent;
- The amount of rent that would otherwise be charged in accordance with FAR 52.245-9, Use and Charges;
- Evidence that it obtained authorization for its rent-free use from the contracting officer having cognizance of the property; and
- Any additional information required IAW Section M.30 Use of Existing Government-Furnished Property.

L.4.2.8.2 The offeror is to obtain any rental equivalent amounts (or any other data required) from the cognizant contracting officer necessary to determine the GFP Price Adjustment calculated IAW Section M.30 Use of Existing Government-Furnished Property.

L.4.2.8.3 The offeror shall identify the total GFP Price Adjustment (for all classifications of property) that it calculated IAW Section M.30 Use of Existing Government-Furnished Property and provide all calculations showing how the total GFP Price Adjustment was developed. If applicable, the offeror is to also identify the rationale for any allocations to each CLIN

L.4.3 Volume 3 SBP Factor

L.4.3.1 Application

The SBP proposal submission instructions apply to every offeror (US and non-US), regardless of size, socioeconomic status, or locations of working facilities or headquarters.

L.4.3.2 Small Business Participation Factor Workbook, Attachment 0040, and Small Business Participation Factor Workbook Instructions, Attachment 0041.

a. All offerors, including offerors who are themselves small business concerns for the North American Industry Classification System (NAICS) code assigned to this requirement, are required to complete the SBP Factor Workbook using the detailed SBP Factor Workbook Instructions. The offeror's submission of the SBP Factor Workbook is the offeror's proposed extent of SBP in each Small Business category.

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b. An offeror shall fill out the SBP Factor Workbook with goals for this solicitation specifically, even if it is an Other-Than-Small-Business (OTSB) submitting a Comprehensive Subcontracting Plan.

c. When filling in the workbook, the offeror shall include the dollars for prime contractor participation and subcontractor participation that are a part of the "Total Contract Amount." The "Total Contract Amount" for the purposes of this factor is defined as: The total proposed price, as calculated by GFMP (Attachment 0038), Total - Detail Tab, Cell F50.

d. The offeror shall use the automatic "Roll-Up" tab in the Workbook to check for consistency between the SBP Factor Submittal and other parts of the proposal (i.e. Cost/Price Factor), and (for offerors who are OTSB) the submitted Subcontracting Plan.

L.4.3.3 Registrations, Agreements, and Certifications

a. The Government may use the SAM to verify size, ownership, and any other information provided about the prime and subcontractors listed in the proposal. The Government may use the Small Business Administration (SBA) Dynamic Small Business Search (DSBS) Database to verify any SBA certifications for 8(a), 8(a) Joint Venture, and WOSB/EDWOSB SBs (prime contractor and/or subcontractor). Any proposed HUBZone SBs (prime contractor and/or subcontractor) must be verifiable in the SBA DSBS Database. Offerors should be aware of how Small Business concerns are defined (see SBP Factor Workbook Instructions, Attachment 0041, and 13 CFR 121, Small Business Size Regulations). Offerors are advised to review 13 CFR 121.103, "How Does SBA Determine Affiliation"; FAR 2.101, "Small Business Teaming Arrangement"; and FAR 19.101, "Affiliates."

b. Failure to register in SAM for the corresponding NAICS code identified in FAR clause 52.204-8 prior to submitting a proposal for this solicitation may preclude an award being made to your company.

c. Joint Venture Registration. If the offeror is a small business joint venture, the joint venture shall be registered in SAM under its own name in accordance with 13 CFR 121.103(h). In addition, each member in a small business joint venture shall be registered in SAM for the type of work it does. To be recognized as a small business joint venture and be eligible for award of a contract, the membership arrangements of the joint venture shall be identified and the company relationships fully disclosed in the offeror's proposal in accordance with FAR 9.603.

d. Affiliate Registration. If the offeror is a small business that has first tier affiliates that will be performing work on the proposed contract, each first-tier affiliate shall be registered in SAM for the type of work it does.

e. Subcontractor Registration or Certification

According to FAR Clauses 52.219-8 and 52.219-9 in this solicitation, the offeror may not require subcontractors to be registered in SAM.

For any small business subcontractor listed in the SBP Factor Workbook that is not registered in SAM, the offeror shall provide in accordance with 13 CFR 121.411(g), a Certification Form, Attachment 0042, from that subcontractor verifying its small business size and socioeconomic status. This certification shall contain, on the same page as the size and status claimed, the signature of the official authorized to sign for the subcontractor.

L.4.3.4 Subcontracting Reports:

a. The offeror shall provide documentation of performance in complying with the requirements of FAR 52.219-9, DFARS 252.219-7003, and DFARS 252.219-7004, as applicable, over the 12 months prior to solicitation release date, if the offeror meets both of the following criteria:

(1) Offeror is other than a small business concern as defined by the NAICS code applicable to this solicitation.

(2) Offeror has had prior contracts requiring the submission of a Small Business Subcontracting Plan.

b. Offeror shall provide the documentation by:

(1) Filling out the "Reports" tab of the Small Business Participation Factor Workbook, Attachment 0040, using the Small Business Participation Factor Workbook Instructions, Attachment 0041, and

(2) Submitting the documents requested in Section 1 of the "Reports" tab in the Workbook.

L.4.3.5 Other Resources/Additional Data

In addition to the data submitted by the offeror, and the data found in Government systems specifically referenced throughout this section, the Government may use other resources to evaluate the offeror's SBP Factor Submittal. The Government reserves the right, during clarification or discussion under FAR 15.306, to request additional data to support its assessment.

L.4.4 Volume 4 Administrative Volume

In addition to the proposal evaluation factor volumes above, the offeror shall provide the following information:

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L.4.4.1 Signature Actions/offeror Fill-Ins

The offeror shall provide a scanned image of a signed copy of the SF33 cover page, a copy of all completed fill-ins for Sections A through K, and (if applicable) a signed copy of all amendments to the solicitation. SAM certifications need not be separately submitted; however, all offerors must be successfully registered and valid in SAM.

L.4.4.1.1 Where certifications and approved systems are required for an offeror, if the proposal is submitted by a Joint Venture, certifications and approved systems for the principals (partners) of the joint venture will be considered as valid for that offeror providing the necessary documentation from all principals (partners) is provided with the proposal.

L.4.4.1.2 Joint Venture

To be recognized as a Joint Venture and eligible for award, the membership arrangements of the Joint Venture must be identified and the company relationships fully disclosed in the offeror's proposal in accordance with FAR 9.603. A copy of the agreement establishing the Joint Venture must contain the signatures of all of the members comprising the Joint Venture.

L.4.4.2 The offeror's proposal acceptance period in terms of calendar days from the date of receipt of offers specified in the RFP. An offer allowing less than the Government's minimum acceptance period, or fails to provide a proposal acceptance period, may be rejected.

L.4.4.3 Statement of Acknowledgement

A statement specifying the extent of agreement with all terms, conditions, and provisions of the RFP, and a statement of agreement to furnish and deliver the items or perform services set forth in the RFP in consideration for the offeror's proposed price(s). Any exceptions taken to the attachments, exhibits, enclosures, or other solicitation terms, conditions, or documents may be determined to be a Deficiency or grounds for the Government to reject the proposal from further consideration in the source selection process (Reference M.2.1).

L.4.4.4 Assumptions

The offeror shall consolidate and identify all offeror's generated "assumptions" contained anywhere in the proposal. The offeror shall include a statement that none of the "assumptions" contradict or take exception to any terms, conditions, or requirements of the solicitation. Any exceptions taken to the attachments, exhibits, enclosures, or other solicitation terms, conditions, or documents may be determined to be a deficiency or grounds for the Government to reject the proposal from further consideration in the source selection process (Reference M.2.1).

L.4.4.5 OCI

The offeror shall provide an affirmative statement that the offeror does not have an OCI as it applies to this solicitation. (Reference L.2.5)

L.4.4.6 Property Management Plan (PMP)

L.4.4.6.1 The offeror shall submit a PMP with its proposal that is consistent with the requirements of the solicitation. The offeror shall submit the PMP as a stand-alone attachment to the offer in response to this solicitation and ensure the PMP addresses the following:

L.4.4.6.1.1 An overview description of the contractor's Property Management System (PMS).

L.4.4.6.1.2 The purpose of the offeror's PMS, specifying what laws, regulations, and/or instructions it complies with.

L.4.4.6.1.3 Describe the scope of the assets that are applicable to the offeror's PMS.

L.4.4.6.1.4 The 10 outcomes of Government Property requirements that are required by FAR 52.245-1(f):

a) Acquisition of Property

b) Receipt of Government Property. If the contract has IUID requirements, the PMP must address these requirements.

c) Records of Government property

d) Physical inventory

e) Subcontractor control

f) Reporting Requirements: Describe intervals, format of reports, who/whom they will be reported to, how they will be delivered (Email, Hard Copies))

g) Relief of stewardship responsibility and liability

h) Utilizing Government property

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i) Maintenance

j) Property closeout

L.4.4.6.1.5 The offeror shall describe any additional standards (e.g., customary commercial practices, voluntary consensus standards, industry leading practices) that it intends to use in the management of Government Property, and how they are applicable to the tasks being performed on the effort.

L.4.4.7 Small Business Subcontracting Plan

L.4.4.7.1. If the offeror is other than a US Small Business concern as defined by the NAICS code applicable to this solicitation, the offeror shall submit an acceptable small business subcontracting plan in accordance with FAR Clause 52.219-9 and its ALT II and DFARS Clause 252.219-7003 and provide this plan as part of the proposal submission. Offerors are encouraged to review the DoD checklist at <http://business.defense.gov/Acquisition/Subcontracting/>. A small business subcontracting plan is not required of offerors that are small businesses.

L.4.4.7.2 The plan shall be submitted as an attachment to the offer in response to this solicitation.

L.4.4.7.3 Each page of the subcontracting plan shall be marked with the solicitation number and date and may also be marked with other codes or identification symbols to aid in later identification.

L.4.4.7.4 Dollars

The SBP Factor includes specific instructions as to what to include in the dollars for the Factor Submittal, for example, specific CLINS, options, task orders, proposed prices, target prices, or weighted average prices, etc. To ensure consistency with the SBP Factor, the offeror shall follow those same instructions in developing the Small Business Subcontracting Plan dollars.

L.4.4.7.5 Percentages

The offeror shall submit the Small Business Subcontracting Plan with goals expressed in TWO ways:

- (a) as a percentage of Total Subcontracting Amount and
- (b) as a percentage of Total Contract Amount as defined in the SBP Factor in this Section L.

L.4.4.7.6 Breakout

The offeror shall break out the Small Business Subcontracting Plan goals for:

- (a) OP 1
- (b) OP 2
- (c) OP 3
- (d) OP 4
- (e) OP 5
- (f) Total roll-up of all ordering periods

The Small Business Subcontracting Plan will have 12 sets of goals, two sets of percentages for each of the six breakouts.

If the Offeror lists small business subcontractors in the Small Business Participation Factor Submittal, the same subcontractors shall be listed in the Subcontracting Plan.

The offeror shall note the differences between the SBP Factor and the Small Business Subcontracting Plan, as explained in the SBP Factor, including the proper breakout of the Small Business Subcontracting Plan.

L.4.4.7.7

Failure to submit and negotiate an acceptable subcontracting plan which, in the judgment of the Contracting Officer, provides the maximum practicable opportunity for small business and small disadvantaged business concerns to participate in the awarded contract may render the offeror ineligible for award. In this connection, offerors should be aware of the statutory goal that has been placed on the Department of Defense to award five percent of its total planned subcontracting dollars to small disadvantaged businesses at the prime contract and subcontract levels. In view of this Congressional mandate, the offeror shall provide, within the plan, a specific explanation of any aggregate small disadvantaged business goal of less than five percent of the proposal's total subcontracting dollars.

L.4.4.7.8 If the offeror participates in the Small Business Subcontracting Plan (Test Program) described in DFARS 219.702, an approved DoD Comprehensive Subcontracting Plan may be submitted with the offer. DFARS 252.219-7004 shall be added to any contract that incorporates a DoD Comprehensive Plan.

L.4.4.8 Cost Accounting System

In order to be eligible for award, the offeror must have adequate financial management and fund tracking procedures to accommodate a cost-reimbursement type contract. Lack of DCMA or DCAA verification of the adequacy of the offeror's accounting system may result in

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the offeror being determined ineligible for the award. If the offeror has evidence in the form of a letter from either DCMA or DCAA that states that the offeror has an adequate accounting system to accommodate a cost-reimbursement type contract, it should provide that at the time of proposal submission. If the offeror does not have such evidence, the offeror shall complete the DCAA Pre-award Survey of Prospective Contractor Accounting System Checklist, Attachment 0043, ensuring that it provides responses to validate or explain each response to the questions. The offeror may provide any other evidence it feels supports the adequacy of its accounting system. The offeror shall then submit this via email to the PCO prior to submitting its proposal. The PCO may request that the cognizant Contract Administration Office conduct a review of the adequacy of the contractors cost accounting system.

L.4.4.9 Facility Clearance

Include documentation demonstrating, as applicable, that the offeror and subcontractors have a Facility Clearance (FCL) for any location that will handle classified material. Offerors must submit documentation indicating their facility has been granted a Secret FCL. Offerors who are considering a subcontractor must also submit documentation indicating that its subcontractor has obtained the necessary clearance in order to be considered for award for those subcontractors that will handle classified material.

L.4.4.10 Export Controlled Information

This solicitation contains Export Controlled information in CUI Attachments. It is the responsibility of the offeror, not the Government, to obtain the appropriate export licenses, or process appropriate export license exemption, necessary for authorization to share any such information with subcontractors who are foreign persons as defined in applicable export laws and regulations, or to obtain access to the files themselves. The Government shall consider the failure or inability of an offeror to obtain the appropriate export compliance documentation and provide that in its proposal as grounds for rejection IAW Section M. The Government will not sponsor or in any way assist the offeror and its subcontractor(s) in obtaining the appropriate level of security clearance.

L.5 HQ-AMC LEVEL PROTEST PROCEDURES

Complete AMC Protest Procedures can be found at: <http://www.amc.army.mil/Connect/Legal-Resources/>

An agency protest may be filed with either the contracting officer or to HQAMC, but not both, following the procedures listed on the website above.

L.6 Army Contract Writing System (ACWS) Transition Information for Offerors

a. The Army Contracting Enterprise (ACE) is in the process of deploying new solicitation and contract writing software to Army contracting offices worldwide. Known as the Army Contract Writing System (ACWS), this modern software suite will soon replace most existing Army contract writing systems, including the system used to create and release this Solicitation.

b. During this transition period, Offerors are hereby advised:

1. The Contracting Office may use any combination of contract writing systems to create and release documents related to this solicitation (e.g. solicitation amendments and awards, if any). Due to this:

i. This solicitation may contain different offer submission instructions than other solicitations released by the same Contracting Office (e.g. requiring offer submission via the PEE Solicitation Module vs. e-mail). Offerors should review all offer submission instructions contained in the solicitation documents and direct any questions or concerns to the Contract Specialist or Contracting Officer.

ii. If the Contracting Office switches contract writing systems prior to award, documents you receive from the Contracting Officer or view on SAM.gov or other forums may appear noticeably different than the initial solicitation or previous solicitations or awards from the same Contracting Office. This is normal and expected.

iii. A change between contract writing systems may cause important information concerning solicitation response (amendments) or accepted terms (awards) to take on different formatting or appear in different parts of later documents issued. Offerors shall review all documents carefully to locate this important information and direct any questions or concerns to the Contract Specialist or Contracting Officer.

2. The Government does not intend to use the transition between contract writing systems to effect any changes to solicitation or award terms and conditions without accompanying document narratives explicitly stating such changes are deliberate and desired. While the Contract Specialist and Contracting Officer will take care to minimize or eliminate any inadvertent changes when adapting to the new contract writing software, you, as the Offeror, may still be the first to spot such errors. Therefore, Offerors shall:

i. Notify the Contracting Officer immediately if any observed changes, removals, or additions affect your award eligibility, violate or alter existing quote/proposal terms, or could affect Contract performance post-award.

ii. Take special care to ensure all fill-in Clauses are populated and remain populated across documents received from the Contracting Office throughout the Solicitation and Award process.

iii. Contact the Contracting Officer listed on the first page of the solicitation or solicitation amendment for guidance if you notice or suspect any inadvertent change has occurred between document issuances.

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3. The Contracting Officer will correct problems affecting award documents (if any) via bilateral modification, at no cost to the Contractor. Any such modification will reconcile the award with the latest version of this solicitation reflecting deliberate action by the Contracting Officer (e.g. the first issuance if no amendments, or the latest amendment with accompanying narratives), inclusive of any documented pre-award negotiations or accepted supplemental offer terms.

4. In the unlikely event a network disruption, contract writing system error, or financial system error threatens timely award of the requirement set forth in this solicitation, the Contracting Officer:

i. May elect to use alternative mechanisms to obligate funds and allow work or deliveries to legally begin to the benefit of, and with legal protection for, both parties.

ii. Will incorporate the latest version of this Solicitation into such mechanisms to serve as a framework for contract execution until any such system problems are resolved.

iii. Will ensure any action taken does not conflict with the stated offer evaluation and award methodology of this requirement.

iv. Will issue a complete, properly-formatted award accurately reflecting this requirement and all applicable terms and conditions once systems return to normal.

*** END OF NARRATIVE L0001 ***

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SECTION M - EVALUATION FACTORS FOR AWARD

M.1 Basis of Award

M.1.1 The Government intends to award a five-year, single award, Indefinite-Delivery Indefinite-Quantity CPFF contract with five priced, one-year OPs for PM MAV LFSS. An award will be made to the offeror whose proposal represents the best value to the Government IAW the criteria set forth below, and is eligible for award.

M.1.1.1 There are three evaluation factors:

- a. Past Performance
- b. Cost/Price Factor
- c. SBP Factor

M.1.1.2 Proposal selection will be made utilizing the source selection trade-off process, considering the evaluation factors and their relative order of importance to identify the proposal which represents the best value and is most advantageous to the Government. The Government will weigh the evaluation factors (other than the Cost/Price Factor) against the final evaluated price to the Government. As part of the best value determination, the relative strengths, weaknesses, and risks of each proposal shall be considered in selecting the offeror that is most advantageous and represents the best overall value to the Government. The Government reserves the right to choose not to award a contract if such action is in the Government's best interest.

M.1.1.3 In making the award decision, the Government will review proposals to determine if any other price adjustments (beyond the GFP Price adjustment already included in the total evaluated price) are required IAW the FAR, DFARS, or clauses or provisions contained within this solicitation. If an additional price adjustment is determined to be applicable, then the Government will develop a final price for those offerors impacted by the adjustment(s) and base the final award decision on this final price. When FAR 52.219-4 is included in the RFP and a HUBZone price adjustment is applicable, then all other price adjustments described in the solicitation shall be applied before the application of the HUBZone price adjustment.

M.1.1.4 Importance of Cost/Price. Award will be made to the offeror whose proposal represents the best value to the Government and is otherwise eligible for award. This may not be the offeror with the lowest evaluated cost/price. However, the closer the offerors' evaluations are to each other in those factors other than the Cost/Price Factor, the more important cost/price becomes in the decision. Notwithstanding the relative order of importance of the evaluation factors stated herein, cost/price may be controlling when:

- a. Proposals are otherwise considered approximately equal in non-price factors; or
- b. An otherwise superior proposal is unaffordable; or
- c. The advantages of a higher rated, higher priced proposal are not considered to be worth the price premium.

M.1.2 Eligibility for Award

Award will only be made to an offeror who is eligible for award. To be eligible for award:

- a. The offeror must be determined responsible (See Section M.3.6)
- b. The proposal must not contain a Deficiency(s) (per FAR Part 15.001); and
- c. The offeror must be registered in the SAM - see provision 52.204-7, and
- d. The offeror must have a SECRET Facility Clearance

M.2 Rejection of Offers

M.2.1 The Government may reject any proposal if in the Government's best interest at any time after receipt of proposal. Examples include, but are not limited to, the following proposal conditions:

- a. The proposal fails to meaningfully respond to the instructions in Section L of this solicitation (e.g. a proposal provides some data but omits significant material data and information required by Section L, the offeror fails to submit the required pricing Attachments in accordance with the instructions, fails to provide past performance factor qualifications and/or significant portions of the requested information in the past performance factor, the proposal fails to follow key proposal instructions or format requirements in Section L, etc.).
- b. A proposal merely offers to perform work according to the solicitation terms or fails to present more than a statement indicating its capability to comply with the solicitation terms and does not provide support and elaboration as specified in Section L of this solicitation.
- c. The proposal proposes exceptions to the RFP requirements, attachments, exhibits, enclosures, or solicitation terms and conditions.
- d. The proposal contains one or more Organizational Conflicts of Interest that cannot be avoided or mitigated (see L.2.5).
- e. The proposal is unbalanced as to price. (see M.4.2.9) .

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- f. The proposal submitted is for less than all the requirements called for by the solicitation.
- g. The proposal's acceptance period does not meet the Government's required minimum acceptance period, or the offeror fails to provide a proposal acceptance period (see L.1.2).
- h. The proposal is not in English (American Standard) or in US Dollars.
- i. The offeror does not have a SECRET Facility Clearance at time of proposal.
- j. The offeror fails to provide appropriate export compliance documentation at the time of proposal.

M.3 Source Selection Process

M.3.1 Compliance Review

After receipt of proposals, but prior to the evaluation process, the Government will perform a compliance review of the offeror's proposal to determine the extent of compliance to the solicitation instructions.

M.3.2 Evaluation Process

Selection of the successful offeror will be made following an assessment of each proposal not otherwise rejected, based on the response to the information called for in Section L of this RFP, and against the solicitation requirements and the evaluation criteria described herein. Proposals not otherwise rejected will be evaluated as specified herein, to include developing narrative support for the evaluation conclusions under each factor.

M.3.3 Source Selection Authority (SSA)

The SSA is the official designated to direct the source selection process and select the offeror for contract award. A Source Selection Advisory Council will provide a written comparative analysis of the proposals and an award recommendation for the SSA prior to the selection decision.

M.3.4 Source Selection Evaluation Board (SSEB)

An SSEB has been established by the Government to evaluate proposals in response to this solicitation. The SSEB is comprised of technically qualified individuals who have been selected to conduct this evaluation IAW the evaluation criteria for this solicitation. All proposals not otherwise rejected will be given careful, full and impartial consideration by a team of Government personnel in the evaluation, pursuant to the criteria in this solicitation.

M.3.5 Award without Discussions

This RFP includes FAR Provision 52.215-1 Instructions to Offerors Competitive Acquisition, which advises offerors that the Government intends to make award without conducting discussions. Where awards will be made without discussions, exchanges with offerors are limited to clarifications as defined in FAR 15.306(a). Therefore, the offeror's initial proposal should contain the offeror's best terms from a Price and non-Price Factor standpoint. However, under FAR 52.215-1(f)(4), the Government reserves the right to hold discussions, if necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

M.3.6 Determination of Responsibility

Per FAR Part 9.103, a contract will be placed only with the offeror that the Contracting Officer determines to be responsible. Prospective offeror(s), in order to be eligible for award for this acquisition, must be able to demonstrate that they meet standards of responsibility set forth in FAR Part 9.104, or refer the matter to the SBA per FAR 19.602 when applicable. In addition, the Government may assess the offeror's financial and management capabilities to meet the solicitation requirements. The Government reserves the right to conduct a Pre-Award Survey on any or all offeror(s) or their subcontractors to aid the Contracting Officer in the evaluation of each offeror's proposal and ensure that a selected offeror is responsible. No award can be made to an offeror who has been determined to be not responsible by the Contracting Officer. To make sure that you meet the responsibility criteria at FAR Part 9.104, the Government may:

- a. Arrange a visit to your facility and perform a necessary Pre-Award Survey. If the Government visits the offeror's facility, please ensure that current data relevant to the proposal is available for Government personnel to review. The offeror's refusal to authorize the Government to visit the offeror's facility may result in a determination that the offeror is not responsible.

And/or

- b. Request an offeror provide financial, technical, production, or managerial background information. If the requested information is not submitted within seven calendar days from the date of the receipt of the request, the Government may determine the offeror non-responsible.

M.3.7 Consistency

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Each volume of the offeror's proposal shall be consistent with the other proposal volumes and shall demonstrate the understanding and ability to perform according to the statement of work of the contract. The offeror should provide supporting documentation in sufficient detail to permit a complete evaluation of the proposal. The Government may conduct a crosswalk between the information provided in the offeror's proposal volumes to assess whether the offeror submitted consistent proposal information.

M.3.8 Use of Artificial Intelligence (AI) tools in Support of Proposal Evaluations

M.3.8.1. Use of AI tools in Support of Evaluations: The Government may employ AI as a tool to assist in the analysis and review of offeror proposals. AI tools may be used to support tasks such as summarizing proposal content, identifying compliance with request for task order proposal/solicitation requirements, and highlighting areas of potential strength, weakness, or risk.

M.3.8.2 Maintaining Inherently Governmental Functions
Notwithstanding the use of AI tools to support the evaluation process, all final evaluation judgements, including the assignment or assessment of adjectival ratings, best value determinations, and source selection decisions, will be made exclusively by duly appointed Government personnel. The Government retains sole responsibility for all inherently governmental functions and will not delegate these functions to any AI tool.

M.3.8.3 Offeror Confidentiality and Data Protection
The AI tools utilized by the Government will be employed in a manner consistent with applicable regulations that govern the protection of proprietary and source selection sensitive information. The AI tool will be an output-only system. Any generated report data is not saved. No proposal data will be transmitted to or processed by external, non-Government systems without appropriate safeguards and authorizations in place.

M.4 Evaluation Criteria

There are three evaluation factors:

- a. Past Performance Factor
- b. Cost/Price Factor
- c. SBP Factor

The relative order of importance of these factors is as follows: The Past Performance Factor is more important than the Cost/Price Factor. The Cost/Price Factor is significantly more important than SBP Factor. The non-price factors, when combined, are significantly more important than the Cost/Price Factor.

M.4.1 Factor 1: Past Performance Factor

M.4.1.1 The Government will conduct a Performance Confidence Assessment to establish a Confidence Assessment Rating for each offeror. The Confidence Assessment Rating assigned will be based on the offeror's Recent and Relevant performance record and the expectation that the offeror will successfully perform the required effort described in Section L.

M.4.1.2 Contracts submitted in the Past Performance Factor volume of the offeror's proposal will not be considered if the Government determines them to be not Recent, not Relevant, or lacking any credible past performance information. Offerors without a record of Recent and Relevant past performance information upon which to base a meaningful confidence assessment will be rated as "Neutral Confidence," which is neither favorable nor unfavorable.

M.4.1.3 The offeror may also be evaluated on past contract performance information based on internal Government or private source information including additional contracts, beyond those submitted by the offeror and reserves the right to use any information received as part of its evaluation. The Government may contact any of the references the offeror provides and reserves the right to use any information received as part of its evaluation.

M.4.1.4 Past performance which is identified in the Offeror's Past Performance Factor volume but is not supported with the information requested in Section L may be determined not Relevant. In addition, if any other proposal volume indicates the Government will not realize the benefit of the cited past performance during contract performance, then the cited past performance may be determined not Relevant.

M.4.1.5 In evaluating the offeror's performance history, the Government may compare the offeror's deliveries or performance to the Contract's original delivery or performance schedule, unless the delay was Government-caused. Schedule extensions that were the fault of the offeror, even if consideration was provided, may be counted against the offeror.

M.4.1.6 No evaluation credit will be given for providing data that exceeds the requirements identified above.

M.4.2 Factor 2: Cost/Price Factor (Reference the proposal submission information required in Section L.4.2). The Government will evaluate the Cost/Price Factor, as follows:

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M.4.2.1 The Cost/Price evaluation will result in the development of the Total Evaluated Price to the Government. The cost/price evaluation will also include a determination of price reasonableness, cost realism, completeness, and unbalanced pricing. The Total Evaluated Price may differ from the total proposed price. The Total Evaluated Price, rather than the total proposed price, shall be used in the trade-off evaluation to determine best value.

M.4.2.2 The Total Proposed Price shall be identified within the "Total - Detail" tab of Attachment 0038 - GFPM of the offeror's proposal. The Total Proposed Price is calculated as follows:

- i. Ordering Period 1 Subtotal, PLUS
- ii. Ordering Period 2 Subtotal, PLUS
- iii. Ordering Period 3 Subtotal, PLUS
- iv. Ordering Period 4 Subtotal, PLUS
- v. Ordering Period 5 subtotal, PLUS

M.4.2.3 The Total Evaluated Price equals the sum of the following:

(a) The most probable cost to the Government for the cost-reimbursement CLINs. The most probable cost to the Government will consist of the Offeror's Total Proposed Price , plus or minus any cost realism adjustments determined necessary IAW the Government's Cost Realism analysis (detailed in Section M.4.2.6 below); PLUS

(b) Any other price adjustments, for evaluation purposes only, that are required IAW the (i) FAR; (ii) DFARS; or (iii) the RFP (to include RFP attachments);

M.4.2.4 Reasonableness

The Government will evaluate the price reasonableness of the offeror's total proposed price to ensure that in its nature and amount, it does not exceed that which would be incurred by a prudent person in the conduct of competitive business. The Government will employ the techniques described in FAR 15.404-1(b) to determine that a price is fair and reasonable.

M.4.2.5 For cost-plus-fixed-fee CLINs, the Government will verify that the offeror's proposed fee meets the requirements of FAR 15.404-4. If the offeror's proposed fee does not meet the requirements of FAR 15.404-4, the offeror's proposal will be ineligible for award.

M.4.2.6 Cost Realism

The Government will conduct a cost realism analysis IAW FAR 15.404-1(d) by independently reviewing and evaluating the specific elements of the offeror's proposed cost estimate to determine whether the estimated proposed cost elements are realistic. The result of the cost realism evaluation will be a determination of the most probable cost to the Government (which consists of cost and fee (if applicable)). The most probable cost will be determined by adjusting the offeror's proposed cost to reflect any additions or reductions to cost elements to realistic levels based on the results of the cost realism analysis.

M.4.2.7 The Government will verify that all direct labor rates proposed by the Prime AND its Subcontractors are at or above the Direct Labor Floor Rates as specified in paragraph L.4.2.1.3 of this RFP. The GFPM and GFPM-Subs will auto-calculate the proposed direct labor rate as the floor rate in instances where a prime offeror or subcontractor proposes a direct labor rate below the floor rate. If the GFPM or GFPM-Subs is modified in any way that results in corruption of the auto-calculation, resulting in any of the proposed direct labor rates by either the Prime or its Subcontractors being below the Government established Direct Labor Floor Rates, then the proposed direct labor rates will be increased to the Government established Direct Labor Floor Rates through a cost realism adjustment. Offerors are reminded that they are responsible for ensuring that any and all Subcontractors provide a full and complete labor rate build that provides complete transparency for the direct labor rate component, and each indirect rate applied to it, along with the profit or fee, regardless of contract type.

M.4.2.8 Completeness

The Government requires complete proposals with respect to price. A complete proposal will include all information required by the RFP. Attachment 0038-GFPM, shall include pricing for each Ordering Period, Travel/ODC, and Material, and must be consistent with the instructions contained in this RFP.

M.4.2.9 Unbalanced Pricing

The Government will evaluate the offeror's proposal for unbalanced pricing. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more contract line items is significantly overstated or understated as indicated by the application of cost and price analysis techniques. Offerors are cautioned that a proposal the Government assesses to be unbalanced as to price may either be rejected or determined unacceptable for award. See FAR 15.404-1(g) for more information on unbalanced pricing.

M.4.3 Factor 3: SBP Factor

M.4.3.1 The Government will evaluate the extent of the offeror's approach to achieving the Government's objective of providing opportunities in meeting the SBP Factor goals identified in this solicitation. The evaluation will be based on the extent of SBP proposed and credibility of the data provided in the proposal measured against the SBP Factor goals for this solicitation. As part of this assessment, the Government will consider the offeror's performance in complying with past Small Business Subcontracting Plans if they were required on prior contracts. During its evaluation, the Government will check for consistency within the proposal, and any

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inconsistencies found may impact the assessed credibility of the offeror's proposed goal(s) and/or the offeror's rating in this Factor. As part of this assessment, the Government will consider the Offeror's performance in complying with past Small Business Subcontracting Plans if they were required on prior contracts. Please note the solicitation goals are expressed as a percentage of 'Total Contract Amount', which is defined for this SBP Factor in Section L.4.3.2(c). The Government's small business participation goals for this solicitation are:

- 12.67% Small Business (SB)
- 2.10% Small Disadvantaged Business (SDB)
- 2.10% Woman Owned Small Business (WOSB)
- 1.30% Historically Underutilized Business Zone Small Business (HUBZone SB)
- 2.10% Veteran Owned Small Business (VOSB)
- 2.10% Service Disabled Veteran Owned Small Business (SDVOSB)

For Other Than Small Business Offerors ONLY, the Small Disadvantaged Business (SDB) goal is BOTH of the following:

- 2.10% of 'Total Contract Amount'
- 5.00% of 'Total Subcontracting Amount'

M.4.3.2 Assessment of Proposed Goals Above or Below Each of the Government Goals.

Where the offeror proposes small business participation higher than the Government's goal and the Government has determined that achievement of said small business participation is credible, or where the offeror is assessed as credibly being able to achieve or exceed the Government's goal, the Government may assign the offeror a strength against such proposal. Where the offeror proposes small business participation lower than the Government's goal, or where the offeror is assessed as not credibly being able to achieve the Government's goal, the Government may assign a weakness or significant weakness against such proposal.

M.5 Evaluation of Use of Existing Government-Owned Property

(a) Rent-free use of existing facilities, special test equipment, and/or special tooling, title to which is in the Government or to which the Government has the right to take title (all of which is herein described as property), including rent-free use by prospective subcontractors, will be a consideration in the evaluation of responses to this solicitation. Contractor must provide with their proposal, the list of GFP, the acquisition cost, age, and type of 0.

(b) For purposes of evaluation only, the unit evaluation factors for each classification of property, computed as follows, shall be added by the Government to the price or prices offered. The evaluation factors shall be computed by multiplying the acquisition cost of each item of property by the rental rates specified below, and then multiplying the product obtained by the number of months of use proposed. A minimum of one month of use shall be required for purposes of evaluation. Fractional portions of a month shall be counted as a full month. This final product shall then be divided by the total quantity of units to be produced using such property to determine the unit evaluation factors. The factors shall be separately set forth by the offeror under the offered unit prices.

Monthly Rental Rates

(1) For land and land preparation, buildings, building installations, and land installations other than those items specified in (2) below: the prevailing commercial rate.

(2) For industrial plant equipment of the types covered by Federal Supply Classification Code Numbers 3405, 3408, 3410, 3411 through 3419 (machine tools), and 3441 through 3449 (secondary metal forming and cutting machines), the following rates shall apply:

Age of Equipment Monthly Rental Rates

- 0-2 years 3.00%
- Over 2 to 3 years 2.00%
- Over 3 to 6 years 1.50%
- Over 6 to 10 years 1.00%
- Over 10 years 0.75%

(3) For personal property and equipment not covered in (1) and (2) above (including all production equipment not in the Federal Supply Classification Codes set forth above, and including special tooling and special test equipment), the following rates shall apply:

- Two percent (2.00%) per month for electronic test equipment and automotive equipment;
- One percent (1.00%) per month for special tooling and for all other property and equipment.

(c) If any item of property is to be used on other work for which use has been authorized during the period such property is requested for use on any contract resulting from this solicitation, the evaluation factors shall be calculated in accordance with the following: the acquisition cost of each item of property shall be multiplied by the rental rates specified for the applicable classification of property set forth above, and the product obtained shall then be multiplied by the number of months of rent-free use requested. The resulting product shall be multiplied by a fraction, the numerator of which is the amount of use of the property proposed under this solicitation, and the denominator of which is the sum of the previously-authorized use of the property during the period of proposed use

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and the use proposed under this solicitation. The final product shall then be divided by the total quantity of units to determine the unit evaluation factor. The measurement unit for determining the amount of use to be considered in establishing the fraction referred to in the foregoing calculation shall be direct labor hours, sales, hours of use, or any other measurement unit which will result in an equitable apportionment of the factor. The measurement unit used and the amount of respective uses in sufficient detail to support the proration shall be set forth for each item of property.

(d) For the purposes of determining the evaluation factors set forth above, the following definitions apply:

(1) The term acquisition cost means the total cost to the Government for an item of property, including the cost of (i) transportation, (ii) installation, (iii) accessories to be used with the item, and (iv) any rebuilding and modernization which has enhanced the original capability of the item;

(2) The age of an item of property shall be based on the year in which it was manufactured, with an annual birthday on 1 January of each year thereafter. On 1 January following the date of manufacture, the item shall be considered one year old; and on each succeeding January 1st, it shall become one year older (thus, an item manufactured on 15 July 1978 would be one year old on 1 January 1979, and over two years old on and after 1 January 1980).

M.6 Government-Owned Property for Possible Use and Evaluation Factor for Use of the Government-Owned Property

All offerors are requested to complete the following statement:

The offeror notifies the Government that there:

- () is
- () is not

Government-owned property in its plant(s), or in the plant(s) of any of its prospective subcontractors, which, assuming authorization for its use,

- () will
 - () will not
 - () may or may not (not finally determined as of the date of this offer)
- be used in the performance of the contract resulting from this solicitation.

NOTE: Offerors checking is AND will or may or may not above must notify the Government representative listed in Block 7 of the SF 33 at least ten days before the date when offers are due under the solicitation, so that the solicitation can be amended to include the appropriate Government property clause(s). If no such notification is given, authorization for the use of such property in this contract may be denied.

Offerors checking IS and WILL above shall also complete the following:

- a. Under each line for entries in the Unit Price and the Amount columns in the Schedule (see Section B of this solicitation), offeror shall add the following evaluation factor line and insert the appropriate unit and total price figures if the conditions of subparagraph c. below are met:

Evaluation factor: \$ _____ \$ _____

- b. Computation of the evaluation factor is explained in paragraph M.30 entitled Evaluation of Use of Existing Government-Owned Property

- c. An evaluation factor entry is to be made only if:

(1) The offeror or any subcontractor, at any tier, will use Government-owned property in production for this contract; and

(2) The offer is predicated on authorized rent-free use of Government-owned property.

d. An offeror's insertion or non-insertion of an evaluation factor constitutes, respectively, the offeror's certification that his offer is or is not so predicated. The evaluation factor will be added to the offered price for evaluation purposes. See additional paragraphs concerning Government-owned property in Sections L and M herein.

e. CAUTION Rental charges for the use of Government-owned property may accrue, if timely and appropriate approval of rent-free use is not obtained.

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SECTION E - INSPECTION AND ACCEPTANCE

ADDED	EF00006	52.246-4	01-AUG-1996	INSPECTION OF SERVICES--FIXED-PRICE
AUTO	EF00007	52.246-5	01-APR-1984	INSPECTION OF SERVICES--COST-REIMBURSEMENT
CHANGED	EF60001	52.246-11	01-DEC-2014	HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT

(a) The contractor shall comply with the higher-level quality standard(s) listed below.

The contractor shall be required to establish a certified quality management system (ISO 9000 or ISO 9001:2015) to the extent the system applies.

(b) The contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts in--

(1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or

(2) When the technical requirements of a subcontract require--

(i) Control of such things as design, work operations, in-process control, testing and inspection; or

(ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.

(End of clause)

SECTION F - DELIVERIES OR PERFORMANCE

ADDED	FF00003	52.242-15	01-APR-1984	STOP-WORK ORDER (AUG 1989) -- ALTERNATE I (APR 1984)
ADDED	FF00005	52.242-17	01-APR-1984	GOVERNMENT DELAY OF WORK
ADDED	FF00024	52.247-55	01-JUN-2003	F.O.B. POINT FOR DELIVERY OF GOVERNMENT-FURNISHED PROPERTY

SECTION G - CONTRACT ADMINISTRATION DATA

AUTO/CHANGE	GA60003	252.232-7006	01-JAN-2023	WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)
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(a) Definitions. As used in this clause

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov> ; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

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(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Cost Voucher

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	HQ0338
Issue By DoDAAC	W912CH
Admin DoDAAC**	S8050A
Inspect By DoDAAC	S8050A
Ship To Code	N/A
Ship From Code	N/A
Mark For Code	N/A
Service Approver (DoDAAC)	S8050A
Service Acceptor (DoDAAC)	S8050A
Accept at Other DoDAAC	N/A
LPO DoDAAC	N/A
DCAA Auditor DoDAAC	HAA235
Other DoDAAC(s)	N/A

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable. Reference Section G.2 through G.9 below for additional instructions.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

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N/A

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

SECTION I - CONTRACT CLAUSES

AUTO	IF00359	52.202-1	01-JUN-2020	DEFINITIONS
AUTO	IF00002	52.203-3	01-APR-1984	GRATUITIES
AUTO	IF00003	52.203-5	01-MAY-2014	COVENANT AGAINST CONTINGENT FEES
AUTO	IF00004	52.203-6	01-NOV-2021	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (NOV 2021)
AUTO	IF00006	52.203-7	01-JUN-2020	ANTI-KICKBACK PROCEDURES
AUTO	IF00007	52.203-8	01-MAY-2014	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY
AUTO	IF00008	52.203-10	01-MAY-2014	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY
AUTO	IF00009	52.203-12	01-JUN-2020	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS
AUTO	IF00430	52.203-19	01-JAN-2017	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS
ADDED	IF00011	52.204-2	01-APR-1984	SECURITY REQUIREMENTS (MAR 2021) -- ALTERNATE I (APR 1984)
ADDED	IF00010	52.204-2	01-MAR-2021	SECURITY REQUIREMENTS
ADDED	IF00015	52.204-9	01-JAN-2011	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL
AUTO	IF00364	52.204-10	01-JUN-2020	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS
ADDED	IF00408	52.204-12	01-OCT-2016	UNIQUE ENTITY IDENTIFIER MAINTENANCE
AUTO	IF00409	52.204-13	01-OCT-2018	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE
AUTO	IF00419	52.204-18	01-AUG-2020	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE
AUTO	IF00435	52.204-23	01-DEC-2023	PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)
ADDED	IF00467	52.204-28	01-DEC-2023	Federal Acquisition Supply Chain Security Act Orders?Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts (Dec 2023)
AUTO	IF00023	52.209-6	01-JAN-2025	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025)
AUTO	IF00406	52.209-9	01-OCT-2018	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS
ADDED	IF00403	52.209-10	01-NOV-2015	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS

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ADDED	IF00401	52.210-1	01-NOV-2021	MARKET RESEARCH
ADDED	IF00024	52.211-5	01-AUG-2000	MATERIAL REQUIREMENTS
AUTO	IF00026	52.211-15	01-APR-2008	DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS
ADDED	IF00038	52.215-2	01-JUN-2020	AUDIT AND RECORDS--NEGOTIATIONS
ADDED	IF00042	52.215-8	01-OCT-1997	ORDER OF PRECEDENCE--UNIFORM CONTRACT FORMAT
ADDED	IF00050	52.215-14	01-NOV-2021	INTEGRITY OF UNIT PRICES
AUTO	IF00052	52.215-15	01-OCT-2010	PENSION ADJUSTMENTS AND ASSET REVERSIONS
AUTO	IF00054	52.215-18	01-JUL-2005	REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT BENEFITS (PRB) OTHER THAN PENSIONS
ADDED	IF00056	52.215-21	01-NOV-2021	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA --MODIFICATIONS
ADDED	IF00382	52.215-23	01-JUN-2020	LIMITATIONS ON PASS-THROUGH CHARGES
AUTO	IF00059	52.216-8	01-JUN-2011	FIXED FEE
AUTO	IF00396	52.219-8	01-JAN-2025	UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025)
ADDED	IF00446	52.219-9	01-JAN-2025	SMALL BUSINESS SUBCONTRACTING PLAN (JAN 2025)
ADDED	IF00084	52.219-16	01-SEP-2021	LIQUIDATED DAMAGES--SUBCONTRACTING PLAN
ADDED	IF00087	52.222-1	01-FEB-1997	NOTICE TO THE GOVERNMENT OF LABOR DISPUTES
ADDED	IF00103	52.222-20	01-JUN-2020	CONTRACTS FOR MATERIALS, SUPPLIES, ARTICLES, AND EQUIPMENT
AUTO	IF00112	52.222-37	01-JUN-2020	EMPLOYMENT REPORTS ON VETERANS
AUTO	IF00395	52.222-40	01-DEC-2010	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT
ADDED	IF00113	52.222-41	01-AUG-2018	SERVICE CONTRACT LABOR STANDARDS
ADDED	IF00114	52.222-43	01-AUG-2018	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS--PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS)
ADDED	IF00115	52.222-44	01-MAY-2014	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS--PRICE ADJUSTMENT
AUTO	IF00116	52.222-50	01-OCT-2025	COMBATING TRAFFICKING IN PERSONS (OCT 2025)
AUTO	IF00381	52.222-54	01-JAN-2025	EMPLOYMENT ELIGIBILITY VERIFICATION (JAN 2025)
ADDED	IF00420	52.222-55	01-JAN-2022	MINIMUM WAGES UNDER EXECUTIVE ORDER 14026
ADDED	IF00429	52.222-62	01-JAN-2022	PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706
ADDED	IF00117	52.223-5	01-MAY-2024	POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION (MAY 2024)
AUTO	IF00133	52.225-13	01-FEB-2021	RESTRICTIONS ON CERTAIN FOREIGN PURCHASES
ADDED	IF00121	52.226-7	01-MAY-2024	DRUG-FREE WORKPLACE (MAY 2024)
AUTO	IF00394	52.226-8	01-MAY-2024	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)
AUTO	IF00136	52.227-1	01-JUN-2020	AUTHORIZATION AND CONSENT

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AUTO	IF00140	52.227-2	01-JUN-2020	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT
AUTO	IF00152	52.228-7	01-MAR-1996	INSURANCE--LIABILITY TO THIRD PERSONS
ADDED	IF00163	52.229-6	01-FEB-2013	TAXES--FOREIGN FIXED-PRICE CONTRACTS
ADDED	IF00169	52.230-6	01-JUN-2010	ADMINISTRATION OF COST ACCOUNTING STANDARDS
ADDED	IF00170	52.232-1	01-APR-1984	PAYMENTS
ADDED	IF00175	52.232-8	01-FEB-2002	DISCOUNTS FOR PROMPT PAYMENT
ADDED	IF00178	52.232-11	01-APR-1984	EXTRAS
ADDED	IF00179	52.232-17	01-MAY-2014	INTEREST
ADDED	IF00180	52.232-18	01-APR-1984	AVAILABILITY OF FUNDS
ADDED	IF00181	52.232-20	01-APR-1984	LIMITATION OF COST
AUTO	IF00185	52.232-23	01-APR-1984	ASSIGNMENT OF CLAIMS (MAY 2014) -- ALTERNATE I (APR 1984)
ADDED	IF00187	52.232-25	01-JAN-2017	PROMPT PAYMENT
AUTO/DEL	IF00188	52.232-25	01-FEB-2002	PROMPT PAYMENT (JAN 2017) - ALTERNATE I (FEB 2002)
ADDED	IF00191	52.232-33	01-OCT-2018	PAYMENT BY ELECTRONIC FUNDS TRANSFER--SYSTEM FOR AWARD MANAGEMENT
AUTO	IF00411	52.232-39	01-JUN-2013	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS
AUTO	IF00414	52.232-40	01-MAR-2023	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS(MAR 2023)
AUTO	IF00194	52.233-1	01-MAY-2014	DISPUTES
ADDED	IF00195	52.233-1	01-DEC-1991	DISPUTES (MAY 2014) -- ALTERNATE I (DEC 1991)
ADDED	IF00196	52.233-3	01-AUG-1996	PROTEST AFTER AWARD
AUTO	IF00197	52.233-3	01-JUN-1985	PROTEST AFTER AWARD (AUG 1996) -- ALTERNATE I (JUN 1985)
AUTO	IF00198	52.233-4	01-OCT-2004	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM
ADDED	IF00223	52.237-2	01-APR-1984	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION
ADDED	IF00224	52.237-3	01-JAN-1991	CONTINUITY OF SERVICES
AUTO	IF00231	52.242-1	01-APR-1984	NOTICE OF INTENT TO DISALLOW COSTS
AUTO	IF00233	52.242-3	01-DEC-2022	PENALTIES FOR UNALLOWABLE COSTS
ADDED	IF00431	52.242-5	01-JAN-2017	PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS
AUTO	IF00235	52.242-13	01-JUL-1995	BANKRUPTCY
AUTO	IF00244	52.243-2	01-APR-1984	CHANGES - COST-REIMBURSEMENT (AUG 1987) -- ALTERNATE I (APR 1984)
ADDED	IF00254	52.244-5	01-AUG-2024	COMPETITION IN SUBCONTRACTING (AUG 2024)
AUTO	IF00255	52.244-6	01-OCT-2025	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION 2025-00003)
AUTO	IF00391	52.245-1	01-SEP-2021	GOVERNMENT PROPERTY

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AUTO	IF00267	52.245-9	01-APR-2012	USE AND CHARGES
ADDED	IF00283	52.246-23	01-FEB-1997	LIMITATION OF LIABILITY
ADDED	IF00286	52.246-25	01-FEB-1997	LIMITATION OF LIABILITY--SERVICES
ADDED	IF00437	52.246-26	01-AUG-2024	REPORTING NONCONFORMING ITEMS (AUG 2024)
AUTO	IF00307	52.247-63	01-JAN-2025	PREFERENCE FOR U.S.-FLAG AIR CARRIERS (JAN 2025)
ADDED	IF00310	52.247-68	01-FEB-2006	REPORT OF SHIPMENT (REPSHIP)
ADDED	IF00322	52.249-2	01-APR-2012	TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE)
AUTO	IF00330	52.249-6	01-MAY-2004	TERMINATION (COST REIMBURSEMENT)
ADDED	IF00336	52.249-8	01-APR-1984	DEFAULT (FIXED-PRICE SUPPLY AND SERVICE)
AUTO	IF00347	52.249-14	01-APR-1984	EXCUSABLE DELAYS
ADDED	IF00476	252.270-7002	01-NOV-2024	Pilot Program To Incentivize Contracting With Employee-Owned Businesses (Nov 2024)
ADDED	IA00001	252.201-7000	01-DEC-1991	CONTRACTING OFFICER'S REPRESENTATIVE
AUTO	IA00285	252.203-7000	01-SEP-2011	REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS
AUTO	IA00267	252.203-7001	01-JAN-2023	PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES (JAN 2023)
AUTO	IA00287	252.203-7002	01-DEC-2022	REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022)
ADDED	IA00302	252.203-7003	01-AUG-2019	AGENCY OFFICE OF THE INSPECTOR GENERAL
ADDED	IA00358	252.203-7004	01-JAN-2023	DISPLAY OF HOTLINE POSTERS (JAN 2023)
AUTO	IA00268	252.204-7000	01-OCT-2016	DISCLOSURE OF INFORMATION
AUTO	IA00269	252.204-7003	01-APR-1992	CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT
ADDED	IA00363	252.204-7004	01-JAN-2023	ANTITERRORISM AWARENESS TRAINING FOR CONTRACTORS
ADDED	IA00009	252.204-7006	01-MAY-2023	BILLING INSTRUCTIONS--COST VOUCHERS (MAY 2023)
ADDED	IA00349	252.204-7009	01-JAN-2023	LIMITATIONS ON THE USE OR DISCLOSURE OF THIRD-PARTY CONTRACTOR REPORTED CYBER INCIDENT INFORMATION (JAN 2023)
AUTO	IA00354	252.204-7012	01-MAY-2024	SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (MAY 2024) (DEVIATION 2024-00013, REVISION 1)
AUTO	IA00339	252.204-7015	01-JAN-2023	NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023)
AUTO	IA00373	252.204-7018	01-JAN-2023	PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)
AUTO	IA00378	252.204-7020	01-NOV-2023	NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)
ADDED	IA00379	252.204-7021	01-JAN-2023	CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS(NOV2025)
ADDED	IA00383	252.204-7023	01-JUL-2021	REPORTING REQUIREMENTS FOR CONTRACTED SERVICES--ALTERNATE I
AUTO	IA00010	252.205-7000	01-OCT-2024	PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS (OCT 2024)

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AUTO	IA00011	252.209-7004	01-MAY-2019	SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY E GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019)
ADDED	IA00316	252.209-7009	01-MAY-2019	ORGANIZATIONAL CONFLICT OF INTEREST -- MAJOR DEFENSE ACQUISITION PROGRAM
ADDED	IA00361	252.219-7003	01-DEC-2019	SMALL BUSINESS SUBCONTRACTING PLAN (DOD CONTRACTS)--BASIC
ADDED	IA00037	252.222-7002	01-JUN-1997	COMPLIANCE WITH LOCAL LABOR LAWS (OVERSEAS)
AUTO	IA00355	252.222-7006	01-JAN-2023	RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS (JAN 2023)
ADDED	IA00320	252.223-7008	01-JAN-2023	PROHIBITION OF HEXAVALENT CHROMIUM (JAN 2023)
ADDED	IA00047	252.225-7002	01-MAR-2022	QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS
ADDED	IA00052	252.225-7012	01-APR-2022	PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES
ADDED	IA00056	252.225-7015	01-JUN-2005	RESTRICTION ON ACQUISITION OF HAND OR MEASURING TOOLS
ADDED	IA00057	252.225-7016	01-JAN-2023	RESTRICTION ON ACQUISITION OF BALL AND ROLLER BEARINGS (JAN 2023)
ADDED	IA00063	252.225-7028	01-APR-2003	EXCLUSIONARY POLICIES AND PRACTICES OF FOREIGN GOVERNMENTS
ADDED	IA00065	252.225-7033	01-APR-2003	WAIVER OF UNITED KINGDOM LEVIES
ADDED	IA00342	252.225-7040	01-OCT-2023	CONTRACTOR PERSONNEL SUPPORTING U.S. ARMED FORCES DEPLOYED OUTSIDE THE UNITED STATES
ADDED	IA00070	252.225-7041	01-JUN-1997	CORRESPONDENCE IN ENGLISH
AUTO	IA00333	252.225-7048	01-JUN-2013	EXPORT-CONTROLLED ITEMS
ADDED	IA00377	252.225-7052	01-MAY-2024	RESTRICTION ON THE ACQUISITION OF CERTAIN MAGNETS, TANTALUM, AND TUNGSTEN (MAY 2024)
AUTO	IA00388	252.225-7056	01-JAN-2023	PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023)
ADDED	IA00390	252.225-7058	01-JAN-2023	POSTAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (JAN 2023)
AUTO	IA00072	252.226-7001	01-JAN-2023	UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS (JAN 2023)
AUTO	IA00076	252.227-7013	01-JAN-2025	RIGHTS IN TECHNICAL DATA--OTHER THAN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)
AUTO	IA00078	252.227-7014	01-JAN-2025	RIGHTS IN NONCOMMERCIAL COMPUTER SOFTWARE AND NONCOMMERCIAL COMPUTER SOFTWARE DOCUMENTATION(JAN 2025)
AUTO/DEL	IA00080	252.227-7015	01-JAN-2025	TECHNICAL DATA--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)
AUTO	IA00081	252.227-7016	01-JAN-2023	RIGHTS IN BID OR PROPOSAL INFORMATION (JAN 2023)
AUTO/DEL	IA00084	252.227-7019	01-JAN-2025	VALIDATION OF ASSERTED RESTRICTIONS--COMPUTER SOFTWARE (JAN 2025)
AUTO	IA00089	252.227-7025	01-JAN-2025	LIMITATIONS ON THE USE OR DISCLOSURE OF GOVERNMENT-FURNISHED INFORMATION MARKED WITH RESTRICTIVE LEGENDS (JAN 2025)
AUTO/DEL	IA00091	252.227-7027	01-APR-1988	DEFERRED ORDERING OF TECHNICAL DATA OR COMPUTER SOFTWARE

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AUTO/DEL	IA00092	252.227-7030	01-MAR-2000	TECHNICAL DATA--WITHHOLDING OF PAYMENT
AUTO/DEL	IA00096	252.227-7037	01-JAN-2025	VALIDATION OF ASSERTED RESTRICTIONS ON TECHNICAL DATA (JAN 2025)
ADDED	IA00112	252.229-7011	01-SEP-2005	REPORTING OF FOREIGN TAXES - U.S. ASSISTANCE PROGRAMS
AUTO	IA00271	252.231-7000	01-DEC-1991	SUPPLEMENTAL COST PRINCIPLES
ADDED	IA00114	252.232-7002	01-MAY-2023	PROGRESS PAYMENTS FOR FOREIGN MILITARY SALES ACQUISITIONS(MAY 2023)
AUTO	IA00115	252.232-7003	01-DEC-2018	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS
ADDED	IA00119	252.232-7008	01-JUN-1997	ASSIGNMENT OF CLAIMS (OVERSEAS)
AUTO	IA00272	252.232-7010	01-DEC-2006	LEVIES ON CONTRACT PAYMENTS
ADDED	IA00310	252.234-7004	01-NOV-2014	COST AND SOFTWARE DATA REPORTING SYSTEM--BASIC
ADDED	IA00128	252.235-7011	01-DEC-2019	FINAL SCIENTIFIC OR TECHNICAL REPORT
AUTO	IA00308	252.237-7010	01-JAN-2023	PROHIBITION ON INTERROGATION OF DETAINEES BY CONTRACTOR PERSONNEL (JAN 2023)
ADDED	IA00321	252.242-7005	01-JAN-2025	CONTRACTOR BUSINESS SYSTEMS (JAN 2025)
ADDED	IA00322	252.242-7006	01-JAN-2025	ACCOUNTING SYSTEM ADMINISTRATION (JAN 2025)
ADDED	IA00147	252.243-7001	01-DEC-1991	PRICING OF CONTRACT MODIFICATIONS
AUTO	IA00148	252.243-7002	01-DEC-2022	REQUESTS FOR EQUITABLE ADJUSTMENT (DEC 2022)
AUTO	IA00149	252.244-7000	01-NOV-2023	SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023)
AUTO	IA00324	252.245-7003	01-JAN-2025	CONTRACTOR PROPERTY MANAGEMENT SYSTEM ADMINISTRATION (JAN 2025)
ADDED	IA00393	252.245-7005	01-JAN-2024	Management and Reporting of Government Property
ADDED	IA00273	252.246-7003	01-JAN-2023	NOTIFICATION OF POTENTIAL SAFETY ISSUES (JAN 2023)
AUTO	IA00157	252.247-7023	01-OCT-2024	TRANSPORTATION OF SUPPLIES BY SEA--BASIC (OCT 2024)
ADDED/FIL	IF60243	52.204-30	01-DEC-2023	Federal Acquisition Supply Chain Security Act Orders?Prohibition (Dec 2023)
AUTO/CHANGE	IF60114	52.216-7	01-AUG-2018	ALLOWABLE COST AND PAYMENT

(a) Invoicing.

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) Subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the 30th day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

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(1) For the purpose of reimbursing allowable costs (except as provided in subparagraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only --

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for --

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check or other form of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless--

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) Small business concerns. A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with Subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

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(B) General and Administrative expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) Overhead expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) Occupancy expenses (intermediate indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (i.e., General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) Subcontract information. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General Organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p). Additional salary reference information is available at:
<https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedBeforeJune24.pdf> and
<https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedAfterJune24.pdf>

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (e.g., trial balance, compilation, review, etc.).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission

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is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: Contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify

(i) the agreed-upon final annual indirect cost rates,

(ii) the bases to which the rates apply,

(iii) the periods for which the rates apply,

(iv) any specific indirect cost items treated as direct costs in the settlement, and

(v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates.

The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may--

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) Billing rates. Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates --

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) Quick-closeout procedures. Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) Audit. At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be --

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(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver --

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except --

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of Clause)

CHANGED IF60232 52.216-18 01-AUG-2020 ORDERING

Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from:

- OP 1: Date of contract award through 365 days
- OP 2: 366 days through 730 days after contract award
- OP 3: 731 days through 1,095 days after contract award
- OP 4: 1,096 days through 1,460 days after contract award
- OP 5: 1,461 days through 1,825 days after contract award

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

- (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
- (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
- (3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

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(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

CHANGED IF60123 52.216-22 01-OCT-1995 INDEFINITE QUANTITY

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after six and one half (6) years after contract award.

(End of Clause)

AUTO/DEL IF60154 52.217-8 01-NOV-1999 OPTION TO EXTEND SERVICES

CHANGED IF60126 52.222-2 01-JUL-1990 PAYMENT FOR OVERTIME PREMIUMS

(a) The use of overtime is authorized under this contract if the overtime premium does not exceed AMOUNT TO BE NEGOTIATED or the overtime premium is paid for work --

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.

(b) Any request for estimated overtime premiums that exceeds the amount specified above shall include all estimated overtime for contract completion and shall --

(1) Identify the work unit; e.g., department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;

(2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;

(3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and

(4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.

(End of Clause)

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CHANGED IF60129 52.222-36 01-JUL-2014 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020) --
ALTERNATE I (JUL 2014)

Notice: The following term(s) of this clause are waived for this contract: N/A.

(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation

(FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

CHANGED IF60036 52.222-42 01-MAY-2014 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only:
It is not a Wage Determination

Employee Class	Monetary Wage - Fringe Benefits
Project Management Specialist (Bell County, TX)	\$42.89 - 36.25%
Field Service Representative (Bell County, TX)	\$30.33 - 36.25%
Heavy Equipment Mechanic (Bell County, TX)	\$30.33 - 36.25%
Material Handling Specialist (Bell County, TX)	\$24.68 - 36.25%
Inspector (Bell County, TX)	\$29.57 - 36.25%
Supply/Procurement Specialist (Bell County, TX)	\$24.18 - 36.25%
Welder (Bell County, TX)	\$30.33 - 36.25%
Instructor (Bell County, TX)	\$24.18 - 36.25%
MWO Installer (Bell County, TX)	\$30.33 - 36.25%

(End of Clause)

CHANGED IF60054 52.229-8 01-MAR-1990 TAXES--FOREIGN COST-REIMBURSEMENT CONTRACTS

(a) Any tax or duty from which the United States Government is exempt by agreement with the Government of foreign government TBD, or from which the Contractor or any subcontractor under this contract is exempt under the laws of country TBD, shall not constitute an allowable cost under this contract.

(b) If the Contractor or subcontractor under this contract obtains a foreign tax credit that reduces its Federal income tax liability under the United States Internal Revenue Code (Title 26, U.S. Code) because of the payment of any tax or duty that was reimbursed under this contract, the amount of the reduction shall be paid or credited at the time of such offset to the Government of the United States as the Contracting Officer directs.

(End of Clause)

AUTO/CHANGE IF60148 52.244-2 01-JUN-2020 SUBCONTRACTS

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(a) Definitions. As used in this clause

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with Part 44 of the Federal Acquisition Regulation (FAR)

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

"Subcontract" means any contract, as defined in FAR Subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) or this clause.

(c) If the contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that--

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the national Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For contracts awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts: TBD

(e)(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting --

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

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(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (c), (d), or (e) or this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination --

- (1) Of the acceptability of any subcontract terms or conditions;
- (2) Of the allowability of any cost under this contract; or
- (3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR Subpart 44.3.i

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations: TBD

(End of clause)

ADDED/FIL	IF60103	52.247-67	01-FEB-2006	SUBMISSION OF TRANSPORTATION DOCUMENTS FOR AUDIT
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CHANGED	IA60059	252.215-7004	01-OCT-2013	REQUIREMENT FOR SUBMISSION OF DATA OTHER THAN CERTIFIED COST OR PRICING DATA -- MODIFICATIONS -- CANADIAN COMMERCIAL CORPORATION
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This clause, in lieu of FAR 52.215-21, applies only if award is to the Canadian Commercial Corporation.

(a) Submission of certified cost or pricing data is not required.

(b) Canadian Commercial Corporation shall obtain and provide the following for modifications that exceed \$150,000 [or higher dollar value specified by the U.S. Contracting Officer in the solicitation].

(i) Profit rate or fee (as applicable).

(ii) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(iii) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable TBD.

(End of clause)

CHANGED	IA60020	252.225-7027	01-APR-2003	RESTRICTION ON CONTINGENT FEES FOR FOREIGN MILITARY SALES
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(a) Except as provided in paragraph (b) of this clause, contingent fees, as defined in the Covenant Against Contingent Fees clause of this contract, are generally an allowable cost, provided the fees are paid to

- (1) A bona fide employee of the Contractor; or
- (2) A bona fide established commercial or selling agency maintained by the Contractor for the purpose of securing business.

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(b) For foreign military sales, unless the contingent fees have been identified and payment approved in writing by the foreign customer before contract award, the following contingent fees are unallowable under this contract:

(1) For sales to the Government(s) of countries TBD, contingent fees in any amount.

(2) For sales to Governments not listed in paragraph (b)(1) of this clause, contingent fees exceeding \$50,000 per foreign military sale case.

(End of clause)

CHANGED IA60021 252.225-7043 01-JUN-2015 ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES

(a) Definition. "United States," as used in this clause, means, the 50 States, the District of Columbia, and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is:

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from HQDA-AT; telephone, DSN 222-9832 or commercial (703 692-9832. .

(End of clause)

CHANGED IA60066 252.234-7002 01-JAN-2025 EARNED VALUE MANAGEMENT SYSTEM (JAN 2025)

(a) Definitions. As used in this clause--

"Acceptable earned value management system" means an earned value management system that generally complies with system criteria in paragraph (b) of this clause.

"Earned value management system" means an earned value management system that complies with the earned value management system guidelines in the ANSI/EIA-748.

"Material weakness" means a deficiency or combination of deficiencies in the internal control over information in contractor business systems, such that there is a reasonable possibility that a material misstatement of such information will not be prevented, or detected and corrected, on a timely basis. A reasonable possibility exists when the likelihood of an event occurring is

(1) Probable; or

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(2) More than remote but less than likely (section 806 of Pub. L. 116-283).

(b) System criteria. In the performance of this contract, the Contractor shall use--

(1) An Earned Value Management System (EVMS) that complies with the EVMS guidelines in the American National Standards Institute/Electronic Industries Alliance Standard 748, Earned Value Management Systems (ANSI/EIA-748); and

(2) Management procedures that provide for generation of timely, reliable, and verifiable information for the Contract Performance Report (CPR) and the Integrated Master Schedule (IMS) required by the CPR and IMS data items of this contract.

(c) If this contract has a value of \$50 million or more, the Contractor shall use an EVMS that has been determined to be acceptable by the Cognizant Federal Agency (CFA). If, at the time of award, the Contractor's EVMS has not been determined by the CFA to be in compliance with the EVMS guidelines as stated in paragraph (b)(1) of this clause, the Contractor shall apply its current system to the contract and shall take necessary actions to meet the milestones in the Contractor's EVMS plan.

(d) If this contract has a value of less than \$50 million, the Government will not make a formal determination that the Contractor's EVMS complies with the EVMS guidelines in ANSI/EIA-748 with respect to the contract. The use of the Contractor's EVMS for this contract does not imply a Government determination of the Contractor's compliance with the EVMS guidelines in ANSI/EIA-748 for application to future contracts. The Government will allow the use of a Contractor's EVMS that has been formally reviewed and determined by the CFA to be in compliance with the EVMS guidelines in ANSI/EIA-748.

(e) The Contractor shall submit notification of any proposed substantive changes to the EVMS procedures and the impact of those changes to the CFA. If this contract has a value of \$50 million or more, unless a waiver is granted by the CFA, any EVMS changes proposed by the Contractor require approval of the CFA prior to implementation. The CFA will advise the Contractor of the acceptability of such changes as soon as practicable (generally within 30 calendar days) after receipt of the Contractor's notice of proposed changes. If the CFA waives the advance approval requirements, the Contractor shall disclose EVMS changes to the CFA at least 14 calendar days prior to the effective date of implementation.

(f) The Government will schedule integrated baseline reviews as early as practicable, and the review process will be conducted not later than 180 calendar days after--

(1) Contract award;

(2) The exercise of significant contract options; and

(3) The incorporation of major modifications.

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During such reviews, the Government and the Contractor will jointly assess the Contractor's baseline to be used for performance measurement to ensure complete coverage of the statement of work, logical scheduling of the work activities, adequate resourcing, and identification of inherent risks.

(g) The Contractor shall provide access to all pertinent records and data requested by the Contracting Officer or duly authorized representative as necessary to permit Government surveillance to ensure that the EVMS complies, and continues to comply, with the performance criteria referenced in paragraph (b) of this clause.

(h) When indicated by contract performance, the Contractor shall submit a request for approval to initiate an over-target baseline or over-target schedule to the Contracting Officer. The request shall include a top-level projection of cost and/or schedule growth, a determination of whether or not performance variances will be retained, and a schedule of implementation for the rebaselining. The Government will acknowledge receipt of the request in a timely manner (generally within 30 calendar days).

(i) Material weaknesses.

(1) The Contracting Officer will provide an initial determination to the Contractor, in writing, of any significant deficiencies. The initial determination will describe the deficiency in sufficient detail to allow the Contractor to understand the deficiency.

(2) The Contractor shall respond within 30 days to a written initial determination from the Contracting Officer that identifies significant deficiencies in the Contractor's EVMS. If the Contractor disagrees with the initial determination, the Contractor shall state, in writing, its rationale for disagreeing.

(3) The Contracting Officer will evaluate the Contractor's response and notify the Contractor, in writing, of the Contracting Officer's final determination concerning--

(i) Remaining significant deficiencies;

(ii) The adequacy of any proposed or completed corrective action;

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(iii) System noncompliance, when the Contractor's existing EVMS fails to comply with the earned value management system guidelines in the ANSI/EIA-748; and

(iv) System disapproval, if initial EVMS validation is not successfully completed within the timeframe approved by the Contracting Officer, or if the Contracting Officer determines that the Contractor's earned value management system contains one or more material weaknesses in high-risk guidelines in ANSI/EIA-748 standards (guidelines 1, 3, 6, 7, 8, 9, 10, 12, 16, 21, 23, 26, 27, 28, 30, or 32). When the Contracting Officer determines that the existing earned value management system contains one or more material weaknesses in one or more of the remaining 16 guidelines in ANSI/EIA-748 standards, the Contracting Officer will use discretion to disapprove the system based on input received from functional specialists and the auditor.

(4) If the Contractor receives the Contracting Officer's final determination of material weaknesses, the Contractor shall, within 45 days of receipt of the final determination, either correct the material weaknesses or submit an acceptable corrective action plan showing milestones and actions to eliminate the material weaknesses.

(j) Withholding payments. If the Contracting Officer makes a final determination to disapprove the Contractor's EVMS, and the contract includes the clause at 252.242-7005, Contractor Business Systems, the Contracting Officer will withhold payments in accordance with that clause.

(k) Subcontracts. With the exception of paragraphs (i) and (j) of this clause, the Contractor shall require its subcontractors to comply with EVMS requirements as follows:

(1) For subcontracts valued at \$50 million or more, the following subcontractors shall comply with the requirements of this clause:

[Contracting Officer to insert names of subcontractors (or subcontracted effort if subcontractors have not been selected/TBD) designated for application of the EVMS requirements of this clause.]

(2) For subcontracts valued at less than \$50 million, the following subcontractors shall comply with the requirements of this clause, excluding the requirements of paragraph (c) of this clause:

[Contracting Officer to insert names of subcontractors (or subcontracted effort if subcontractors have not been selected/TBD) designated for application of the EVMS requirements of this clause.]

(End of clause)

CHANGED IA60011 252.235-7010 01-MAY-1995 ACKNOWLEDGMENT OF SUPPORT AND DISCLAIMER

(a) The Contractor shall include an acknowledgment of the Government's support in the publication of any material based on or developed under this contract, stated in the following terms: This material is based upon work supported by the Army Contracting Command under Contract No. TBD.

(b) All material, except scientific articles or papers published in scientific journals, must, in addition to any notices or disclaimers by the Contractor, also contain the following disclaimer: Any opinions, findings and conclusions or recommendations expressed in this material are those of the author(s) and do not necessarily reflect the views of the -1-.

(End of clause)

ADDED	IF70058	52.203-13	01-NOV-2021	CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT
AUTO	IF70067	52.204-19	01-DEC-2014	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS
ADDED	IF70068	52.204-21	01-NOV-2021	BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS
AUTO	IF70118	52.204-25	01-NOV-2021	PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT

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ADDED	IF70127	52.204-27	01-JUN-2023	Prohibition on a ByteDance Covered Application (Jun 2023)
ADDED	IF70122	52.215-11	01-OCT-2021	PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA--MODIFICATIONS (DEVIATION 2022-00001)
ADDED	IF70124	52.215-13	01-OCT-2021	SUBCONTRACTOR CERTIFIED COST OR PRICING DATA--MODIFICATIONS (DEVIATION 2022-00001)
AUTO	IF70003	52.215-19	01-OCT-1997	NOTIFICATION OF OWNERSHIP CHANGES
ADDED	IF70119	52.219-4	01-OCT-2022	NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022)
AUTO/CHANGE	IF70036	52.219-28	01-JAN-2025	POST-AWARD SMALL BUSINESS PROGRAM REPRESENTATION (JAN 2025)

(a) Definitions. As used in this clause

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

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(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ___ is, ___ is not a small business concern under NAICS Code _____ assigned to contract number _____.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ___ is, ___ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ___ is, ___ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ___ is, ___ is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it ___ is, ___ is not a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it ___ is, ___ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that

(i) It ___ is, ___ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal

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office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It __ is, __ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title._____]

(End of clause)

AUTO	IF70117	52.222-19	01-JAN-2025	CHILD LABOR--COOPERATION WITH AUTHORITIES AND REMEDIES (JAN 2025)
AUTO	IF70064	52.222-35	01-JUN-2020	EQUAL OPPORTUNITY FOR VETERANS
AUTO	IF70065	52.222-36	01-JUN-2020	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES
ADDED	IF70015	52.223-3	01-FEB-2021	HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (FEB 2021)
ADDED	IF70018	52.223-11	01-MAY-2024	OZONE-DEPLETING SUBSTANCES AND HIGH GLOBAL WARMING POTENTIAL HYDROFLUOROCARBONS (MAY 2024)
ADDED	IF70069	52.223-20	01-MAY-2024	AEROSOLS (MAY 2024)
ADDED	IF70070	52.223-21	01-MAY-2024	FOAMS (MAY 2024)
ADDED	IF70113	52.230-2	01-JUN-2020	COST ACCOUNTING STANDARDS
AUTO	IF70033	52.252-2	01-FEB-1998	CLAUSES INCORPORATED BY REFERENCE (Feb 1998)
AUTO	IF70034	52.252-6	01-NOV-2020	AUTHORIZED DEVIATIONS IN CLAUSES (Nov 2020)
ADDED	IA70007	252.223-7001	01-DEC-1991	HAZARD WARNING LABELS
ADDED	IA70120	252.225-7013	01-NOV-2023	DUTY-FREE ENTRY
AUTO	IA70118	252.225-7972	01-AUG-2024	PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS (DEVIATION 2024-00014)
ADDED	IA70078	252.225-7995	01-SEP-2017	CONTRACTOR PERSONNEL PERFORMING IN THE UNITED STATES CENTRAL COMMAND AREA OF RESPONSIBILITY (DEVIATION 2017-00004)
ADDED	IA70128	252.243-7999	01-AUG-2020	SECTION 3610 REIMBURSEMENT

SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

ADDED	KF00019	52.204-29	01-DEC-2023	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures (Dec 2023)
AUTO	KA00008	252.203-7005	01-SEP-2022	REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (Sep 2022)
AUTO	KA00017	252.204-7008	01-OCT-2016	COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS
AUTO	KA00020	252.225-7055	01-MAY-2022	Representation Regarding Business Operations with the Maduro Regime
AUTO/DEL	KA00005	252.227-7017	01-JAN-2025	IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2025)
AUTO/DEL	KA00006	252.227-7028	01-JUN-1995	TECHNICAL DATA OR COMPUTER SOFTWARE PREVIOUSLY DELIVERED TO THE GOVERNMENT

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AUTO/DEL KF60009 52.204-8 01-MAR-2025 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAR 2025) (DEVIATION 2025--00003) and (DEVIATION 2025-000004)

AUTO/CHANGE KA60005 252.204-7007 01-OCT-2025 ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025)
Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

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___ Use with Alternate IV.

___ Use with Alternate V.

___ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

___ (vii) 252.232-7015, Performance-Based Payments--Representation.

(e)The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.2048(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
_____	_____	_____	_____
_____	_____	_____	_____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

AUTO	KF70056	52.204-24	01-NOV-2021	REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT
AUTO	KF70044	52.209-7	01-OCT-2018	INFORMATION REGARDING RESPONSIBILITY MATTERS
AUTO	KF70053	52.209-13	01-NOV-2021	VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS--CERTIFICATION
ADDED	KF70059	52.230-1	01-JUN-2020	COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION
AUTO	KA70051	252.204-7017	01-MAY-2021	PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION
AUTO	KA70055	252.225-7973	01-AUG-2024	PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS--REPRESENTATION (DEVIATION 2024-00014)
AUTO	KA70062	252.239-7098	01-APR-2021	PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN WEBSITES--REPRESENTATION (DEVIATION 2021-00003)

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

AUTO	LF00055	52.204-16	01-AUG-2020	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING
AUTO	LF00058	52.204-22	01-JAN-2017	ALTERNATIVE LINE ITEM PROPOSAL
ADDED	LF00025	52.215-1	01-NOV-2021	INSTRUCTIONS TO OFFERORS--COMPETITIVE ACQUISITION
AUTO	LF00028	52.215-16	01-JUN-2003	FACILITIES CAPITAL COST OF MONEY
ADDED	LF00056	52.222-56	01-OCT-2020	CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN

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ADDED	LF00038	52.237-1	01-APR-1984	SITE VISIT
ADDED	LF00039	52.237-10	01-MAR-2015	IDENTIFICATION OF UNCOMPENSATED OVERTIME
AUTO	LA00024	252.204-7019	01-NOV-2023	NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS
AUTO	LA00016	252.215-7008	01-DEC-2022	ONLY ONE OFFER (DEC 2022)
ADDED	LA00020	252.215-7010	01-MAY-2024	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA--BASIC (MAY 2023)
AUTO	LA00022	252.215-7013	01-JAN-2023	SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)
AUTO/CHANGE	LF60017	52.211-14	01-APR-2008	NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE

Any contract awarded as a result of this solicitation will be [] DX rated order; [X] DO rated order; certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of Provision)

AUTO/CHANGE	LF60010	52.233-2	01-SEP-2006	SERVICE OF PROTEST
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(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from TACOM LCMC, ATTN: CCTA (Army Contracting Command Detroit Arsenal - Protest Coordinator, Mail Stop 315, 6501 E. 11 Mile Rd., Detroit Arsenal, MI 48397-5000).

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

CHANGED	LA60012	252.215-7010	01-AUG-2024	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA (MAY 2024)--ALTERNATE I (AUG 2024)
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(a) Definitions. As used in this provision--

"Market prices" means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

"Non-Government sales" means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

"Relevant sales data" means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

"Sufficient non-Government sales" means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by FAR 15.404-1(b)(2)(ii)(B).

"Uncertified cost data" means the subset of "data other than certified cost or pricing data" (see FAR 2.101) that relates to cost.

(b) Exceptions from certified cost or pricing data. (1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the

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extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) Exception for prices set by law or regulation--Identification of the law or regulation establishing the prices offered. If the prices are controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) Commercial product or commercial service exception. For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for determining commerciality and evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include--

(A) For products or services previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For subsystems of a major weapon system and components and spare parts of a major weapon system or subsystem of a major weapon system that have not previously been determined to be commercial--

(1) The comparable commercial product the Offeror sells to the general public or nongovernmental entities;

(2) A comparison between the physical characteristics and functionality of the comparable commercial product and the subsystem, component, or spare part, including--

(i) For products under paragraph (3)(i) of the ``commercial product'' definition at FAR 2.101, a description of the modification and documentation to support that the modification is customarily available in the marketplace; or

(ii) For products under paragraph (3)(ii) of the ``commercial product'' definition at FAR 2.101, a detailed description of the modification and detailed technical data to demonstrate that the modification is minor (e.g., information on production processes and material differences); and

(3) The national stock number (NSN) for the comparable commercial product, if one is assigned, and the NSN for the subsystem, component, or spare part, if one is assigned; or

(4) If the Offeror does not sell a comparable commercial product to the general public or nongovernmental entities for purposes other than government purposes, the Offeror shall--

(i) Notify the Contracting Officer in writing that it does not sell such a comparable product; and

(ii) Provide the Contracting Officer with a comparison of the physical characteristics and functionality of the most comparable commercial product in the commercial market.

(C) For items priced based on a catalog--

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(D) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit the DoD to verify the accuracy of the description;

(E) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(F) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the

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regulations implementing such section.

(c) Requirements for certified cost or pricing data. If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

The Offeror shall submit certified cost or pricing data and supporting attachments in the following format:

In accordance with the instructions contained in Table 15-2 of FAR 15.408, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-2 are incorporated as a mandatory format to be used in this contract. The proposal submission shall include an electronic cost model with active formulas demonstrating the mathematical calculation of the proposed cost (in Excel or another format approved by the Contracting Officer). The electronic cost model shall include build-up by year of cost in total and by CLIN/subCLIN, consistent with the yearly breakout required by paragraph (d)(1) of this provision, or as directed by the Contracting Officer. If applicable, the electronic cost model shall link each Work Breakdown Structure (WBS) to the applicable CLINs. The electronic cost model shall roll up to an annual and total program summary by cost element. All information supporting each CLIN should be visible and verifiable in the electronic cost model. The formulas included in the electronic cost model shall not be locked, and the model shall be editable by the Government. Electronic spreadsheet files (Workbooks) shall be Microsoft Excel 2007 compatible. Workbooks must be sent in a format that includes all formulas, functions, macros, computations, or equations used to compute the proposed amounts. All cell references (to data or files) must be linked to Excel files within the (Price/Cost) proposal. For each Workbook, all rows, columns, cells, and worksheets must be visible (object.Visible=True). Zero height, and zero width, rows and columns (in worksheets) are not acceptable. Hidden cells, rows, columns, and worksheets (tabs) are not acceptable. Worksheet cells formatted with the Font color equal to the Fill color are not acceptable. If Workbooks or Worksheets are password protected, the password(s) must be provided. Print image files, or pictures or files containing only values, are not acceptable. Files must not contain active links to live Internet sites or pages. All linked information must be contained within the electronic offer and be accessible offline. Any supporting narrative shall be in Microsoft Word 2007 compatible format, or any other format approved by the PCO (upon request).

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy to Government's expressed requirement in accordance with FAR 15.403-1(c)(1)(i).

(d) Requirements for data other than certified cost or pricing data. (1) Data other than certified cost or pricing data submitted in accordance with this provision shall include the minimum information necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in Defense Federal Acquisition Regulation Supplement (DFARS) 215.402(a)(i), 215.404-1(b), and 234.7002(e).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) If the Offeror redacts data that identifies the customer (see DFARS 234.7002(e)(2)), then the Offeror shall include, for each sale, the following signed statement with the data submitted:

“By submission of this data, the Offeror [Offeror insert company name] certifies that the customer was [Offeror insert one or more of the following as applicable: a government customer; a commercial customer purchasing the same or similar product for governmental purposes (e.g., Federal, state, local, or foreign government); or a commercial customer purchasing the same or similar product for a commercial, mixed, or unknown purpose].”

(4) Within 10 days of a written request from the Contracting Officer for additional information to permit an adequate evaluation of the proposed price in accordance with FAR 15.403-3 or DFARS 234.7002(e), the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(5) Subcontract price evaluation. (i) Offerors shall obtain from subcontractors the minimum information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost data may be required from a prospective subcontractor

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in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary--

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) Subcontracts. The Offeror shall insert the substance of this provision, including this paragraph (e), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of--

(1) Paragraph (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4; and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

CHANGED LA60013 252.215-7012 01-JAN-2018 REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA
The Offeror shall submit the cost portion of the proposal via the following electronic media: Reference Section L.2.3.1

(End of provision)

AUTO	LF70014	52.252-1	01-FEB-1998	SOLICITATION PROVISIONS INCORPORATED BY REFERENCE
AUTO	LF70015	52.252-5	01-NOV-2020	AUTHORIZED DEVIATIONS IN PROVISIONS
ADDED	LA70009	252.215-7009	01-MAR-2023	PROPOSAL ADEQUACY CHECKLIST (MAR 2023)